This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL and REGULAR MEETINGS

March 10, 2026

WEBVTT

1
00:00:46.880 --> 00:00:51.019
Boardroom: Okay, we are gonna get started.

2
00:00:52.690 --> 00:00:54.410
Boardroom: Now that I have my gavel back.

3
00:00:55.210 --> 00:01:09.840
Boardroom: I'm going to call to order a special meeting of the Berkeley City Council. Today is Tuesday, March 10th, 2026, and it is 4.07 p.m. Clerk, could you please start us off with the roll? Okay, Councilmember Kastarwani is currently absent.

4
00:01:10.370 --> 00:01:12.770
Boardroom: Councillor Taplin is currently absent.

5
00:01:13.390 --> 00:01:14.860
Boardroom: Councilmember Bartlett.

6
00:01:15.190 --> 00:01:17.579
Boardroom: He's currently absent. Councilmember Tregob.

7
00:01:17.910 --> 00:01:21.669
Boardroom: Present. O'Keefe? I am here. Blackaby? Here.

8
00:01:21.880 --> 00:01:23.389
Boardroom: Luna Parra? Here.

9
00:01:23.610 --> 00:01:26.800
Boardroom: Humber, present. And Mary Sheen? Here.

10
00:01:27.710 --> 00:01:30.029
Boardroom: Quorum is present. Very good.

11

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:01:30.140 --> 00:01:43.470
Boardroom: Alright, so we have a very special edition of Special Meeting today. We only have one item, it's the Berkeley Economic Dashboards update, so I am going to pass it over to Eleanor Hollander, who's gonna start us off.

12
00:01:43.940 --> 00:02:03.189
Boardroom: Good afternoon, Mayor. Thank you for that introduction. Good afternoon, council members. It's nice to be with you all today. I'm Eleanor Hollander, I'm the Manager of the Office of Economic Development here at the City of Berkeley. We are a division of the City Manager's Office. I'm here tonight with my colleagues from OED, as we call it, Vincent McCoy, Ruel Cook, and Liz Redman Cleveland.

13
00:02:03.270 --> 00:02:21.950
Boardroom: Tonight's presentation covers data, from the calendar year 2025. It also has a companion publication, our commercial district dashboards, which are in your packet and online. And we have a number of topics to get into, and I've been waiting to say this since the year closed. Let's do the numbers, we all.

14
00:02:23.490 --> 00:02:25.460
Boardroom: Good afternoon, council members.

15
00:02:25.690 --> 00:02:41.509
Boardroom: Unemployment increased modestly year over year in Berkeley, and stayed stable across the county and the state. Berkeley's unemployment rate rose to 4.7%, up from 4.4% last year, matching 4.7% countywide, and lower than what's being observed

16
00:02:41.510 --> 00:02:47.580
Boardroom: of 5.4% statewide. Across the East Bay, total employment declined slightly.

17
00:02:47.580 --> 00:03:00.960
Boardroom: Job growth was concentrated in education and health services, along with smaller gains in arts and government sectors. At the same time, accommodation and food services, manufacturing, and tech-related services saw declines.

18
00:03:00.960 --> 00:03:17.029
Boardroom: These broader regional shifts shape the operating environment for Berkeley businesses, but Berkeley's employment base remains diverse and anchored by major institutions. And that brings us to Berkeley's major employers, which play an important part in stabilizing our local economy.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

19
00:03:17.370 --> 00:03:23.730
Boardroom: Our top 25 employers, based on number of employees, are shown alphabetically on the left.

20
00:03:23.760 --> 00:03:39.159
Boardroom: All of them have more than 100 employees, with the largest topping nearly 14,500, if you can guess which one that is. Five are in the public sector, of which 3 are major educational institutions, 4 are in the healthcare sector.

21
00:03:39.270 --> 00:03:54.319
Boardroom: There are also a few large private sector corporations in Berkeley, notably Bayer, and new to the top 25 list in 2025, Form Energy and Boycek Bagels. Form Energy is located in West Berkeley, and it does R&D for batteries.

22
00:03:54.650 --> 00:04:09.769
Boardroom: This diverse employment base supports long-term economic resilience, and these major employers not only support thousands of jobs directly, but they also generate secondary employment through local spending, contracting, and foot traffic in our commercial districts.

23
00:04:10.350 --> 00:04:14.830
Boardroom: So now we're gonna talk about the first of many sectors that shape the Berkeley economy.

24
00:04:15.370 --> 00:04:17.760
Boardroom: First being our hospitality sector.

25
00:04:18.480 --> 00:04:34.369
Boardroom: Hospitality and visitation remain important drivers of Berkeley's economy. In 2025, the sector performed well relative to neighboring cities. Berkeley ranked first in hotel occupancy and second in average daily room rate, behind only San Francisco.

26
00:04:34.370 --> 00:04:39.370
Boardroom: And was one of the few regional markets to see growth in demand, occupancy, and revenue.

27
00:04:39.880 --> 00:04:49.050
Boardroom: Performance does vary across individual properties, with a small number of hotels still navigating financial and operational challenges following the pandemic.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

28
00:04:49.260 --> 00:04:56.349
Boardroom: The City continues to monitor these situations while working with partners like Visit Berkeley to support visitation and demand.

29
00:04:56.440 --> 00:05:14.640
Boardroom: Overall, Berkeley welcomed about 1.6 million overnight visitors, hotel occupancy increased slightly, while the average daily room rate rose to $190 a night. These trends generated more than $8.3 million in transient occupancy tax revenue for the city.

30
00:05:15.060 --> 00:05:31.709
Boardroom: Local events and programs continue to support visitation. Last year, Berkeley Restaurant Week featured more than 50 restaurants. That returns April 2nd, so save the date. The Bioneers Conference brought nearly 2,000 visitors to downtown Berkeley for the third consecutive year, and returns on March 26th.

31
00:05:31.840 --> 00:05:43.199
Boardroom: And the Berkeley Bucks program generated more than $16,000 in spending at local businesses. So together, these efforts help support restaurants, hotels, and small businesses across the city.

32
00:05:45.790 --> 00:05:46.910
Boardroom: Thanks, Joel.

33
00:05:46.940 --> 00:05:59.960
Boardroom: We're turning now to look at a snapshot of our innovation ecosystem, which is comprised of about 370, what we refer to as innovation sector businesses, which are a defining strength of the Berkeley economy.

34
00:05:59.960 --> 00:06:11.669
Boardroom: You can see the map here, which you can dive into and really investigate on berkeleystartupCluster.com, the startups page, where they're divided by council, district, and also color-coded by industry sector.

35
00:06:12.080 --> 00:06:25.240
Boardroom: Primarily, you see software businesses or others that can do R&D in an office space along the Shattuck corridor here, running north and south, with the larger the bubble indicating the number of firms located at that address.

36

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:06:25.400 --> 00:06:42.749
Boardroom: And then you see south of campus, a big cluster. In this particular picture, you're seeing it show, the bubble at the old Berkeley Art Museum and Pacific Film Archive, which is now the Pakar Bioengenuity Hub, which is housing at any given time between 35 to 40 life science or biotech companies.

37
00:06:42.850 --> 00:06:56.159
Boardroom: We're also seeing a lot of biotech happening west of San Pablo Avenue in those clusters of blue, as well as the clusters of purple dots, which are the hardware companies, which are doing everything from sensors, robotics, and quantum computers.

38
00:06:56.290 --> 00:07:15.039
Boardroom: Another way to represent this is shown on the right-hand side of the slide, which is the pie chart, where we do our best to divide the industry sector into one or another. So, for example, if you're an AI company that's helping achieve healthcare aims, you could either be classified as software or as healthcare, but we had to put you somewhere.

39
00:07:15.250 --> 00:07:29.339
Boardroom: That being said, we did see for the first time our healthcare, life science, companies that are designing products and solutions to improve human health be on par with our historically larger sector, which are the software companies. So those are the two biggest.

40
00:07:29.340 --> 00:07:38.430
Boardroom: With the clean tech or climate tech companies, which are developing transformative solutions to address global warming and resource constraints on our environment.

41
00:07:38.540 --> 00:07:46.570
Boardroom: And hardware, the companies I mentioned earlier that make physical devices, primarily in West Berkeley, as our, next two largest sectors.

42
00:07:47.430 --> 00:08:00.889
Boardroom: Overall, Berkeley is really a city of startups, and we are proud to be home to the university that has been ranked now by PitchBook for 3 years running as number 1 in the globe.

43
00:08:00.890 --> 00:08:13.749
Boardroom: for venture capital-backed startups that it has spun out of the university. It's also number one for the overall number of graduates and undergraduates who have gone on to form companies that attain venture capital.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

44
00:08:13.790 --> 00:08:22.220
Boardroom: And a little shout-out for the females that graduated out of that university and have venture capital-backed startups.

45
00:08:22.890 --> 00:08:36.229
Boardroom: Clearly, we are lucky to be home of this startup-producing university, which correlates closely with the composition of our innovation sector being vast majority early-stage companies that are still trying to figure out

46
00:08:36.230 --> 00:08:43.629
Boardroom: their product-market fit, how they're gonna go to market, and develop a prototype. That's that 86% number shown in the middle.

47
00:08:44.010 --> 00:09:01.010
Boardroom: We also want to point out that, probably in large part, due to the collaboration that we have with the campus and their focus on innovation and entrepreneurship, we've seen the year-over-year increases steadily rise over the last decade in terms of the number of startups you can find in Berkeley, California.

48
00:09:01.010 --> 00:09:16.950
Boardroom: Though we did see a very small dip year over year from 2024 to 2025 in the number of startups locally, and that aligns very closely with the trend we saw of skittish markets making it very hard for these early-stage companies to raise capital.

49
00:09:17.760 --> 00:09:36.330
Boardroom: Speaking of capital raised, in 2025, we expected that dip that I just mentioned to have a more profound impact on our numbers, but actually, we had 88 startups raise Cedar Venture Capital, which is higher than in 2024, and cumulatively.

50
00:09:36.510 --> 00:09:44.260
Boardroom: Cumulatively, they raised $1.5 billion, which, again, is higher than it was in 2024.

51
00:09:44.380 --> 00:09:54.699
Boardroom: However, that $1.5 billion, more than 50% of it was concentrated in 3 very large deals. Those were in Rigetti, a quantum computer company.

52
00:09:54.700 --> 00:10:14.209

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: that is scaling their quantum work and raised $350 million in a second public offering on the NASDAQ, located in West Berkeley. And then two companies, Cobalt Metals and Terabase, that are located in downtown Berkeley, both of which have designed AI and robotics-related solutions to accelerate our clean energy transition.

53
00:10:14.590 --> 00:10:21.009
Boardroom: I also want to point out that the capital coming into our economy isn't all coming from angel investors and venture capitalists.

54
00:10:21.120 --> 00:10:33.080
Boardroom: It's also coming from other aspects of government, state and federal primarily. And in fact, $40 million came into the Berkeley economy from government R&D grants to 16 companies.

55
00:10:33.330 --> 00:10:49.889
Boardroom: Coming from everything from the National Science Foundation, the National Institute of Health, the Department of Energy, and the U.S. Air Force. And I'll also just mention, when any startup forms, they're always thinking about their long-term exit strategy, and we have 5 companies get merged or acquired last year in their exit round.

56
00:10:51.300 --> 00:10:57.949
Boardroom: We're also proud to announce that this is the first time ever that we've collaborated with the campus

57
00:10:57.960 --> 00:11:15.960
Boardroom: on really trying to quantify how all of the landscape that they refer to as their innovation and entrepreneurship, or I&E, ecosystem, or the initiatives on campus that primarily, as is shown here in the blue part of the pie, help companies with ideation and formation of startups.

58
00:11:16.040 --> 00:11:21.349
Boardroom: translates into real economic impact for our community here in Berkeley, California.

59
00:11:21.650 --> 00:11:34.619
Boardroom: What they catalogued through a partnership, cross-disciplinary group of students with leadership from the Institute for Business Innovation at Haas Business School was that the 100 innovation entrepreneurship initiatives on campus

60
00:11:34.690 --> 00:11:41.769

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: have translated into about 180 UC Berkeley-affiliated startups located here in the city.

61
00:11:42.080 --> 00:11:58.259
Boardroom: Those startups produce about 500 to a little over 600 jobs when you count their indirect and induced effects, like their vendors and suppliers, because for every one job in the sector, it looks like there's about 2 total people employed because of those startups.

62
00:11:58.520 --> 00:12:15.649
Boardroom: And the startups pay very high average annual salaries of upward of $200,000 a year. So overall, that contribution to the Berkeley economy is somewhere in the ballpark of $200 to $250 million, and we hope to see that only continue to grow.

63
00:12:16.370 --> 00:12:35.940
Boardroom: We also think here in the Office of Economic Development, not just about the jobs and the investment that comes into our community, but what kind of spaces they're going to occupy when they're able to hire people and scale their technologies. And so we want to see them locate in the many labs that have been built here in Berkeley, California.

64
00:12:36.130 --> 00:12:50.949
Boardroom: Unfortunately, we do continue to track higher than our nearby peers in Emeryville, and the overall Bay Area average in terms of our life science, commercial real estate vacancy rate, or those labs that are still in the market and not least.

65
00:12:51.410 --> 00:13:06.590
Boardroom: This 51.6%, however, I'll mention, while it sounds very high, is in part because of the actual equation having a new aspect of its denominator, the Berkeley Commons property, which is about 540,000 square feet in West Berkeley.

66
00:13:06.660 --> 00:13:10.400
Boardroom: That's put some downward pressure on the prices being asked

67
00:13:10.400 --> 00:13:28.080
Boardroom: per square foot for lab real estate, and we expect the market to continue to adjust to reflect what we're seeing in terms of supply and demand. However, I will just point out for you, lest this scare you, this is on par with what you're seeing nationally and regionally in terms of life science leasing.

68
00:13:30.790 --> 00:13:34.699

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And now we'll talk about office market trends.

69
00:13:35.060 --> 00:13:49.490
Boardroom: Office conditions across the East Bay remain mixed. Berkeley's office availability remains stable year over year, and significantly lower than nearby markets, where availability reaches 30% in Oakland and 34% in Emeryville.

70
00:13:49.710 --> 00:14:04.719
Boardroom: Asking rents in Berkeley held steady at $3.38 per square foot in 2025, while rents are higher in Oakland and Emeryville. Berkeley's office market reflects its older building stock, smaller floor plates, and limited Class A inventory.

71
00:14:06.370 --> 00:14:19.860
Boardroom: And then we'll talk about our new buildings, our new commercial development activity. It continues to shape Berkeley's landscape. UC Berkeley has expanded its presence downtown, and is now the largest ratepayer to the downtown Berkeley bid.

72
00:14:19.860 --> 00:14:33.509
Boardroom: New research and academic facilities are under construction, like the Innovative Genomics Institute and the Baker Labs for Energy and Materials. You can see that in the two photos on the left side of the slide. Both will be part of the new Berkeley Innovation Zone.

73
00:14:33.640 --> 00:14:48.409
Boardroom: And while private investment is helping reactivate long-vacant retail spaces, such as the Shattuck Plaza block, which was recently purchased by Flying Horse Investments, and they have shared that they already have a lot of interest in the spaces with 5 or 6 LOIs.

74
00:14:54.050 --> 00:14:55.000
Boardroom: Good afternoon.

75
00:14:55.830 --> 00:15:01.749
Boardroom: The topic I'm gonna talk about is ground floor vacancy throughout the city. As you'll see on this chart.

76
00:15:02.050 --> 00:15:08.030
Boardroom: At the bottom of it, it shows that the vacancy rate for the city has dropped to about 6.3%.

77
00:15:08.160 --> 00:15:10.680

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Over about 7.5% last year.

78
00:15:11.140 --> 00:15:18.589
Boardroom: We did see some changes in areas in terms of increases in vacancies, such as San Pablo, Telegraph, districts.

79
00:15:18.680 --> 00:15:26.300
Boardroom: But overall, you'll notice that throughout the city, there have been a downward trend in vacancies. This means that

80
00:15:26.390 --> 00:15:40.439
Boardroom: Planning department means that the licensing department means that different parts within the city have done a good job of making sure that they get people through the process of getting a business license, getting their zoning correct, and being able to open a shop in the commercial district.

81
00:15:41.250 --> 00:15:43.640
Boardroom: The second piece I want to talk about is

82
00:15:44.800 --> 00:15:48.109
Boardroom: is retail. And what you'll see here is that

83
00:15:48.360 --> 00:15:54.580
Boardroom: 31% of the ground floor space within the City of Berkeley is occupied by retail.

84
00:15:55.100 --> 00:15:58.809
Boardroom: In West Berkeley, that number jumps up to about 46%.

85
00:16:00.410 --> 00:16:07.989
Boardroom: We are a retail city, and it means that throughout the city, as you see these commercial districts, you see these properties opening up.

86
00:16:08.410 --> 00:16:13.239
Boardroom: We need to continue to encourage retail as a part of our economy.

87
00:16:13.990 --> 00:16:20.630
Boardroom: In that economy, you'll see that 13% of the citywide occupancy is in the food and beverages industry.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

88
00:16:20.780 --> 00:16:27.020
Boardroom: This means that people are getting out of their houses and purchasing food, going to restaurants, and enjoying the nightlife.

89
00:16:28.620 --> 00:16:39.139
Boardroom: Excuse me. The other thing I want to point out is that our concentration of office space tends to be in downtown, West Berkeley and the San Pablo corridor.

90
00:16:39.170 --> 00:16:51.709
Boardroom: This reflects the opportunity for increased development and the fact that we actually have a number of developments that are online that people are being able to lease and put their businesses in.

91
00:16:52.410 --> 00:17:05.360
Boardroom: Our expectation is this trend is going to pretty much hold steady in the current year, but there is a lot of pressure on retail, as you can see, and on offices, as you've heard, and so we will continue to monitor that.

92
00:17:07.250 --> 00:17:15.040
Boardroom: Turning now to sales tax, the graph on the right shows Quarter 2 receipts in sales tax over time. You can see Berkeley has not

93
00:17:15.060 --> 00:17:32.129
Boardroom: steady gains in this area every year. 2022 was particularly exuberant with some pent-up demand after the pandemic. But again, sales tax receipts continue to increase in Berkeley. This also tracks with what we're seeing at the county, where receipts are also up. The state itself is a little bit down.

94
00:17:32.240 --> 00:17:41.020
Boardroom: Looking at the composition of Berkeley sales tax, is this graph. The blue line represents retail. As Vincent mentioned, we are a city of retail.

95
00:17:41.020 --> 00:17:57.229
Boardroom: Retail receipts, compose 40% of our sales tax pie, so to speak, but not to be outdone, food and beverage, pun intended, is catching up and eating retail's lunch at 37% of our sales tax composition. That's the orange line there on the graph. That is…

96
00:17:57.280 --> 00:18:16.580

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: different than some other cities. Many other cities, retail really runs away with the composition of sales tax, but in Berkeley, we love our food and beverage, and it shows in the sales tax receipts. The only other thing I'll point out on this graph is the yellow line. That's personal services. You see it's taken a very big jump in 2025.

97
00:18:16.580 --> 00:18:27.660
Boardroom: Sales tax on gasoline and transportation is rolled up in that line, so when fuel prices fluctuate, the sales tax collected on them does as well, and so that's what you're seeing with that bounce.

98
00:18:28.540 --> 00:18:43.490
Boardroom: Turning now to housing development, in 2025, over 1,600 housing units, actually closer to 1,700 housing units, were approved. This map, demonstrates a lot of those are along our downtown corridor and adjacent to campus in the Southside neighborhoods.

99
00:18:43.660 --> 00:18:56.429
Boardroom: We also have, some images of some of the future development that's been entitled and is on the way. These new residential projects represent new residents and community members who will activate our commercial districts.

100
00:18:56.810 --> 00:19:12.700
Boardroom: Speaking of residential, taking a look at some of the housing costs and market trends over time, Berkeley's median price for a single-family home in December of 2025 was $1.265 million. On the table here with the comps, it's second only to Piedmont.

101
00:19:12.700 --> 00:19:26.210
Boardroom: Inventory continues to remain strong with sales. It's indicated as a hot market on many of the multiple listing services, and houses typically sell for 57% over their list prices.

102
00:19:27.340 --> 00:19:36.050
Boardroom: Now, if you'll permit me for a few more minutes, I wanted to spend a little bit of time speaking about how OED, Office of Economic Development, supports economic vitality.

103
00:19:36.050 --> 00:19:53.009
Boardroom: I know you all, the budget is top of mind for all of us, and, I really want to point out how our work wraps around a number of the elements of our general fund. Business stabilization and retention speaks to business license receipts. We have over 13,000 business license holders in the City of Berkeley.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

104
00:19:53.010 --> 00:20:04.309
Boardroom: And so making sure we're working with the folks that are the holders of those business licenses, and making sure they're having a welcome and important experience in Berkeley, a seamless experience in Berkeley is important to us.

105
00:20:04.410 --> 00:20:12.959
Boardroom: Commercial corridor and district vitality speaks to our sales tax receipts. We want to have vibrant corridors where people come and shop and spend their money.

106
00:20:13.180 --> 00:20:15.539
Boardroom: Hospitality and visitation support?

107
00:20:15.580 --> 00:20:31.989
Boardroom: is directly related to our Transient Occupancy Tax, or TOT. That is, visitors, or the heads in beds tax. You come, you stay at a hotel, you pay a tax. We work closely with our Convention and Visitors Bureau of Berkeley, to make sure the visitors to our city have a good experience.

108
00:20:31.990 --> 00:20:51.659
Boardroom: And the fourth pillar, our innovation and talent pipeline, is this innovation sector we've been talking quite a bit about. That speaks to capital raised, wealth creation, and new business starts in our community. And of course, supporting these companies as they grow and lease space or purchase space in Berkeley contributes to our bottom line here in Berkeley.

109
00:20:54.790 --> 00:21:04.860
Boardroom: To amplify some of the work that we do with sustaining the business community, you'll see on this chart the logos of the various business associations, business improvement districts.

110
00:21:04.960 --> 00:21:08.680
Boardroom: and merchant associations that operate throughout the city of Berkeley.

111
00:21:08.790 --> 00:21:26.390
Boardroom: In 2025, here are some of the things that we… that were achieved by these organizations. One was Elmwood Expanded. It moved further south to include more businesses. They noted that at their annual meeting, instead of the expected 32 businesses that attended, they had 52 attend.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

112
00:21:26.570 --> 00:21:38.849
Boardroom: That's a showcase of what they've done there. Solano was able, for the first time, to create its own website and set its own budget for marketing separate from the Solano Avenue Association.

113
00:21:39.060 --> 00:21:41.379
Boardroom: The city decided

114
00:21:41.930 --> 00:21:52.369
Boardroom: rightfully to allocate funding to both Gilman, to the Lauren District, so they could use those funds over a 3-year period to improve their operations and set forth a plan for further growth.

115
00:21:52.690 --> 00:22:06.590
Boardroom: And currently, and you'll hear about this, of course, is that we work with the downtown and the telegraph business improvement districts on their plans for their 10-year renewals, which are big drivers for the economies of Berkeley.

116
00:22:06.610 --> 00:22:21.889
Boardroom: And so what I want… what we want to point out is that through these efforts, we are helping the different commercial districts and commercial associations throughout the city of Berkeley sustain their efforts to keep traffic and keep people coming to their shops.

117
00:22:22.790 --> 00:22:31.879
Boardroom: The other thing I want to point out is that in 2025, we held a small business forum, and one of the key things that came out of that was access to capital.

118
00:22:31.990 --> 00:22:36.449
Boardroom: Businesses still need and still demand more access to capital.

119
00:22:36.790 --> 00:22:43.540
Boardroom: Currently, the City of Berkeley operates two loan funds that have 25… 25 active loans.

120
00:22:43.670 --> 00:22:46.350
Boardroom: Totaling about a million dollars out in the street.

121
00:22:46.490 --> 00:22:53.630
Boardroom: This means that businesses that you can see on this chart have the capital they need to keep in business, to keep employees

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

122
00:22:53.800 --> 00:22:57.330
Boardroom: Working, and we expect that,

123
00:22:57.530 --> 00:23:00.570
Boardroom: The decision that was made to transfer

124
00:23:00.810 --> 00:23:11.959
Boardroom: one of the loan programs over to Working Solutions will make it easier for people to pay their loans, to get technical assistance to keep them in compliance with their loans, and continue to grow their businesses.

125
00:23:14.530 --> 00:23:30.969
Boardroom: The Discovered in Berkeley marketing campaign highlights local businesses across a range of sectors, and helps connect residents and visitors with Berkeley-based companies. Since its launch in 2019, the campaign has generated over 4.6 million impressions across digital platforms.

126
00:23:31.130 --> 00:23:49.080
Boardroom: Feature stories performed especially well, including Magnetic Tides, a Berkeley company developing a new non-invasive stroke treatment, which was the most viewed article in the series on Berkeley's side, followed by the feature on Rainbow Donuts, Lavender Bakery, and Sweet Bites Bakery, because we all love our sweet treats.

127
00:23:49.290 --> 00:23:57.220
Boardroom: Overall, the campaign is increasing visibility for Berkeley businesses and helping drive people to explore and support local establishments.

128
00:23:57.780 --> 00:24:07.149
Boardroom: The Discovered in Berkeley hashtag was used in over 6,000 posts in social media, and we encourage you to tag your posts and help more people discover what's great about Berkeley.

129
00:24:09.440 --> 00:24:28.520
Boardroom: Here in the Office of Economic Development, we try not only to help businesses to grow, but to grow in a way that respects the constraints on natural resources and our global challenges around climate change. And thus we do that by working with the California Green Business Network, specifically the Alameda County Green Business Program.

130

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:24:28.740 --> 00:24:35.860
Boardroom: to help businesses Save water, conserve electricity, and reduce the amount of waste that goes to the landfill.

131
00:24:35.860 --> 00:24:56.280
Boardroom: And we're really proud that we saw 11 companies renew their commitment to this long-standing program in 2025, as well as 13 new businesses enter the program and attain green certification. And we now have a total of 81 businesses in Berkeley that are green business certified, and hope people will consider when they shop.

132
00:24:56.290 --> 00:25:02.740
Boardroom: Thinking about who's acting green by looking at the Green Business California website and finding ones there.

133
00:25:03.230 --> 00:25:19.139
Boardroom: When we talk about sustainability, we're talking not only about economic sustainability, which you've heard a lot about today, and environmental, which I just touched on, but also on social sustainability, or specifically equity. That's the third pillar of any sustainable economy.

134
00:25:19.380 --> 00:25:33.590
Boardroom: And in the Office of Economic Development, our partnership with Berkeley Unified School District and the Cal State University Institute for STEM Education has really deepened our commitment toward equitable development through our STEM Career X program.

135
00:25:33.590 --> 00:25:41.269
Boardroom: Which exposes kids that are learning STEM skills in the classroom to see what those will look like in real-world careers in our community.

136
00:25:41.270 --> 00:25:59.029
Boardroom: Last year, we held 10 STEM career X tours, including at some of the companies you've already heard about today, like Rigetti Quantum Computing, or Form Energy, as well as others, like Aris Composites, Copper, which makes induction stoves, or Type 5, which has modular ADUs that can be built in the backyard.

137
00:25:59.130 --> 00:26:11.309
Boardroom: And what's really exciting about these programs is not only do they expose the children to career opportunities and visualization of what their STEM skills can translate into in terms of a career.

138

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:26:11.310 --> 00:26:21.760
Boardroom: They help the employees at these companies feel really invested in and helping our future talent generation and the pipeline of people that could come someday work from them.

139
00:26:21.760 --> 00:26:41.080
Boardroom: And be a part of this community. Also, I'll just mention they've been a really important tool for the Office of Economic Development to get to know the leaders of our startups and innovation companies, and be able to know they have a person in government they can call when they're seeking other type of advice, like where they can grow in Berkeley, or a problem that they're having on their street.

140
00:26:41.980 --> 00:26:50.690
Boardroom: We also have had a great partnership over the last several years with University of California, Berkeley, our business associations.

141
00:26:50.710 --> 00:27:09.240
Boardroom: and our Berkeley lab in the Berkeley startup cluster. But we've really deepened that campus-city collaboration over the last year under the leadership of Chancellor Lyons and Mayor Ishii to really double down on what the city and the university can achieve together.

142
00:27:09.340 --> 00:27:21.540
Boardroom: We just launched last month our first civic Innovation Challenge to make it so civic problems, or the community's challenges, can have new apps or technologies designed by students.

143
00:27:21.620 --> 00:27:32.500
Boardroom: As we mentioned earlier, we've been measuring the local impact of the innovation entrepreneurship programs on campus, and I want to thank the Institute for Business Innovation again, because I see some of them here tonight.

144
00:27:32.600 --> 00:27:47.559
Boardroom: And then I also want to point out that we have many new collaborations being developed at this moment about how we increase access to capital and the venture capital funds that support Berkeley companies, as well as what more we can do for business attraction and the Berkeley brand.

145
00:27:47.560 --> 00:28:03.529
Boardroom: And in fact, if any of you are interested, we have hot off the press some new cards about innovating and growing in Berkeley and our Berkeley Startup Cluster LinkedIn and website, which we hope will help

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

people know that Berkeley's not just a place where you can draw talent from.

146
00:28:03.530 --> 00:28:08.400
Boardroom: But a city where startups are welcome to thrive and accelerate their innovation.

147
00:28:09.570 --> 00:28:13.790
Boardroom: And last but not least, I want to make sure you're also aware of our

148
00:28:13.790 --> 00:28:19.540
Boardroom: cultural supporting components, in addition to our commercial supportive components. In 2025,

149
00:28:19.540 --> 00:28:43.570
Boardroom: OED administered over $650,000 of civic arts grants across individual artists, community festivals, and arts organizations. Here on the slide is a sort of sampling of some of the programs we've been pleased to support, the new Apollo Youth Symphony Orchestra, Girls Garage, the Berkeley Birding Festival, and, I won't… I want to spend at least one minute talking about our public art program, which is…

150
00:28:43.570 --> 00:28:59.609
Boardroom: Sorry, 30 seconds. Talking about our public art program, which you can see an image of the South Berkeley Shines mural that is slated to be installed on the MLK YAP Center at Oregon Street as that building comes under… comes back online during its construction project.

151
00:28:59.990 --> 00:29:23.980
Boardroom: And finally, I just want to spend a minute talking a little bit about economic development as stewardship. Some people talk about this kind of work as gardening, and I think we think about that every day, whether, you know, in any given week, Vincent will be at the Telegraph board meeting, or over on Solano, or talking to folks in the Lauren District. Ruel will be working on vacancies in the downtown. Liz will be at the Gilman. We aim to be a really

152
00:29:23.980 --> 00:29:28.079
Boardroom: High-touch, high-customer-service, responsive department that

153
00:29:28.080 --> 00:29:33.479
Boardroom: People can email or call us, and there's somebody in government that will pick up the phone and make sure we can try to

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

154
00:29:33.480 --> 00:29:41.699
Boardroom: get you connected to the resources you need and the support you… you deserve to feel welcome in Berkeley and thrive. And I want to just…

155
00:29:41.710 --> 00:29:44.649
Boardroom: Leave you with, a nice note we got.

156
00:29:44.700 --> 00:29:59.860
Boardroom: Elachi in downtown had a robbery happen, their window was broken, Ruel reached out to them on social media to remind them about the Berkeley Damage Mitigation Fund, and they wrote us this note that said, it's reasons like this why we love being a part of the Berkeley community so much.

157
00:29:59.930 --> 00:30:07.459
Boardroom: So, we thank you for your time today, thank you for letting us share a little bit about our work, and we look forward to taking your questions and having a discussion.

158
00:30:12.810 --> 00:30:17.830
Boardroom: Thank you so much! Well, let's hop into the questions!

159
00:30:18.300 --> 00:30:20.609
Boardroom: Go ahead, Councilmember Taplin.

160
00:30:20.940 --> 00:30:23.239
Boardroom: Thank you very much.

161
00:30:23.350 --> 00:30:30.640
Boardroom: As you all know, I'm very proud of our innovation ecosystem here in the city. Regarding our life science commercial vacancies.

162
00:30:30.750 --> 00:30:36.440
Boardroom: Are there lessons we can learn from Emeryville? Are there things that they're doing that we're not doing, or vice versa?

163
00:30:38.850 --> 00:30:47.789
Boardroom: Couple things to say about Emeryville. So, number one, their vacancy rate dropped primarily because the Biomed Realty property there sold to Sutter.

164

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:30:47.850 --> 00:31:04.339
Boardroom: And so when you're looking at small denominators, like, we don't have the amount of real estate that you would see in a South San Francisco in Emeryville or Berkeley, so one property can really skew whether your vacancy rate goes dramatically up or down over a period, so…

165
00:31:04.340 --> 00:31:16.110
Boardroom: I would say, number one, that kudos to them for having leased that building and sold a property, and hopefully we'll have something similar happen here, and that would make a big swing in our vacancy rate.

166
00:31:16.110 --> 00:31:29.860
Boardroom: The second thing I would say, and this might be for a longer conversation, but we have heard that the permit streamlining and the ease of operations is sometimes at least perceived. I can't say if it's actually easier, but it is perceived as

167
00:31:29.860 --> 00:31:40.759
Boardroom: much more streamlined and easier in Emeryville, and so sometimes we're hearing that, companies consider Emeryville because of that perception, and that's something here in Berkeley we can work on.

168
00:31:40.760 --> 00:31:51.520
Boardroom: to not just address our processes, but also improve the reputation that we have for doing business, because I think we've made great strides in recent years to be a place where it's easier to do business.

169
00:31:51.580 --> 00:31:59.510
Boardroom: But it's, not always known by all of the people that are considering leasing. And I will add to that. For a long time, we didn't have

170
00:31:59.530 --> 00:32:16.110
Boardroom: the luxury of having a lot of product on the market, and so it's very exciting that we have over half a million square feet to offer, which has changed our denominator significantly, which has sent our rate quite high. But we're working very closely with the group that's working to lease the Berkeley Commons space, and when they have a

171
00:32:16.120 --> 00:32:25.790
Boardroom: an interest or a warm lead, we work very hard to make sure they have the data they need to talk about why Berkeley is such a great place for an AI company to locate, for example, or whatever sort of

172

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:32:26.160 --> 00:32:32.509
Boardroom: element thereafter, we work very closely to make sure we can get them the important information so they know the talent is here, and that

173
00:32:32.760 --> 00:32:37.669
Boardroom: Again, they have somebody to call on government that can be supportive to them as they work to fill that space.

174
00:32:38.390 --> 00:32:39.150
Boardroom: Thank you.

175
00:32:39.910 --> 00:32:42.620
Boardroom: Thank you so much. Councilmember Blackaby.

176
00:32:43.630 --> 00:33:01.459
Boardroom: Thanks, Madam Mayor. Thanks to Eleanor and the small but mighty team of the Economic Development Department. As you know, this is an issue that's near and dear to my heart. I love the work you guys are doing, and I see this as so critical, obviously, to the future of our city. I've got some comments from earlier, but just a couple of quick clarifying questions.

177
00:33:01.460 --> 00:33:07.449
Boardroom: On the… oh, Berkeley Bucks. It's sort of… you highlighted the activity with Berkeley Bucks. Feels like…

178
00:33:07.650 --> 00:33:11.789
Boardroom: there's an opportunity to do more with that. Any kind of ideas for maybe how we…

179
00:33:11.930 --> 00:33:17.429
Boardroom: accelerate the… the use of that program, or is that mostly kind of driven by Visit Berkeley?

180
00:33:17.890 --> 00:33:30.489
Boardroom: The program is driven by Visit Berkeley. I think we've been hearing some concerns that people have had using their Berkeley books, so I think we're gonna work with Visit Berkeley to make sure

181
00:33:30.520 --> 00:33:43.769
Boardroom: they can streamline, and I think it's largely a training of staff issue. It's… it's just that different servers don't know exactly

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

how to enter things with a point of sale, so… or, you know, cash register people, so I think it's…

182
00:33:43.770 --> 00:33:51.360
Boardroom: unfortunately, probably on the businesses themselves, maybe signed up for the Berkeley Brucks program 3 years ago, they had staff turnover. Right.

183
00:33:51.410 --> 00:34:04.849
Boardroom: then your experience when you go there might not be seamless, but I think there's still work to do, like, maybe every year there can be an educational program, a reminder of different business owners that they're enrolled in the program, and how staff can use it.

184
00:34:04.850 --> 00:34:13.710
Boardroom: And then we do actually see a lot of collaborations happening to promote the Berkeley Bucks, so, like, when we do the annual Berkeley Holiday Gift Fair with the Berkeley Chamber of Commerce.

185
00:34:13.710 --> 00:34:16.719
Boardroom: They'll raffle off Berkeley Bucks gift certificates.

186
00:34:16.719 --> 00:34:31.039
Boardroom: Through our Discovered in Berkeley campaign, we'll sometimes mention the Berkeley Bucks program if the business accepts it, so we're always looking for ways that we can mention Berkeley Bucks in other things that our office sponsors or supports.

187
00:34:31.389 --> 00:34:32.159
Boardroom: Great.

188
00:34:32.350 --> 00:34:40.639
Boardroom: I love the bubble chart of the innovation ecosystem and where things are located and the color coding. I assume the big red 41, is that Skydeck?

189
00:34:41.010 --> 00:34:49.739
Boardroom: It's probably… actually, you were just talking to us about the Berkeley Gateway Accelerator, so there's the Wells Fargo building, Berkeley Skydeck building.

190
00:34:49.770 --> 00:35:14.560
Boardroom: the new Gateway 2168 shattock now, we've learned, has a couple companies in it. Then there's also co-working with Wisdom right there

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

around the corner, Dharma College, there's Pacific Workplaces. So, you know, this is zoomed in, and if you dive deeper, you can look on the berkeleystartupCluster.com startups page, which one is at which address. Got it. But I think there's actually several hubs in the downtown area.

191
00:35:14.560 --> 00:35:19.729
Boardroom: And then when, when IGI and the new Baker Labs facility come online, those will be their own?

192
00:35:19.870 --> 00:35:39.820
Boardroom: Those will also be represented here, those companies that start… Yeah, that's not represented today, because it's currently under construction. Right. And, yes, the IGI will be primarily life science companies, and the Baker Labs that we talked about earlier that's in the Old Berkeley Eye Museum is expanding to have more expand… space

193
00:35:39.820 --> 00:35:45.149
Boardroom: For their life science, biotech, healthcare-oriented companies as they grow, but they're also

194
00:35:45.210 --> 00:36:04.749
Boardroom: expanding into a new Durain. They used to… they used to call it Climate, but because of our current administration, they're not able to call it that, so it's called Energy and Advanced Materials Hub. Okay. And so that will be, I guess I think we can say it here in the City of Berkeley, more of a climate technology, or clean energy and energy storage type companies. Okay.

195
00:36:04.750 --> 00:36:19.230
Boardroom: And following up, then, on what Councilmember Taplin just mentioned, I mean, I guess there is the potential that when some of these new facilities come online that are a little more oriented towards the life sciences, we might have some additional creation of lab space. Is that denominator gonna grow?

196
00:36:19.230 --> 00:36:25.419
Boardroom: with IGI and the new Baker Labs, so, I mean, that's gonna be, again, a continued focus to fill those

197
00:36:25.420 --> 00:36:35.500
Boardroom: Yeah, and it will, fortunately or unfortunately, depending on where you are, it will create pressure on the West Berkeley life science spaces, because a lot of the biotech companies

198
00:36:35.710 --> 00:36:39.969

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: If they're affiliated with campus, which that number we showed you earlier, about half of them are.

199
00:36:40.130 --> 00:36:53.670
Boardroom: then they might want to be as close to campus as possible, so whereas they used to have to go to a co-working facility, like we used to have a Bonneville Labs or Cell Valley Labs co-working facilities that could support early-stage biotech companies.

200
00:36:53.710 --> 00:37:11.269
Boardroom: now they can go to the Banffa Baker Labs place, and then they'll be able to expand as they grow closer to campus, which will make the private sector real estate developers that have built larger lab spaces have to work even harder to draw the companies, you know, a mile and a half away. Yep.

201
00:37:13.790 --> 00:37:28.849
Boardroom: We've talked in the past, again, most recently a couple weeks ago, but even kind of last year when we went through this also, this question about… we've talked about life science lab space, but also the amount of space for software AI companies, kind of in the…

202
00:37:28.900 --> 00:37:42.510
Boardroom: You know, you don't need massive labs, but you need some… maybe you need something more than a shared desk, but you need stuff in kind of that small to middle size, kind of customizable, easy to move in, easy to move out, easy to grow. How are we doing on kind of that?

203
00:37:42.640 --> 00:37:46.100
Boardroom: that segment, because I feel like that's something, maybe, that other communities

204
00:37:46.450 --> 00:37:57.390
Boardroom: have, we've done a little bit, but is that also maybe a limiting factor of our ability to kind of hold on to some of those non-life science, but more kind of technology, software-type startups?

205
00:37:57.390 --> 00:38:11.169
Boardroom: Yeah, so there's sort of two answers to that. One is we don't have a commercial real estate product like we've seen in other cities that is designed for that, just spun out of the university, but growing a little bit type

206
00:38:11.460 --> 00:38:29.050

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: company, so it's like a company that is needing between 5,000 and 15,000 square feet. We don't really have an incubator space that's owned by the private sector that you can grow into once you've expanded beyond the Baker Labs or Skydeck incubator or something on campus.

207
00:38:29.110 --> 00:38:46.560
Boardroom: That being said, I just got off a call a couple hours ago where I spoke to a number of, different realtors in our community that are all leasing pretty small parcel sizes and are willing to do some matchmaking and rearranging to accommodate. So there's…

208
00:38:47.210 --> 00:38:53.679
Boardroom: a half dozen, maybe more, spaces. They're perhaps a little large, or a little outdated, or something's…

209
00:38:53.880 --> 00:39:13.700
Boardroom: not perfect, but I think that there's actually a lot of space on the market that is willing to accommodate the space, but then there's just, a number of things to figure out, which is how our permitting will work for those, and would it be more efficient for them to move somewhere elsewhere, like Emeryville, where that space is ready to go.

210
00:39:13.700 --> 00:39:30.639
Boardroom: Versus work with the property owner and the city to get that space up to retrofit to what's required to do R&D. So, I think there's some work we can be done, but I wouldn't say it's like we don't have the space. It's just that we need to maybe do some reconfiguring.

211
00:39:30.640 --> 00:39:43.440
Boardroom: I would also add, due to Council's leadership last year and the year before that, responding to the Keap Innovation in Berkeley referral and enabling many more zoning districts across our whole city to accommodate research and development uses.

212
00:39:43.870 --> 00:39:59.279
Boardroom: went a tremendous way to improving our own rules and regulation to welcome that kind of space, and sort of as Liz is alluding to, that inventory is now allowed by the rules, but what those spaces look like on the inside, as they're built to suit the companies moving into them.

213
00:39:59.590 --> 00:40:06.719
Boardroom: we're seeing what that's gonna look like. So, how are we doing? I think, in some ways, we've done a great job with Council's leadership on,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

214
00:40:06.790 --> 00:40:24.610
Boardroom: adapting to what the market conditions look like, and making it so we can embrace those uses here, and we're continuing to see the tail of that as we begin our business attraction around welcoming these companies here and making sure they have a smooth process, and then they tell all their friend companies that they like it here and want to continue to cluster together. Yeah.

215
00:40:24.610 --> 00:40:30.300
Boardroom: Great. I've got some other comments for later, which I'll save, but again, thank you for the presentation, and thanks for answering those questions.

216
00:40:30.350 --> 00:40:32.700
Boardroom: Thank you, Councilmember O'Keefe.

217
00:40:33.960 --> 00:40:42.320
Boardroom: Yeah, thank you so much for this presentation. Really, really good work all around. The presentation and just all the work you do. It's really, really important.

218
00:40:42.470 --> 00:40:49.249
Boardroom: I have 3 questions. I'll ask the most boring one first. I'm curious how…

219
00:40:49.420 --> 00:40:59.199
Boardroom: I'd like to understand a little better, and only answer, like, within the scope of this meeting, don't… if it's too detailed, we can meet later, but I'm curious how you calculate… keep track of and calculate vacancy rates.

220
00:40:59.330 --> 00:41:04.070
Boardroom: And my reason for asking is I've actually, like, you know, spoken with

221
00:41:04.270 --> 00:41:23.030
Boardroom: constituents or emergency associations, and they have different numbers. Sorry, which, which vacancy rates are you… Oh, well, the… the storefront vacancy, yeah, storefront vacancy, thanks. So I just would like to know how you did it. We can answer that one down here. Yeah. Yeah, so this is a combination of…

222
00:41:23.130 --> 00:41:42.199

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: walking the streets of Berkeley and looking at properties, looking at CoStar, which is a subscription we have, which allows us to go beyond what we see looking at the storefront. So with CoStar, we can put in an address, we can see who the different tenants are, how much square footage they have, how long their leases are.

223
00:41:42.350 --> 00:41:52.989
Boardroom: And so using the square footage information, using our feet on the ground, and using the existing data we have about the businesses.

224
00:41:53.240 --> 00:42:09.150
Boardroom: is how we do it. It's not a perfect science by… by any stretch, but it is… allows us to get a handle on what we have in terms of vacancies throughout the city. Probably the toughest part is the square footage, because if you go to a storefront.

225
00:42:09.720 --> 00:42:16.879
Boardroom: you have to guesstimate, and that's where we go to CoStar, and they're able to get their information about what the square footage is.

226
00:42:17.910 --> 00:42:19.780
Boardroom: Great, thank you, that's helpful.

227
00:42:20.030 --> 00:42:27.670
Boardroom: Another question I have, I didn't see… Any data on…

228
00:42:27.970 --> 00:42:37.230
Boardroom: whether or not a particular business is a, like, a chain or a small local business, and I'm wondering if you keep track of that, and…

229
00:42:38.090 --> 00:42:50.539
Boardroom: my curiosity is, and I'm just curious if you have any thoughts about this, I know you have to be careful, we don't want to treat businesses differently, because of, their, you know, size of the business there, but,

230
00:42:50.880 --> 00:43:10.409
Boardroom: like, what can we do to… I won't say discourage chains from coming, but to encourage local businesses, because that is something that really, really makes Berkeley special, and I can't believe what luck we've had. It feels like luck to me that we have… we don't have that many chains, or really, most… so many of our businesses are really truly local.

231

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:43:10.440 --> 00:43:16.830
Boardroom: And I'm wondering if you have any thoughts about that. What can we do to preserve that? Thank you so much for that question.

232
00:43:16.830 --> 00:43:41.479
Boardroom: I can almost answer it with a question that sometimes becomes very challenging to define what is the chain. You know, is it a business that's become successful and has a second location, or a third location, or… Anyway, that's sort of a… almost a topic of itself, which we'd be excited to talk about. We don't track chains particularly, but in our data, which is rich and goes back many years in our field data that Vincent alluded to, we do know the tenant name, so there is some backward-facing sort of work we could do on that.

233
00:43:42.010 --> 00:43:46.260
Boardroom: I will say that, for our small, independent businesses.

234
00:43:46.350 --> 00:44:05.770
Boardroom: One of the challenges is getting started. You have to have a lot of capital, you have to have a lot of patience, you have to have a great idea. Small business owners are really tremendous people that keep our main streets alive and our commercial districts vital, and they end up being sort of Jacka and Jill's and Janes of all trades.

235
00:44:05.770 --> 00:44:09.110
Boardroom: And time and money are the two levers

236
00:44:09.110 --> 00:44:18.550
Boardroom: that, end up either aiding in their success or making it challenging. And so we try, through customer service and making our processes very clear,

237
00:44:18.680 --> 00:44:20.079
Boardroom: To save them both.

238
00:44:20.340 --> 00:44:35.420
Boardroom: I think this is another opportunity to remind everybody of the hashtag DiscoveredInBerkeleyCampaign, DiscoveredInBerkeley.com, at DiscoveredInBerkeley on Instagram, but that does provide us a way to showcase some of those really

239
00:44:35.420 --> 00:44:49.449
Boardroom: unique, independently owned, women-owned, values-aligned, inspirational businesses. We try really hard to curate that so that it

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

spans different sectors, different types of businesses, different parts of town.

240
00:44:49.450 --> 00:44:55.649
Boardroom: And really shed light on the kinds of things you're talking about, the people that we want to thank for being here.

241
00:44:55.650 --> 00:45:06.830
Boardroom: And so, we always encourage you or the public to, if there's a favorite business that has done something really unique, that deserves a deeper dive, and also hasn't had earned

242
00:45:06.830 --> 00:45:21.870
Boardroom: media through Berkeley's side, because we don't want to sponsor a story where they already got their own media attention. Our office is all ears for shedding light on the really cool, innovative, creative, artistic businesses you can find here in Berkeley.

243
00:45:22.230 --> 00:45:32.490
Boardroom: The other thing is, if you look at the City of Berkeley, it is dominated by independent businesses. As you compare to other cities, which have more chains or more,

244
00:45:33.040 --> 00:45:37.269
Boardroom: big boxes, Berkeley is dominated by small, independent business owners.

245
00:45:37.560 --> 00:45:47.979
Boardroom: The challenge is, how do we make sure that their customers keep coming back? Make sure that they're running their businesses efficiently and effectively, so that they can keep their doors open.

246
00:45:48.560 --> 00:45:55.060
Boardroom: The other challenge we have in Berkeley is we have, as we said, we have a high number of retail and food service businesses.

247
00:45:55.210 --> 00:45:57.120
Boardroom: Two high-risk categories.

248
00:45:57.580 --> 00:46:05.599
Boardroom: And so, as we talked to, brokers, they've said that if you look at, say, the downtown and the areas that border the college.

249

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:46:05.740 --> 00:46:19.020
Boardroom: When the students leave, you can see a drop in sales about 40%. So for those businesses, we have to help them find ways to diversify their customer base so that when those students leave, someone else is coming in the door.

250
00:46:19.340 --> 00:46:20.060
Boardroom: But…

251
00:46:20.580 --> 00:46:28.270
Boardroom: Overall, we have a great mix of independent businesses. We've just got to figure out more ways to continue to support them.

252
00:46:28.390 --> 00:46:32.930
Boardroom: I was just gonna add one thing. I do track opening and closings,

253
00:46:32.970 --> 00:46:57.709
Boardroom: And most of the time in the data that I'm gathering from this, it's small businesses that are coming into a closed business space, and something that's been confirmed by, the brokers that we've talked to is that the second generation spaces, which is like a cafe for a cafe, those are the easiest to rent. And so you get one small business that's a cafe owner leaves, another cafe owner comes right in, and it's a really, like, one-to-one switch.

254
00:46:58.010 --> 00:47:07.029
Boardroom: So that's something we see a lot of, and it's all, like, family-owned small businesses that are coming in. It kind of perpetuates itself. Yeah. Thanks, thanks for that.

255
00:47:07.530 --> 00:47:12.989
Boardroom: My last question, which was a little bit, teed up by your answer,

256
00:47:13.200 --> 00:47:18.090
Boardroom: So, I'm sure many of my colleagues up here can relate to this.

257
00:47:18.230 --> 00:47:22.539
Boardroom: I've heard… you hear a lot from constituents, businesses, customers.

258
00:47:22.740 --> 00:47:35.889

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And they… they say why they, like, anecdotally, the problems they have with either, enjoying our businesses or running the business. You know, you hear… you hear a lot of things, right, when you're in this line of work.

259
00:47:35.890 --> 00:47:53.459
Boardroom: Some things I've heard, are, like, perceived safety, especially at night, parking in some parts of town, street behavior, business license procedures that you already mentioned in your, presentation. Those are just a couple things off the top of my head that I hear of from time to time.

260
00:47:53.460 --> 00:48:00.660
Boardroom: But it's anecdotal, and one person's experience is real, but it's hard to know what to do with it policy-wise, and I'm wondering if you have

261
00:48:01.670 --> 00:48:06.989
Boardroom: Sort of from your perspective, What are maybe one or two of the top issues?

262
00:48:07.300 --> 00:48:15.010
Boardroom: That… That are a barrier to more economic vitality that we could potentially address.

263
00:48:17.330 --> 00:48:27.240
Boardroom: Great question. So many different ways to answer that. I think it might be useful if we can talk a little bit about some of the vacancy attraction work we've done specifically with the downtown. I will say broadly.

264
00:48:28.390 --> 00:48:35.189
Boardroom: usually, never just one thing. And typically, like, for… if we, say, for example, we have 17 vacancies.

265
00:48:35.410 --> 00:48:42.409
Boardroom: There's probably 17 solutions for filling each of those, and so by the same side of the coin, it's not always the same

266
00:48:42.660 --> 00:48:53.660
Boardroom: the same story about why a business closes, or makes a decision, or is concerned for their employees. And many of the topics you mentioned certainly are things we hear as well.

267

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:48:53.770 --> 00:48:58.630
Boardroom: Unpredictable street behavior can be really challenging for a business owner who's trying to…

268
00:48:59.010 --> 00:49:11.720
Boardroom: keep their employees safe, and also maintain a harmonious place, whether it's a third space, like a cafe that's not work or home, or whether it's, a retail place that, you know, sort of curb appeal is very important.

269
00:49:12.390 --> 00:49:21.359
Boardroom: There are many reasons, and I want to, give you all a little time to talk about some of the vacancy toolkit work we've been putting together. We'll be back with a little bit more of it fleshed out, but just as…

270
00:49:21.910 --> 00:49:24.360
Boardroom: A multifaceted strategy of solutions.

271
00:49:24.840 --> 00:49:26.090
Boardroom: Is the best way to go.

272
00:49:26.180 --> 00:49:44.589
Boardroom: Yeah, we're currently working on coming up with, sort of, a vacancy policy that doesn't penalize businesses for remaining vacant, or property owners for having vacant spaces, but, encourages them to activate those spaces with creative placemaking. So whether it's vinyl window film that's

273
00:49:44.590 --> 00:49:50.130
Boardroom: creates artwork or some beautiful messaging in the windows. John Kaner's been…

274
00:49:50.130 --> 00:50:12.840
Boardroom: a wonderful partner with me in helping to do this already in the downtown by getting a lot of the property owners to, agree to do murals on there as the core spaces project on Center Street. John worked with them very closely to get that mural done, this beautiful mural that sort of makes it a more… a better experience as you're walking down that street. And also the article, Student Housing on Harold Way, the pit.

275
00:50:12.840 --> 00:50:22.050
Boardroom: wrapping that pit with, beautiful mural work so that you have these sort of construction fencing that becomes artwork as you're walking by. It just helps

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

276
00:50:23.570 --> 00:50:40.860
Boardroom: create a perception that this is a… there's a place here, and it's not just a vacant building or a vacant space. So we're working very closely with Councilmember Tregob on coming up with vacancy policy and other, efforts to help think of creative solutions to solve some of these really big issues around vacancy.

277
00:50:42.080 --> 00:51:01.449
Boardroom: And one last thing I wanted to mention, we talked about how we have independent businesses. We also have a tremendous number of legacy business in Berkeley, and again, defining legacy is a challenge, too. You know, is 5 years in business legacy-worthy? 10 years? 20? I mean, many businesses are over 50 years in business, and thinking about appropriate and thoughtful and meaningful

278
00:51:01.450 --> 00:51:16.430
Boardroom: And economical ways to celebrate these businesses, and the effort that they've put into keeping our community both vibrant and engaged is something we're going to be working with throughout the spring, and we welcome ideas about that as you hear things out in your districts.

279
00:51:17.260 --> 00:51:21.469
Boardroom: Yeah, actually, I'll just comment on that, and then I'm done with my questions.

280
00:51:21.590 --> 00:51:29.479
Boardroom: I was actually recently looking at San Francisco's Legacy Business program, which sounded pretty cool, so I'm sure you know about it, but yeah, good.

281
00:51:29.790 --> 00:51:34.739
Boardroom: look into that more. Thank you so much. Thank you. Thank you. Councilmember Trey Gob.

282
00:51:36.030 --> 00:51:44.330
Boardroom: Thank you so much, and thank you to the Economic Dev… Office of Economic Development team.

283
00:51:44.330 --> 00:51:56.050
Boardroom: Just want to say, and we work with you almost on a daily basis, and it's such a pleasure to work with such a creative, knowledgeable, and passionate team.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

284
00:51:56.150 --> 00:52:01.480
Boardroom: I just want to say we're so lucky to have you here in Berkeley.

285
00:52:01.800 --> 00:52:08.060
Boardroom: As to the questions, and I will ask them in rapid fire to save time,

286
00:52:08.240 --> 00:52:14.569
Boardroom: I just wanted to… Write them down. I'll go slow.

287
00:52:14.790 --> 00:52:18.969
Boardroom: Would love to,

288
00:52:19.300 --> 00:52:26.870
Boardroom: Just be reminded of what has been done to streamline, permitting for small businesses.

289
00:52:27.060 --> 00:52:34.949
Boardroom: As well as if you can speak to any additional, opportunities for… to explore for more of that.

290
00:52:35.520 --> 00:52:39.410
Boardroom: As far as,

291
00:52:40.130 --> 00:52:53.209
Boardroom: qualitative data, are we collecting, or can we in the future start to collect data as to why companies don't stay in Berkeley, beyond anecdotal data?

292
00:52:55.880 --> 00:53:06.389
Boardroom: And then, what are we doing to advertise, Berkeley commercial opportunities beyond Berkeley, regionally, nationally, or even beyond?

293
00:53:08.660 --> 00:53:21.610
Boardroom: I would love to learn how, the startups… I'm very excited to, well, I'll say for my comments how excited I am about what's in this report.

294
00:53:21.740 --> 00:53:28.700
Boardroom: But how do startups find out information about, these grants, including, well, maybe…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

295
00:53:28.860 --> 00:53:40.089
Boardroom: Maybe when there's another administration, national or federal government grants that might be available. And finally,

296
00:53:40.420 --> 00:53:46.049
Boardroom: Wanted to see if you could speak to the outlook of the,

297
00:53:46.220 --> 00:53:57.559
Boardroom: small business loan program. Is there more funding coming in? Is it still steady? How much is in that account? Those kinds of questions.

298
00:53:59.030 --> 00:54:14.700
Boardroom: Okay, I'm gonna take some of these in reverse order. I will speak to the outlook on the loan program, I will answer your first question about streamlining, then I'm going to turn it over to either Liz or Vincent, whoever wants to take this one about exit interviews from companies that leave us.

299
00:54:14.960 --> 00:54:21.280
Boardroom: Advertising commercial opportunities in Berkeley, I think, will be a Liz Rural split a little bit.

300
00:54:21.280 --> 00:54:38.199
Boardroom: and talking about business attraction, and then how do startups find out about research and development grants and waivers. I will just tell you right now, please subscribe to our OED newsletter, where we certainly remind people, and we are also always interested in engaging with businesses that you think might want to take advantage of these things.

301
00:54:38.330 --> 00:54:48.269
Boardroom: OEDmailbox at berkeleyca.gov. Our email is always open to you, we strive to return those quickly, and so you are welcome to send anybody our way.

302
00:54:48.450 --> 00:55:00.990
Boardroom: And the Berkeley Startup Cluster Newsletter, as well, for the R&D grants, we promote it heavily through there, because those are mostly focused toward our innovation sector companies. You got it. I thought that was going to be under number 3, advertising. And on our LinkedIn.

303
00:55:01.870 --> 00:55:04.510

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Smash that like and subscribe button for all of our channels.

304
00:55:04.580 --> 00:55:06.139
Boardroom: The loan fund.

305
00:55:06.160 --> 00:55:24.060
Boardroom: So, both of these funds are revolving funds, which means as companies, or businesses pay them off, so again, both of our loans that are available to any business in Berkeley, so just by locating in Berkeley, they can take advantage of these special opportunities to access capital, and as Vincent talked about.

306
00:55:24.060 --> 00:55:32.690
Boardroom: Working Solutions, which is a CDFI lender, is our partner on this. They have a great depth of technical assistance, and

307
00:55:33.120 --> 00:55:39.679
Boardroom: A better experience for borrowers, so they can pay their loans off, you know, electronically, and it's much, smoother.

308
00:55:40.230 --> 00:55:56.729
Boardroom: So, as those borrowers that are currently in the portfolio pay back with interest, then the pot grows larger, and we can turn around and make more loans out of that pot. So, it continues to go. One of our funds was seeded in 2020 with CARES Act dollars, and it has since revolved one time completely.

309
00:55:56.730 --> 00:56:02.150
Boardroom: The other one was, granted to the city in 1980, and I believe that fund has turned over with interest.

310
00:56:02.150 --> 00:56:04.660
Boardroom: More than 3 times. So,

311
00:56:05.140 --> 00:56:07.920
Boardroom: We continue… the beat goes on with the loan funds.

312
00:56:08.160 --> 00:56:12.540
Boardroom: Speaking about streamlining, and I'll let Vincent add anything beyond this piece.

313
00:56:12.550 --> 00:56:31.780

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I just wanted to remind, folks have been award we won in 2024 from the State Planning Association for, zoning support for Berkeley businesses. We recognize that business models change over time, and, though our zoning code does change quite often, sometimes our definitions of businesses are.

314
00:56:31.940 --> 00:56:37.579
Boardroom: sort of outdated, like the VCR rental tape category we used to have.

315
00:56:37.800 --> 00:56:49.929
Boardroom: Businesses evolved, time marches on, and our, code related to business uses was more outdated, and so we came up with a number of strategies to sort of, embrace new uses and think about

316
00:56:49.930 --> 00:57:14.679
Boardroom: flexible formats for new businesses, like experiential retail or commercial recreation centers, where, you know, not only are you going to go buy something in a store, you might be going to buy something and also have an experience. You've gone to the fabric store, you've bought the fabric, but then you also take a class in learning how to do sewing, for example. And that's group instruction, which in our code was a totally separate category with a higher bar to meet for

317
00:57:14.680 --> 00:57:22.420
Boardroom: permitting, and now we've been able to equalize a lot of those things and really sort of open up some of those uses that offer our businesses

318
00:57:22.420 --> 00:57:30.739
Boardroom: more opportunities, again, back to the time and money piece, to get going in our commercial districts faster. Vincent, did you want to add anything to that piece?

319
00:57:30.770 --> 00:57:37.009
Boardroom: I'm not on screen lining, but it… back to your question about, you know, the qualitative

320
00:57:37.080 --> 00:57:39.039
Boardroom: Data on businesses' exit.

321
00:57:39.470 --> 00:57:40.420
Boardroom: Or…

322

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:57:40.710 --> 00:57:52.759
Boardroom: and the legacy businesses, there are two things I want to say about that. One is, we've got to figure out a way to train the businesses to think about their exit strategy 3 or 4 years sooner.

323
00:57:53.060 --> 00:57:56.950
Boardroom: Because an organization like Project Equity that we have a contract with.

324
00:57:57.040 --> 00:58:14.689
Boardroom: If we… if they know that someone wants to exit their business, they can set up a plan for their employees to take it over. They can set up a plan for them to sell it to someone. They can help them do evaluation. But instead, what happens is someone comes to us and says, I'm closing my business in 30, 60, 90 days.

325
00:58:14.930 --> 00:58:24.029
Boardroom: That's not a long enough ramp for us to provide or bring in the technical assistance they need to make this transition so the business stays in operation.

326
00:58:24.220 --> 00:58:33.350
Boardroom: So, that's one thing that we need to figure out, how we can identify people who are in that space where they're looking to leave the business for one reason or another.

327
00:58:33.540 --> 00:58:37.660
Boardroom: And get them the help so that this business can transition to someone else.

328
00:58:37.810 --> 00:58:57.130
Boardroom: I think it's also important that you clarify when you say why companies don't stay, are you referring to small businesses that are retail, restaurant, professional service, or were you asking about why startups spinning out from UC Berkeley go elsewhere? Are you asking about, like, larger employers? Did you have any in mind, or do you want to hear all of the above?

329
00:58:57.930 --> 00:59:00.410
Boardroom: Yeah, I think we've discussed…

330
00:59:00.580 --> 00:59:13.139
Boardroom: startups a little bit, but, it might actually be maybe beneficial to hear the answer for both, to the extent you have any. Great, yeah, we will say we do track

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

331
00:59:13.340 --> 00:59:26.439
Boardroom: Because we have an annual collection process that goes into this report that happens today of reviewing our innovation sector database, and then anytime we know that a company has left and is still alive.

332
00:59:26.560 --> 00:59:31.740
Boardroom: Which, I guess the first part of my answer is, usually they leave because they failed.

333
00:59:31.870 --> 00:59:44.650
Boardroom: Like, they just couldn't raise enough venture capital, or they're no longer around. Sadly, we hear that a lot. And that's just the nature of being in a startup business. So that's the number one reason why they don't stay, is because they're not in business anymore.

334
00:59:44.670 --> 00:59:58.659
Boardroom: But for those that have left here, I'd say the… when we do do an exit interview, when we do track it, it's often that either for some personal reason, you know, founder's mother is sick moving back home, so they're gonna take their startup back home, or…

335
00:59:58.660 --> 01:00:06.180
Boardroom: The team wanted to go remote, so they've given up their office space so that they can employ a remote workforce.

336
01:00:06.310 --> 01:00:25.690
Boardroom: But the other… when they leave Berkeley and go elsewhere nearby, which is rare, it's usually just because there was a space that better fit their growth needs. So I… we've not generally heard, like, we didn't like being in Berkeley. They almost always say, we love Berkeley, we want to stay in Berkeley, we looked first in Berkeley.

337
01:00:25.690 --> 01:00:40.150
Boardroom: Berkeley was our first choice, but this spot in Oakland or Emeryville, or San Leandro or Alameda had a better layout, or it was cheaper, or, you know, whatever reason that just… they couldn't find what they looked for in Berkeley.

338
01:00:41.300 --> 01:00:53.249
Boardroom: Were you gonna… you were gonna bring up maybe a different one? Did you have a second point you wanted to touch on? I don't remember, honestly. Okay, I'll touch on a couple of the other questions that you asked that,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

339
01:00:53.250 --> 01:01:04.459
Boardroom: Eleanor kindly assigned to me, so the… No, no, it's great. The… we already mentioned with the startups finding out about grants, I just want to point out that in addition to our newsletters.

340
01:01:04.520 --> 01:01:08.060
Boardroom: We also work very closely with Skydeck.

341
01:01:08.210 --> 01:01:13.589
Boardroom: with Baker Labs, with all of the innovation and entrepreneurship programs on campus.

342
01:01:13.780 --> 01:01:26.430
Boardroom: to not just tell it through our communication channels, but to tell it through theirs. And then we also email every year anyone that has received an R&D grant from the federal government about the program, so we can pull that list down.

343
01:01:26.640 --> 01:01:39.840
Boardroom: from the U.S. Small Business Administration website, although it's not always perfect, so, you know, all of you being channels to carry this information in your district is helpful as well. In terms of

344
01:01:39.840 --> 01:01:49.340
Boardroom: the advertising commercial opportunities nationally, I'm so glad you bring that up. This is a huge opportunity area for our city. Historically, we had…

345
01:01:49.340 --> 01:02:00.749
Boardroom: less available space than we had interest in staying in Berkeley, and thus the Office of Economic Development never had a business attraction program. We did more of what Eleanor mentioned earlier, which is

346
01:02:01.030 --> 01:02:13.699
Boardroom: Economic gardening or retention, and we work very closely with a range of stakeholders and partners to always keep our eyes and ears on the ground for when a company is growing or expanding, how we can help them to stay locally.

347
01:02:13.700 --> 01:02:22.500
Boardroom: What we haven't done is go try to catch a fish from Michigan or Delaware or Texas as they consider a Northern California location.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

348
01:02:22.500 --> 01:02:26.810
Boardroom: And so we actually convened our first meeting on this topic in October.

349
01:02:26.920 --> 01:02:43.720
Boardroom: with, actually, thank you, Paul, for joining us at that, as well as the Chief Marketing and Communications Officer at UC Berkeley, and the Chief Innovation Entrepreneurship Officer at UC Berkeley, and many of our private sector developers, to begin to flesh out what a business attraction strategy would look like.

350
01:02:44.130 --> 01:03:01.970
Boardroom: The short answer right now is that we have a lot of good ideas of what that campaign could do, and we don't have any money to do it. So, this is an opportunity area to either work with our city council, in the future to allocate some funding for business attraction, and also our private sector partners.

351
01:03:01.970 --> 01:03:06.110
Boardroom: We've been asking to make contributions to help us support it.

352
01:03:06.110 --> 01:03:20.189
Boardroom: But at the moment, we're relying on the courtesy of our partners at UC Berkeley to let us in on things that would help us with business attraction. So, for example, the JP Morgan Healthcare Conference, which brings hundreds of thousands of people to San Francisco

353
01:03:20.190 --> 01:03:30.860
Boardroom: to talk about life science and healthcare. We were able to participate in UC Berkeley's event and present our, Innovate and Grow in Berkeley, California slides and Why Berkeley.

354
01:03:30.860 --> 01:03:32.460
Boardroom: They,

355
01:03:32.460 --> 01:03:55.539
Boardroom: the Bakar Bioengenuity Hub, which has been mentioned several times, will have a table at the big annual bio convention that's happening this year in San Diego, and we'll be attending alongside and using their table to talk about not just why UC Berkeley, but why Berkeley, California. So we're very grateful to our partners at UC, which have been willing to share some space and floor time with us.

356

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:03:55.560 --> 01:04:11.230
Boardroom: But we would love to see more opportunity to understand how Berkeley is being perceived in national markets, and even international markets, and where our messaging should show up, and what are some of the most… we know a lot of the why Berkeley points, but which ones are going to resonate best?

357
01:04:11.230 --> 01:04:17.219
Boardroom: With which audience would require a little bit of market testing and research, which costs money to do.

358
01:04:17.650 --> 01:04:25.890
Boardroom: We also welcome your ideas and thoughts on this. You all have vast networks, and if you have some ideas about what should go in the buildings, we're all yours.

359
01:04:28.090 --> 01:04:29.970
Boardroom: I think that got all five.

360
01:04:31.130 --> 01:04:32.040
Boardroom: I think so.

361
01:04:32.420 --> 01:04:35.740
Boardroom: Very good! Okay! Any other questions?

362
01:04:36.240 --> 01:04:42.440
Boardroom: Okay, I'm gonna open it up to public comment, then we'll come back around for council comments. Is there any public comment on this item?

363
01:04:44.240 --> 01:04:45.520
Boardroom: Very good.

364
01:04:45.750 --> 01:05:04.090
Boardroom: John's making his way over. Oh, you didn't have to do that, it's okay. Okay. John Kaner, Downtown Berkeley Association, I just want to thank the OED team. I mean, the partnership is extraordinary. We're going through the renewal, and Eleanor's been a hero with that.

365
01:05:04.100 --> 01:05:07.219
Boardroom: Working with the REL on vacancy work,

366
01:05:07.350 --> 01:05:25.240

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Vincent has been amazing working on, the retail vacancy and also supporting us in the renewal, and Liz with Berkeley Startup Cluster is just doing incredible work. Flying a horse is a big, big deal. We want to make sure that's successful. That whole Shattuck block, the fact that they're moving forward.

367
01:05:25.400 --> 01:05:27.220
Boardroom: is extraordinary.

368
01:05:27.550 --> 01:05:33.829
Boardroom: Core spaces, as you may have heard, is also moving forward this summer, late fall. That's a big, big deal.

369
01:05:33.950 --> 01:05:47.540
Boardroom: So we have an opportunity to really turn the tide in the downtown, so we're gonna hopefully be turning the corner, and thank you, Igor, for all the great work. There was a question about why are businesses leaving, or why are people coming downtown?

370
01:05:47.810 --> 01:06:02.650
Boardroom: To be honest, we're making a lot of progress on homeless, our count is down to a near all-time low, but all you need to do is sit in BART Plaza for an hour or so, and have 2 or 3 psychotic episodes or meth things, or just feeling uncomfortable.

371
01:06:02.740 --> 01:06:19.530
Boardroom: And, you know, it's really… we gotta create a welcoming downtown. So, our social service outreach initiatives, like the CARE court, staff is doing a great job, but we also need to enforce our ordinances. We did this in late 2019, before the pandemic. We really switched things around.

372
01:06:19.530 --> 01:06:24.190
Boardroom: And I want to thank Paul and PD and all for all that work, but we need to continue to do that.

373
01:06:24.510 --> 01:06:35.789
Boardroom: OED needs a discretionary budget. In December 2 years ago, I put together a list of 11 programs in San Francisco that they have.

374
01:06:35.900 --> 01:06:45.289
Boardroom: And Lori's even given more money, he's gone out and raised $60 million. I mean, they obviously have a lot of corporate folks, but they need a discretionary budget.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

375
01:06:45.400 --> 01:07:03.430
Boardroom: They do great work, but just a little bit of money. I understand now, really difficult budget times now, it ain't gonna happen this year, it may not happen next year. Thanks, John. Can I just say one more thing? Wait, John, I'm sorry. You're out of time. Office space and events. Thank you. Yep.

376
01:07:03.790 --> 01:07:04.910
Boardroom: Heard.

377
01:07:05.120 --> 01:07:06.240
Boardroom: Anyone else?

378
01:07:06.600 --> 01:07:08.820
Boardroom: Anita?

379
01:07:09.240 --> 01:07:21.270
Boardroom: Sure, go for it. Since we don't have a huge line of people, you can donate a minute of your time to John. I also, it's really important for us, Class A office space.

380
01:07:21.430 --> 01:07:35.479
Boardroom: We're hearing in San Francisco that actually housing is slowing down, office space is taking off, it's a lot of the AI boom, a lot that's spilling over here. The MSCI building just leased on Addison.

381
01:07:35.500 --> 01:07:51.340
Boardroom: And, Milvia, which is a big deal. So, we're seeing the office demand. We need the startup someplace to go, and it's also daytime economy. We need condos also, which we've talked to you guys about. And then events. We need to support events, and I know there's a lot of work being done here.

382
01:07:51.340 --> 01:07:57.239
Boardroom: go to First Thursdays in San Francisco, thousands of people on First Street.

383
01:07:57.240 --> 01:08:12.380
Boardroom: San Francisco's doing a great job. I know we're working hard at it, it's a lot of heart, it takes a lot of resources, but we need to give, you know, joyous reasons for people to come downtown. And we're doing Make Music Day, which we'll hear more about, working with Shoshana on summer solstice. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

384
01:08:13.830 --> 01:08:18.439
Boardroom: Thank you. Okay, any… is there anyone online who has public comment on this item?

385
01:08:19.979 --> 01:08:23.129
Boardroom: There's, 3 hands raised. Very good.

386
01:08:24.510 --> 01:08:26.860
Boardroom: First speaker is Kelly Hammergren.

387
01:08:32.830 --> 01:08:37.800
kelly hammargren: Thank you. The downtown was my neighborhood.

388
01:08:38.120 --> 01:08:43.420
kelly hammargren: But there's hardly a reason to go there with the number of vacancies, and

389
01:08:43.950 --> 01:08:51.470
kelly hammargren: Vinyl window film doesn't really draw me to the downtown, except to take photos of the pit behind the screen.

390
01:08:51.640 --> 01:09:01.280
kelly hammargren: And the Oscars are next Sunday. The Shattuck Cinemas used to be a huge… used to have huge lines to see those films on the big screen.

391
01:09:01.660 --> 01:09:08.920
kelly hammargren: But of course, that's now gone. Elmwood, with its movie theater, is now my adopted neighborhood.

392
01:09:09.090 --> 01:09:18.219
kelly hammargren: But I constantly worry that as the upzoning target in the quarter plan, that will be the end of that pleasurable neighborhood.

393
01:09:18.729 --> 01:09:27.289
kelly hammargren: We heard from Dina Belzer in her economic report to the Planning Commission not to worry about the corridors upzoning.

394
01:09:27.399 --> 01:09:38.460
kelly hammargren: But hearing from the business owners that same evening that are not property owners, and your report, and just feet on the street tells me a different story.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

395
01:09:38.660 --> 01:09:48.660
kelly hammargren: That, construction really does have a detrimental effect on our local businesses, and unless we do something about it, we're…

396
01:09:48.920 --> 01:09:54.809
kelly hammargren: one of the draws for people to be here is gonna be gone.

397
01:09:55.200 --> 01:10:01.359
kelly hammargren: And so, I really wish that we would have heard more about that.

398
01:10:02.330 --> 01:10:07.420
kelly hammargren: And I don't see a clock, but I expect I'm just about out of time.

399
01:10:09.710 --> 01:10:11.430
Boardroom: You have 25 seconds.

400
01:10:12.970 --> 01:10:14.160
kelly hammargren: I don't think I can…

401
01:10:15.540 --> 01:10:20.129
kelly hammargren: I think I've really covered what I want to say. I just really wish we had

402
01:10:20.340 --> 01:10:23.310
kelly hammargren: More focus on our…

403
01:10:23.500 --> 01:10:30.200
kelly hammargren: small business owners who don't own the property, because those are the ones I worry about the most. Thank you.

404
01:10:30.520 --> 01:10:31.540
Boardroom: Thanks, Kelly.

405
01:10:33.820 --> 01:10:40.229
Boardroom: Okay, the, next speaker is Cheryl Davil, a former council member.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

406
01:10:44.320 --> 01:10:51.670
Cheryl Davila, Former Councilmember, Founder CEMTF: So, for one, the commercial rents are kind of high, and people are leaving for those reasons. And, you know,

407
01:10:54.500 --> 01:10:58.080
Cheryl Davila, Former Councilmember, Founder CEMTF: the home… listess issue.

408
01:10:59.000 --> 01:11:03.300
Cheryl Davila, Former Councilmember, Founder CEMTF: is because people can't afford the freakin' high rents in Berkeley.

409
01:11:03.470 --> 01:11:08.600
Cheryl Davila, Former Councilmember, Founder CEMTF: And then you create an issue by not picking up the trash, allowing

410
01:11:09.040 --> 01:11:16.770
Cheryl Davila, Former Councilmember, Founder CEMTF: Other services that people may need that could help them get off the streets, and you make it…

411
01:11:17.230 --> 01:11:24.169
Cheryl Davila, Former Councilmember, Founder CEMTF: By not picking up the trash, by creating all these issues for the unhoused community.

412
01:11:24.470 --> 01:11:28.349
Cheryl Davila, Former Councilmember, Founder CEMTF: It becomes, like, a complete…

413
01:11:28.760 --> 01:11:37.420
Cheryl Davila, Former Councilmember, Founder CEMTF: Eyesore for most. And that's… you do that on purpose, so then you can enforce, arrest, and eliminate.

414
01:11:37.600 --> 01:11:41.760
Cheryl Davila, Former Councilmember, Founder CEMTF: So you need to really show some compassion.

415
01:11:41.910 --> 01:11:57.220
Cheryl Davila, Former Councilmember, Founder CEMTF: and empathy and love for all of the community that lives in Berkeley. People that live on the

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

streets in Berkeley come back to Berkeley because they were here to begin with. This is their land, this is their home. And…

416
01:11:57.500 --> 01:12:04.400
Cheryl Davila, Former Councilmember, Founder CEMTF: The way that these… look at what's down at the Aquatic park. Completely empty.

417
01:12:04.660 --> 01:12:19.759
Cheryl Davila, Former Councilmember, Founder CEMTF: Why is that empty? All those buildings are empty! That's a damn shame. All that money for what? You could be housing people in those empty buildings that are just sitting there occupying space with no people inside.

418
01:12:20.380 --> 01:12:24.740
Cheryl Davila, Former Councilmember, Founder CEMTF: And there's how many buildings like that in Berkeley? How many units?

419
01:12:24.980 --> 01:12:41.170
Cheryl Davila, Former Councilmember, Founder CEMTF: You know, y'all need to do better. Every time I talk to people about Berkeley, they're like, what the hell is up with Berkeley? Berkeley sucks. All the people on council suck. That's what they say. They're not happy with you. Nobody is. Y'all need to get voted out, replaced.

420
01:12:41.360 --> 01:12:46.959
Cheryl Davila, Former Councilmember, Founder CEMTF: Move on to something different, because you're not doing any good for Berkeley. Free Palestine.

421
01:12:47.520 --> 01:12:48.999
Boardroom: Thank you, Cheryl.

422
01:12:51.390 --> 01:12:57.080
Boardroom: Next is a speaker with a phone number ending in 000.

423
01:13:08.570 --> 01:13:10.519
Boardroom: You should be able to unmute.

424
01:13:21.900 --> 01:13:30.600
Boardroom: Okay, well… That, that was it, that was the last… speakers, so I guess, okay.

425
01:13:30.720 --> 01:13:42.869

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: We are complete. All right, very good. I'm gonna move on to Council comments, starting with Councilmember Taplin. Thank you. First, I want to say I'm also interested in, SF's legacy business work.

426
01:13:43.830 --> 01:13:49.480
Boardroom: a number of the businesses in my district have reached out to me about that. Also, I'm…

427
01:13:49.700 --> 01:13:55.650
Boardroom: I'm really encouraged by this proactive stance we're taking towards business attraction.

428
01:13:57.100 --> 01:14:05.729
Boardroom: It's important to note that we're no longer just competing with Amoryville and South San Francisco, we're now also competing with Alameda and San Leandro.

429
01:14:08.580 --> 01:14:19.699
Boardroom: I know that we have a difficult budget outlook before us, but I'm happy to team up and put our heads together around permit streamlining and identifying potential revenue streams to support OED's business attraction efforts. Thank you.

430
01:14:21.350 --> 01:14:25.119
Boardroom: Thank you, Councilmember Trey Gubb.

431
01:14:27.300 --> 01:14:37.960
Boardroom: Thank you for the presentation and for the tremendous amount of work that has gone into preparing this report and advancing Berkeley's economic development efforts.

432
01:14:38.510 --> 01:14:51.499
Boardroom: I appreciate the collaboration across city departments that contributes to this work, and all the ongoing efforts to streamline business permitting.

433
01:14:51.680 --> 01:15:03.020
Boardroom: to support our local businesses, and to strengthen, our Berkeley, commercial districts, as well as the downtown.

434
01:15:03.480 --> 01:15:12.809
Boardroom: I am… While there's a ton of work to do, obviously, as we…

435

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:15:13.210 --> 01:15:24.739
Boardroom: The pandemic is, not over yet, and for, you know, in the small business sense, and we, that shows up in the data.

436
01:15:25.390 --> 01:15:37.879
Boardroom: I was very, very pleased in this report to read that we as Berkeley, are turning the corner in a very positive way on tackling,

437
01:15:37.930 --> 01:15:49.380
Boardroom: commercial vacancies all over the city. And I was very pleased to see that for the first time since the pandemic,

438
01:15:49.870 --> 01:15:57.429
Boardroom: Barclays, downtown vacancies are below 10%.

439
01:15:57.680 --> 01:16:14.419
Boardroom: Obviously, we have more work to do, and our office will continue to engage with, your team around that. But also, I just want to appreciate, all, that you have been doing,

440
01:16:14.510 --> 01:16:33.580
Boardroom: on initiatives such as the vacant storefronts, work, which I understand will be, coming back to Council, later, in the spring. As well as the programs you've been spearheading to support startups, including grant and loan opportunities.

441
01:16:34.600 --> 01:16:42.149
Boardroom: Efforts to bring more visibility to Barclays commercial opportunities regionally, nationally, and internationally

442
01:16:42.230 --> 01:16:55.479
Boardroom: are very important, and I'm excited about the work you're doing in that area as well. You also mentioned the importance of special events that bring hundreds of people and significant revenue to the city.

443
01:16:55.780 --> 01:17:07.399
Boardroom: Our office is very excited to do additional work in this area and support efforts that help activate our commercial districts and bring more people into Berkeley.

444
01:17:07.800 --> 01:17:11.279
Boardroom: And finally, I appreciate your thoughtful approach.

445

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:17:11.900 --> 01:17:14.259
Boardroom: Around learning from best practices.

446
01:17:14.520 --> 01:17:18.140
Boardroom: Including those from other cities.

447
01:17:19.120 --> 01:17:24.979
Boardroom: Or cities and counties, as well as the attention to understanding what

448
01:17:25.060 --> 01:17:42.720
Boardroom: I don't know if anyone got the San Francisco joke. As well as the attention to understanding what helps businesses thrive and remain in Berkeley. Thank you again for the dedication and care that has gone into this work. Excited to partner with you,

449
01:17:42.720 --> 01:17:51.240
Boardroom: We have a lot of work to do, but as the Downtown Berkeley Councilmember, I can, fully say, even though that also will be borrowing from

450
01:17:51.240 --> 01:18:03.970
Boardroom: San Francisco's mayor and some… but downtown Berkeley is on the rise, and that would not be possible without, all of your consorted efforts, and I just want to thank you.

451
01:18:07.350 --> 01:18:10.490
Boardroom: Okay, thank you very much, Councilmember Humbert.

452
01:18:11.150 --> 01:18:12.569
Boardroom: Thank you, Madam Mayor.

453
01:18:12.880 --> 01:18:21.009
Boardroom: And I would join generally in the comments that, Councilmember Triggroup just, just made, but I have my own comments, too.

454
01:18:21.320 --> 01:18:36.099
Boardroom: Major thanks to you four, Elizabeth, Eleanor, Ruel, and Vincent, and everyone else, at OED for your work on this presentation, and overall efforts to keep our economy and business strong.

455
01:18:36.430 --> 01:18:46.840

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: It's been said, you know, many, many times, but it's just true, you punch way above your weight. You really do. It's so impressive.

456
01:18:47.210 --> 01:19:06.970
Boardroom: I think a lot of Berkeley residents don't understand just how much OED does, but they benefit from it every single day as they enjoy all of our wonderful local businesses, cultural institutions, and even the basic city services, frankly, that our strong local economy helps support through taxes and fees.

457
01:19:07.710 --> 01:19:26.440
Boardroom: So even though everyday folks may not say it explicitly, I want OED to know that anytime someone praises our small businesses or talks about what makes Berkeley such a unique and wonderful place, they are, by extension, praising your work, the work of the OED, the Office of Economic Development.

458
01:19:26.880 --> 01:19:32.849
Boardroom: You're also really skilled, I have to say, and I know my Chief of Staff agrees.

459
01:19:32.900 --> 01:19:48.320
Boardroom: At making PowerPoint presentations. Honestly, all city departments and a lot of us here on Council, for example, me, could learn a thing or two from you about how informative and well put together your presentations are.

460
01:19:48.560 --> 01:20:05.809
Boardroom: And as we grapple with a significant budget deficit, your work is more important than ever, because expanding our tax base is one of the key ways that we can ameliorate and hopefully eventually resolve our long-term deficits. So, thank you again.

461
01:20:05.810 --> 01:20:08.580
Boardroom: For your wonderful work, and your dedication.

462
01:20:08.760 --> 01:20:16.229
Boardroom: Which is amazing, and taking the time to share it with us. Thanks. Thank you. Thank you. Vice Mayor Lenapara.

463
01:20:17.730 --> 01:20:21.180
Boardroom: I just wanted to thank you all for the presentation and for your work.

464

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:20:21.270 --> 01:20:22.439
Boardroom: That's it. Thanks.

465
01:20:22.520 --> 01:20:31.259
Boardroom: Thank you. Councilmember Blackaby. Thanks, Madam Mayor. Thanks again to Eleanor, Vincent, Ruel, and Liz for the time and the great conversation.

466
01:20:31.260 --> 01:20:44.830
Boardroom: You know, I talked about this before, this is only the second time we've done this presentation since I've been on the Council, and I really look forward to it, because it's, inspiring, and it gives us lots of opportunities to dream big and think about what's possible, and that's really exciting, I think.

467
01:20:44.830 --> 01:21:01.669
Boardroom: From a council perspective, and just from a community perspective. You know, we have a huge advantage with this just massive innovation engine just sort of a few blocks away. And I see so much of our strategy is just, you know, at least when it comes to the innovation part, which is one part of many parts, but…

468
01:21:01.670 --> 01:21:12.070
Boardroom: you know, how do we hang on to our fair share of that output and keep it here? And the good news is there's a lot of activity, and there is a lot of opportunity there.

469
01:21:12.070 --> 01:21:31.320
Boardroom: So, three things that I, you know, would love to continue to team up on that we've… you've mentioned and some other colleagues have mentioned. One thing that I know we kind of collaborated on earlier this, last fall was this research project that, a couple of, some of the undergrads did at UC Berkeley about,

470
01:21:31.320 --> 01:21:44.270
Boardroom: Some of these questions about how do we keep more activity in Berkeley, why are companies leaving, or why are the companies that left, why did they not consider locating in Berkeley? And a couple of the themes that came out of that research was, one.

471
01:21:44.400 --> 01:21:55.289
Boardroom: sometimes just the importance of personal outreach. I think there was an anecdote of a company where the mayor of Detroit called them and said, hey, why don't you come look… right? Like, some of those things are meaningful.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

472
01:21:55.290 --> 01:22:10.150
Boardroom: And then also the importance of having, like, anchor companies in a particular industry, so it's like, it's a lot easier to build an ecosystem when, you know, it's a chicken and the egg problem, but it's a lot easier to build an ecosystem when you've got an anchor company that represents that industry that other companies want to be around.

473
01:22:10.190 --> 01:22:28.330
Boardroom: So to that end, you know, thinking about this targeted recruitment, retention effort, the, you know, adding some extra elbow grease to that, I'm happy to volunteer the mayor's call time to, like, make some calls. I'd be happy to make calls, I think a lot of us would be happy to make calls, but if, like, if part of this is just…

474
01:22:28.550 --> 01:22:42.410
Boardroom: Finding those opportunities, people whose leases are about to run out, people in neighboring jurisdictions whose leases are about to run out, like, there's probably creative ways, and then putting some person hours, person time behind it, and that personal gesture, just to…

475
01:22:42.410 --> 01:22:51.380
Boardroom: try and make the case. I think any of us would be really happy to do that. I know I would love to, and I'll speak for the mayor and say that I know she would love to, also.

476
01:22:51.380 --> 01:22:56.540
Boardroom: So, anything in that bucket, I'm super interested in partnering with you.

477
01:22:56.670 --> 01:23:02.860
Boardroom: The second we heard a little bit about the permitting piece. I almost wonder if there's some sort of a, fast track.

478
01:23:02.960 --> 01:23:19.099
Boardroom: program, we brand it, we do something with it, but we make a big deal about this fast-track effort, and maybe it's a combination of permitting, some sort of limited incentives, maybe it's helping get people connected with real estate and office space opportunities. But just thinking about how we solve that.

479
01:23:19.100 --> 01:23:33.000
Boardroom: I'm about to leave campus, where do I go? I'm about to leave the accelerator, where do I go? Well, we've got a fast-track program here to keep you in Berkeley. And we brand it, and we put some press behind

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

it, and it demonstrates our commitment to sort of doing this. I think, again, I'm…

480
01:23:33.090 --> 01:23:40.599
Boardroom: just thinking out loud. There could be something there. And third, I know Councilmember Taplin mentioned it, Councilmember Humbert, other people have mentioned it, this…

481
01:23:40.710 --> 01:23:50.649
Boardroom: super interesting on the business attraction, kind of program, and I know there is a funding element to it, but look, unlike a lot of

482
01:23:50.730 --> 01:23:59.750
Boardroom: the city operation, where we have a lot of cost centers that are providing services, you guys are, are, are, you're a revenue driver. And so,

483
01:23:59.750 --> 01:24:17.480
Boardroom: thinking about this as an investment in the future that's gonna pay dividends, it's not… you're not a cost center, you're a revenue driver, and we need to make those investments. So yes, budget times are tough, and yes, we have some constraints on what we… maybe what we can do immediately, but I think, as we've seen, these efforts

484
01:24:17.480 --> 01:24:28.950
Boardroom: pay off in spades, and we can't just be so focused on what's happening between now and June that we don't think about June of 27 and June of 28 and June 29th, and the investments we need to make now, so…

485
01:24:28.950 --> 01:24:38.769
Boardroom: We may have to be creative, and figure it out, but, you know, I'm super interested, and if we came up with a really tight, compelling program of what that would look like.

486
01:24:38.840 --> 01:24:52.479
Boardroom: figuring out how to fund it, even in a tough climate, because I just, I think it's so critical for the future of our economy and the future of the community, and then ultimately making those budget, decisions easier in the out years. So…

487
01:24:52.630 --> 01:25:02.559
Boardroom: Those are 3 thoughts. Love to partner with you, and continue to partner with you. Our office loves to work with you all, and there's just so much opportunity. Looking forward to the year ahead. Thank you very much.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

488
01:25:03.790 --> 01:25:28.710
Boardroom: Thank you! Yeah, those great comments, and yeah, absolutely. We just had our retreat, so we were talking about how you're supposed to speak from a place of I, like, I think, but you're welcome to offer my time, because I… this is something that I really do enjoy doing. And I actually, yeah, so Flying Horse Investments, I actually took a meeting with them. We were able to do the unveiling for the clock. If you hadn't noticed, in downtown Berkeley.

489
01:25:28.710 --> 01:25:47.290
Boardroom: there is now a working clock in front of that space, so I'm very excited to see that filled. I called Half Price Books, both spoke with people who work there, and also with the people who… the landlord, to see what happened there, to try to get them to stay. Oh, I think someone opened a laptop, and it's…

490
01:25:47.640 --> 01:25:50.940
Boardroom: the sound is…

491
01:25:51.960 --> 01:26:04.249
Boardroom: echoing. Anyway, but my point is, and so I also have a community and business relations coordinator, Andrea Bernal, who's sitting here, and, we've actually been going to…

492
01:26:04.250 --> 01:26:14.560
Boardroom: businesses, like, walking downtown, and I've actually run into Vincent on the street doing these counts, so I just want to tell you all, he's not lying, he really is out there on the street.

493
01:26:14.560 --> 01:26:20.349
Boardroom: I do want to focus on a few things that you're talking about, this entrepreneurship and innovation piece.

494
01:26:20.350 --> 01:26:23.329
Boardroom: I just really love that map.

495
01:26:23.330 --> 01:26:48.329
Boardroom: as well, the innovation ecosystem. I think that's really incredibly incredible, and I really want to highlight for folks just really how amazing our relationship is with UC Berkeley, and how much that's gotten even better. I'm very fortunate to, be able to connect with the Chancellor, and we talk a lot about improving business, and supporting business, and our innovation and entrepreneur, ecosystem here

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

496
01:26:48.330 --> 01:26:49.630
Boardroom: in the city.

497
01:26:49.670 --> 01:27:14.520
Boardroom: they… I just want to really highlight this. UC Berkeley leads globally in venture-backed startups. I mean, that's a huge differentiator for a city, and it's something that we really should be bragging about. It's really incredible that we have an increase in both seed and venture capital raised by the startups, because, I mean, if you heard what was being said, it's actually gone down for other places, so the fact that we've had an increase is amazing.

498
01:27:14.750 --> 01:27:30.300
Boardroom: I really also thought it was great that we have this quantified, information about the innovation and entrepreneurship benefits to our city. I really want to make sure we're continuing to get that data, because it's very helpful to understand, like, how are all of…

499
01:27:30.300 --> 01:27:37.800
Boardroom: these different startups benefiting our city, and how can we continue to find spaces to keep them there? Really just…

500
01:27:37.800 --> 01:27:42.679
Boardroom: you all do an incredible job, and I have to say, I get to connect with this

501
01:27:42.920 --> 01:28:03.269
Boardroom: team this department probably more than most departments, and I really get to see how amazing, you all are, and get to hear from business owners and, other community members about how helpful you are, too. So that, you know, that individual outreach, like, to Alachi, that makes all the difference. So, thank you very much for doing that.

502
01:28:04.780 --> 01:28:21.839
Boardroom: again, want to highlight our decrease in commercial vacancy rate. That's amazing. Like, I know that that takes a lot of time, and I know that that's something that we need to continue to improve on, so yes, I'm happy to make a phone call, whatever you need, let me know.

503
01:28:21.840 --> 01:28:34.410
Boardroom: the fact that food and beverage is right behind retail, really fascinating information, because, we are a food and beverage city, and so that's… that's awesome. And to just highlight, I know Taste of North Berkeley is coming up.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

504
01:28:34.410 --> 01:28:54.229
Boardroom: I see you, Jane. I'm surprised you didn't come up to tell us that. But, you know, Councilmember O'Keefe and I actually went last year and, and, you know, took pictures and did the Discovered in Berkeley hashtag, so as you're going out and eating in, around the city, or going to shop places, you know, use that Discovered in Berkeley hashtag. I know I do all the time.

505
01:28:55.230 --> 01:29:18.040
Boardroom: Green Business Program, would love to see this grow. I know that you're already working with our different business districts, but I am hopeful that we can continue to grow that. I bet there are a lot of people that don't know about it, and I wonder if we can do more partnerships to increase that. Just seeing how much water was saved, power, I think there's a few other different metrics that were in there.

506
01:29:18.040 --> 01:29:19.650
Boardroom: really impressive.

507
01:29:19.650 --> 01:29:23.979
Boardroom: And, those partnerships between our local businesses and our students,

508
01:29:23.980 --> 01:29:48.199
Boardroom: really thinking about if we're a city that wants to encourage families also, and to support families, we want to make sure that those students have opportunities to, you know, have different career paths, and so I really love that we do that. I think that's very special, and I know it makes a big impact on our students. So, just brain dump of all the things, but thank you all so much. Really appreciate the presentation, and thanks for being here today.

509
01:29:48.360 --> 01:30:06.650
Boardroom: And, next year, I'm gonna pack this house. I want more people to see this presentation, because, this information should get out into the community more, and I know it's public on the website, but having a presentation, I think, really just deepens the experience. So, next year.

510
01:30:06.650 --> 01:30:11.180
Boardroom: We're gonna pack this house. Okay. Alright, thank you very much, everyone.

511
01:30:11.180 --> 01:30:16.060
Boardroom: I am going to see if there's a motion to adjourn.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

512
01:30:16.070 --> 01:30:20.049
Boardroom: Second. Okay, and is there any opposition to adjournment?

513
01:30:20.510 --> 01:30:25.690
Boardroom: Okay, we will adjourn by unanimous consent. Meeting is adjourned. Thank you all so much!

514
01:30:59.330 --> 01:31:02.030
Boardroom: Okay, let's get started, everyone!

515
01:31:02.730 --> 01:31:04.589
Boardroom: Are you ready?

516
01:31:05.070 --> 01:31:19.620
Boardroom: Okay. I'm calling to order the Berkeley City Council meeting. Today is Tuesday, March 10th, 2026. It is 6.04 p.m. Clerk, can you please take the roll? Okay, Councilmember Kesarwani? Here. Kaplan? Present.

517
01:31:19.620 --> 01:31:26.659
Boardroom: Bartlett? Here. Craige? Peasant. O'Keefe? Here. Blackaby? Here. Unapara? Here.

518
01:31:26.710 --> 01:31:28.800
Boardroom: Humber. Present. And Marys.

519
01:31:29.030 --> 01:31:31.020
Boardroom: Here. I'll press.

520
01:31:31.300 --> 01:31:35.000
Boardroom: Okay, I just realized it is the first meeting of the month.

521
01:31:35.140 --> 01:31:49.019
Boardroom: And I did not warn one of you that it was your turn to say the land acknowledgement statement, so I will do it this evening. So every beginning of the month, we read the land acknowledgement statement. So I will read that to you all this evening.

522
01:31:49.130 --> 01:32:03.159
Boardroom: The City of Berkeley recognizes that the community we live in was built on the territory of Huchun, with ancestral and unceded lands of the Chocheno-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

523
01:32:03.180 --> 01:32:24.080
Boardroom: This land was, and continues to be, of great importance to all of the Ohlone tribes and descendants of the Verona Band. As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shellmount, and the Ohlone people who continue to reside in the East Bay.

524
01:32:24.230 --> 01:32:34.470
Boardroom: We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

525
01:32:34.920 --> 01:32:54.520
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today. The City of Berkeley will continue to build relationships with the Lijan tribe, and to create meaningful actions that uphold the intention of this land acknowledgement.

526
01:32:54.920 --> 01:33:02.210
Boardroom: We are now moving on to ceremonial items, so I will call up our first recipients of the ceremonial item for YouthWorks!

527
01:33:02.430 --> 01:33:05.049
Boardroom: YouthWorks folks, you're welcome to come on up here.

528
01:33:05.850 --> 01:33:07.120
Boardroom: Yay!

529
01:33:09.360 --> 01:33:10.100
Boardroom: Yes.

530
01:33:10.730 --> 01:33:14.060
Boardroom: You can come right up to this, podium over here.

531
01:33:16.540 --> 01:33:18.110
Boardroom: All right.

532
01:33:18.490 --> 01:33:19.810
Boardroom: Oops.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

533
01:33:28.310 --> 01:33:53.260
Boardroom: Okay, so today is YouthWorks Day! Whereas the overarching objective of Berkeley YouthWorks program is to ensure that all youth and young adults in Berkeley have access to educational resources and culturally responsive training, that they acquire essential life skills for self-sufficiency, and that they succeed in their professional endeavors, careers, and adult lives, and whereas the City of Berkeley recognizes that investing in young people is

534
01:33:53.260 --> 01:33:55.140
Boardroom: Vital to the ongoing health.

535
01:33:55.140 --> 01:34:10.230
Boardroom: vibrancy, and success of our community. Since 1970, YouthWorks has provided opportunities to Berkeley youth who have experienced socioeconomic and educational inequalities, including but not limited to impacts by the justice system, experiencing foster care, or being young parents.

536
01:34:10.230 --> 01:34:22.120
Boardroom: And whereas YouthWorks has empowered generations of Berkeley youth by providing meaningful employment mentorship and career development opportunities, fostering skills that prepare participants for lifelong success.

537
01:34:22.170 --> 01:34:47.129
Boardroom: And whereas YouthWorks participants have contributed thousands of service hours, supporting local organizations, businesses, and city departments, and initiated projects that enhance the quality of life throughout Berkeley, and whereas YouthWorks has championed equity and inclusion by offering employment opportunities to youth from diverse backgrounds, helping to bridge gaps and build a stronger, more united Berkeley, and whereas the City of Berkeley values the ongoing partnerships

538
01:34:47.130 --> 01:34:52.459
Boardroom: between the community, city departments, and youth works in shaping a brighter future for all.

539
01:34:52.780 --> 01:34:53.820
Boardroom: Now.

540
01:34:53.820 --> 01:35:15.999

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, celebrate and honor the achievements of YouthWorks participants, alumni, staff, and supporters. I encourage all residents to recognize the profound impact of youth employment, and to continue investing in programs that empower the next generations of leaders in our city, and do hereby declare March 12th.

541
01:35:16.000 --> 01:35:18.399
Boardroom: 2026 to be Youth Works Day.

542
01:35:25.120 --> 01:35:26.980
Boardroom: Did you want to share a few words?

543
01:35:27.800 --> 01:35:30.170
Boardroom: Yeah, I think 3 of us are gonna talk now.

544
01:35:30.220 --> 01:35:49.009
Boardroom: Good evening, everyone. My name is Kaylee Robinson, and I'm a YouthWorks employee. I worked for 2 years at my elementary school, Rosa Parks. Before every summer, YouthWorks held paid trainings to help us learn professionalism and leadership skills. Here, I learned how to do things like conflict, resolution, which I wouldn't have learned at school, or hadn't learned yet.

545
01:35:49.340 --> 01:35:53.200
Boardroom: This also took the burden off my parents at home to prepare me for work.

546
01:35:53.320 --> 01:35:57.399
Boardroom: Now I know that I want to be an educator in my future and have money to put towards college.

547
01:36:05.610 --> 01:36:17.609
Boardroom: YouthWorks has helped me and many other young people find jobs when we otherwise would have struggled to. It has provided a crucial stepping stone

548
01:36:17.610 --> 01:36:28.599
Boardroom: between high school and employment. Young people are our future, and work experience is one of the most important steps on the path to adulthood.

549
01:36:35.090 --> 01:36:42.840

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Good afternoon, City Council. My name is Ayanna Flores. This past winter, I was a Youth Works intern working at La Pena Cultural Center.

550
01:36:42.930 --> 01:36:55.190
Boardroom: Prior to working at La Pena, I actually was couch surfing and homeless, and I came here to attend UC Berkeley, and YouthWorks was the first job after applying to over 200

551
01:36:55.200 --> 01:37:13.019
Boardroom: that I was able to succeed. As a low-income student, it was through YouthWorks that I was able to fully fund my first semester of college. And it's now through YouthWorks and working at La Pena that I've found a goal in working in law and activism.

552
01:37:13.200 --> 01:37:30.519
Boardroom: that wouldn't be possible without the chances that this city and these programs offer. So I would just like to say a thank you to City Council, to the employers that I had through YouthWorks and La Pena, and to everyone who made my own dreams, as well as the dreams of many young people possible.

553
01:37:35.850 --> 01:37:48.630
Boardroom: My experience at YouthWorks has been great, and it has impacted me, like, in really, like, positive ways, because, thanks to the experience that I have with him, I have found, like, ways to…

554
01:37:50.410 --> 01:37:56.309
Boardroom: To be, like, ways in more profesh… how is being working in more professional jobs?

555
01:37:56.520 --> 01:38:00.959
Boardroom: And also, thanks to YouthWorks, I have found ways of how,

556
01:38:01.260 --> 01:38:18.430
Boardroom: I have found ways of what type of jobs I see myself doing in the future, and I think youth work makes an impact on youth people, because they provide, like, internships and jobs in, like, different work areas, and I think this is, like, a really good opportunity for young people, so…

557
01:38:18.570 --> 01:38:23.500
Boardroom: Seems they can't, they can't set, young people in places

558

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:38:23.610 --> 01:38:32.840
Boardroom: That, they might see themselves, like, doing in the future, and it's also, like, a great opportunity to start, like, making connections and experience as well.

559
01:39:09.490 --> 01:39:14.100
Boardroom: No, no, it's about the young folk. Yeah.

560
01:39:19.390 --> 01:39:20.670
Boardroom: Nope. Oh.

561
01:39:25.520 --> 01:39:27.130
Boardroom: Youth work, yes!

562
01:39:39.790 --> 01:39:40.920
Boardroom: Love it.

563
01:39:41.030 --> 01:39:46.300
Boardroom: Super proud of our… of our young people. Thank you for coming and sharing your stories.

564
01:39:46.520 --> 01:39:51.750
Boardroom: Okay, so, we have another… did you want to read this one?

565
01:39:52.930 --> 01:39:53.650
Boardroom: Short.

566
01:39:54.100 --> 01:40:01.539
Boardroom: I'll read it, okay. Alright, so, we also have, a proclamation for Deborah Major. Is Deborah here?

567
01:40:03.850 --> 01:40:05.090
Boardroom: Hello!

568
01:40:05.590 --> 01:40:13.700
Boardroom: Recognizing Deborah Major as the recipient of the Berkeley Poetry Festival's 23rd Annual Lifetime Achievement Award.

569
01:40:14.550 --> 01:40:15.350
Boardroom: Yeah.

570

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:40:18.500 --> 01:40:33.640
Boardroom: Whereas Deborah Major is an American poet, spoken word performer, novelist, essayist, editor, recording artist, actress, mother, grandmother, aunt, niece, cousin, and friend, as well as a grandchild of immigrants, documented and undocumented.

571
01:40:33.640 --> 01:40:57.959
Boardroom: And whereas, as the third Poet Laureate of San Francisco from 2002 to 2004, she initiated the program City Reflections, War and Peace on Our Streets, received Italy's Regina Coppola International Literary Award in 2022, the California Arts Council Writing Fellowship, Spoken Word Literary Arts Fellowship, and the Black Caucus of the American Library Association's First Novice Award for an Open Weave.

572
01:40:58.030 --> 01:41:06.590
Boardroom: And whereas she's the author of 8 poetry collections, Word Time, City Lights, Kelphea's Daughter, Willow Books.

573
01:41:06.590 --> 01:41:19.769
Boardroom: Brachia Aperte, apologies if I'm mispronouncing it, Multimedia editione, and then we became City Lights, where River Meets Ocean, also City Lights, with More Than Tongue, Creative Arts.

574
01:41:19.790 --> 01:41:26.799
Boardroom: Street Smarts, Curbstone, and Traveling Women with Opal Palmer Adisa Jukebox Press.

575
01:41:26.930 --> 01:41:45.679
Boardroom: and two novels, Brown Glass Windows, Curbstone, and Open Weave Seal Press. And, where she was part of Daughters of Yem, a poetry performance group with Opal Palmer Adisa for over 20 years, was a featured poet and actress in First Voices, Soul of the City.

576
01:41:46.130 --> 01:42:00.049
Boardroom: performed commissioned poems for Dimensions Dance theater, premiered her poetry play, Classic Black Voices of 19th Century African Americans in San Francisco, and wrote poetry for Trade Roots and Symphony with spoken word and chorus.

577
01:42:00.060 --> 01:42:13.029
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby recognize Deborah Major as the recipient of the Berkeley Poetry Festival's 23rd Annual Lifetime Achievement Award.

578
01:42:18.700 --> 01:42:27.830

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Someday, I would like a really long proclamation like that, but today's not the day. My name is MK Chavez,

579
01:42:27.980 --> 01:42:36.200
Boardroom: And I'm here to accept the award on behalf of Devorah Major. Good evening, Mayor Ishii and Council Members.

580
01:42:36.410 --> 01:42:44.709
Boardroom: On behalf of the Berkeley Poetry Festival, it's my honor to accept this proclamation, recognizing the extraordinary work of Devorah Major.

581
01:42:44.820 --> 01:42:51.400
Boardroom: DeVorah Major spent decades reminding us that poetry is not separate from the life of a city.

582
01:42:51.600 --> 01:42:56.799
Boardroom: It is the… it is one of the ways a city learns to listen to itself.

583
01:42:57.690 --> 01:43:07.890
Boardroom: Through her writing, teaching, and cultural leadership, she has helped shape the literary and civic imagination of the Bay Area and far beyond.

584
01:43:08.530 --> 01:43:25.319
Boardroom: She was born and raised in Berkeley, and I'll share that she is incredibly thrilled to be honored. Her work carries the rhythms of history, justice, and possibility. She writes in a way that insists our stories matter.

585
01:43:25.370 --> 01:43:30.960
Boardroom: And that our language can be a tool for liberation as much as it can be for beauty.

586
01:43:31.040 --> 01:43:39.160
Boardroom: We are deeply grateful to the City of Berkeley for recognizing a poet whose work reflects the values that so many of us hold dear.

587
01:43:39.660 --> 01:43:45.260
Boardroom: Community, creativity, and courage to imagine a more just world.

588

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:43:46.070 --> 01:43:55.610
Boardroom: Thank you for honoring Devorah Major, and thank you for honoring poetry itself as an essential part of our civic life.

589
01:43:55.750 --> 01:44:14.990
Boardroom: We're thrilled that you continue to support the Berkeley Poetry Festival, and we hope that you will come and celebrate with us on March 22nd, at the First Congregational Church of Berkeley. There will be cake. Thank you so much.

590
01:44:15.470 --> 01:44:16.580
Boardroom: Thank you.

591
01:44:53.450 --> 01:45:00.479
Boardroom: Councilmember, thank you very much, Councilmember Taplin, for bringing that forward to our office, too. I think that came from your office. Yes.

592
01:45:00.560 --> 01:45:03.700
Boardroom: Which makes sense. He's a poet, if you didn't know, so…

593
01:45:03.750 --> 01:45:21.709
Boardroom: Okay, so we are now moving on to City Manager comments. Are there any comments, Mr. City Manager? No comments, Madam Mayor, thank you. Okay, we will now take public comments on non… oh, actually, you know, I'm gonna actually have our auditor come up next, and then we will move on to public comment on non-agenda matters.

594
01:45:24.240 --> 01:45:31.610
Boardroom: I think our agenda should actually include that. I don't know why it doesn't. Yeah, I just have to remember to put it in. Go ahead.

595
01:45:36.620 --> 01:45:37.650
Boardroom: Okay…

596
01:45:38.210 --> 01:45:46.870
Boardroom: Thank you so much, and good evening. I'm here with, Caitlin Palmer, Audit Manager, and Katie Weisong, Auditor, is online.

597
01:45:47.100 --> 01:45:57.989
Boardroom: I'm here to present our audit on city contracts. On February 19th, we released, an audit of the non-competitive contracts in the City of Berkeley.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

598
01:45:58.460 --> 01:46:04.030
Boardroom: Today, I will go over why we did this audit, Sorry, accidentally.

599
01:46:08.150 --> 01:46:14.109
Boardroom: Okay, today we're going to go over why we did this audit, our findings and recommendations, and management response.

600
01:46:15.220 --> 01:46:18.080
Boardroom: We did this audit because competition among vendors

601
01:46:18.120 --> 01:46:37.369
Boardroom: helps ensure that the city is getting the best value and the best fit for the goods and services it purchases. While competition is not always feasible, or appropriate, it is especially important to pursue competition as much as possible, as the city currently faces a budget deficit.

602
01:46:37.650 --> 01:46:41.599
Boardroom: Competition can also help prevent fraud and increase fairness.

603
01:46:41.880 --> 01:46:52.940
Boardroom: Although we found no evidence of misconduct in Berkeley during our audit, contract corruption cases in neighboring jurisdictions show the importance of having an open, competitive contracting process.

604
01:46:53.980 --> 01:47:03.820
Boardroom: Our objectives were to determine how Berkeley uses non-competitive contracts, and secondly, why Berkeley used these contracts when competition was possible.

605
01:47:04.200 --> 01:47:11.689
Boardroom: We mostly looked at the contracts executed in fiscal year 2024. We also looked at a sample of the 100 largest contracts.

606
01:47:11.990 --> 01:47:18.889
Boardroom: The active largest contracts. We manually reviewed over 300 contract PDFs.

607
01:47:19.080 --> 01:47:32.689
Boardroom: and records online to determine if they were competitive, because this information was not tracked in the city's financial system.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

We also manually reviewed every waiver of competition, because there was no automated reports available.

608
01:47:33.190 --> 01:47:35.550
Boardroom: Thank you to Katie for doing that work.

609
01:47:36.140 --> 01:47:46.970
Boardroom: We define competitive contracts to include those with either informal or formal competition, ranging from calling vendors for quotes to formal invitation for bids.

610
01:47:47.140 --> 01:47:57.340
Boardroom: The City's purchasing manual state formal competition is required for service contracts over $50,000, goods over $100,000, and construction over $200,000.

611
01:47:57.820 --> 01:48:05.499
Boardroom: Non-competitive contracts are authorized by the city manager through waivers of competition, those below that amount.

612
01:48:05.660 --> 01:48:09.099
Boardroom: City Council can also authorize non-competitive contracts.

613
01:48:09.260 --> 01:48:14.150
Boardroom: There are also a few other non-competitive processes, such as releases and legal service contracts.

614
01:48:14.620 --> 01:48:23.359
Boardroom: As this graphic shows, in fiscal year 2024, there were 94 contracts with a total value of $43 million that did not go through competition.

615
01:48:23.920 --> 01:48:28.390
Boardroom: Caveat, we did not assess whether each contract should have gone through competition.

616
01:48:30.470 --> 01:48:38.599
Boardroom: Okay, what did we find? Our first finding is that Berkeley spent millions of dollars on non-competitive contracts when competition was likely possible.

617
01:48:39.830 --> 01:48:48.690

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: When we reviewed the city's largest contracts, most of them had evidence of competition or met criteria for exceptions, but two recycling contracts did not.

618
01:48:48.730 --> 01:49:05.859
Boardroom: In fiscal year 2022, Berkeley executed contracts with the Ecology Center and Community Conservation Centers. Together, the contracts were $41 million for the first 5 years, with an optional 5-year extension, which would bring the total to almost $85 million.

619
01:49:06.100 --> 01:49:15.089
Boardroom: Although competition is a best practice and is required for service contracts over $50,000, neither the City Charter or the Berkeley Municipal Code

620
01:49:15.190 --> 01:49:27.110
Boardroom: explicitly requires service contracts like these to be competitive. In neighboring cities like Oakland and San Francisco, their city codes explicitly require competition for service contracts.

621
01:49:29.020 --> 01:49:30.740
Boardroom: Let's now look at waivers.

622
01:49:30.760 --> 01:49:48.629
Boardroom: During the audit, the purchasing manual allowed contracts to waive competition when they were sole source, competition was found to be inadequate, or there was an emergency. However, the form that the staff uses to request a waiver had different criteria than the city's purchasing manual for when waivers are justified.

623
01:49:48.630 --> 01:49:52.980
Boardroom: This may have made it hard for staff to know when it was appropriate to use a waiver.

624
01:49:55.120 --> 01:50:07.519
Boardroom: Of the 53 waivers approved in fiscal year 2024, 38% did not clearly meet the criteria in the purchasing manual. This means the city likely could have pursued competition in these contracts.

625
01:50:08.500 --> 01:50:22.499
Boardroom: In our report, we highlight a few examples of waivers that likely did not meet the purchasing manual criteria. I'm just going to point out one example of a contract for classification and compensation studies, which we found 3 waivers with

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

626
01:50:22.500 --> 01:50:28.570
Boardroom: 3 different vendors that all cited a dire situation as the rationale for the waiver.

627
01:50:28.570 --> 01:50:38.860
Boardroom: While there may be an urgent need for these services, it was not… there was no documented evidence that it was an emergency. Also, having 3 different vendors

628
01:50:39.310 --> 01:50:42.420
Boardroom: To me, means that competition was likely possible.

629
01:50:43.480 --> 01:50:57.399
Boardroom: City Council can also authorize non-competitive contracts for community-based organizations. Last year, Council passed a resolution to establish a more open process to offer emergency funding to community-based organizations.

630
01:50:58.160 --> 01:51:07.979
Boardroom: We also found that Berkeley's process to prevent conflicts of interest is limited. Some staff and officials are required by state law to disclose financial interests.

631
01:51:07.980 --> 01:51:22.020
Boardroom: but not to disclose all relationships that may bias a decision. In San Francisco, in addition to the Form 700, they require city officers and employees to publicly disclose any personal, professional, or business relationships

632
01:51:22.020 --> 01:51:30.660
Boardroom: with anyone involved in a government decision they make. Although we found areas for improvement, we found no evidence of misconduct in Berkeley during our audit.

633
01:51:32.230 --> 01:51:36.690
Boardroom: The city can use amendments to increase the dollar amounts without new competition.

634
01:51:37.330 --> 01:51:48.310
Boardroom: So, a contract can start below the $50,000 threshold without competition, and then later amended without competition, as long as this… as long as City Council approves that.

635

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:51:48.380 --> 01:51:59.879
Boardroom: When we reviewed a sample of these contracts, on average, amendments added over $218,000 to each contract, and 70% of them lasted for over 5 years.

636
01:52:00.250 --> 01:52:07.039
Boardroom: We also identified 3 city attorney contracts for legal services, which grew by over 20% of the original amount.

637
01:52:07.110 --> 01:52:14.549
Boardroom: The city charter and the BMC does give the City Attorney the authority to enter into legal contracts, legal services contracts.

638
01:52:14.580 --> 01:52:27.620
Boardroom: And the amendments do not require City Council approval, which can limit oversight. Additionally, the BMC does not discuss competition for service contracts beyond setting thresholds for formal competition.

639
01:52:28.810 --> 01:52:40.179
Boardroom: So, we're finally to our second finding, and that is that paper contracts, unclear guidance, and short staffing led to delays and overuse of non-competitive contracts.

640
01:52:40.520 --> 01:52:52.839
Boardroom: During our audit period, most of Berkeley's contracts were still reviewed and signed on paper and hand-delivered for approvals. This created delays and made it difficult to track contracts, which led to some being misplaced.

641
01:52:52.950 --> 01:53:02.219
Boardroom: Berkeley also did not have a comprehensive digital contract management system able to track competition and notify staff of contract expirations.

642
01:53:02.400 --> 01:53:10.790
Boardroom: While the city has begun using DocuSign for digital signatures, there is no software to manage the full contracting review process.

643
01:53:11.680 --> 01:53:23.600
Boardroom: We also found that the purchasing manual was missing procurement policy elements such as definitions and a process for debarring contractors who violate city law. Prior to May 2025,

644

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:53:23.600 --> 01:53:33.369
Boardroom: Contract training for staff was also inconsistent. However, between May and July of 2025, the finance department did conduct 5 contract trainings.

645
01:53:34.240 --> 01:53:44.590
Boardroom: Lastly, we found that the General Services Division has had repeated vacancies in key positions in the last 5 years, making it difficult to improve the contract process.

646
01:53:44.590 --> 01:53:54.580
Boardroom: The General Services Manager position has been vacant since November of 2024, and the contract administrator position was vacant for almost a year until April 2025.

647
01:53:55.760 --> 01:54:11.070
Boardroom: So, we made 13 recommendations to help the city address the risks we found, including for the city to add explicit competition requirements to the municipal code for service contracts, and pursue open competition for the recycling contracts.

648
01:54:11.170 --> 01:54:23.899
Boardroom: We recommend that the City update the purchasing manual and contract forms for consistency and expand training for staff. We also recommend the City adopt a comprehensive and integrated electronic contract management system.

649
01:54:24.610 --> 01:54:40.770
Boardroom: City Management agreed, or partially agreed, to our findings and recommendations, and provided an action plan to address our recommendations. We have, still need to confirm to what extent… any recommendations have been implemented after our audit release date.

650
01:54:41.140 --> 01:54:59.190
Boardroom: I just want to take a moment to thank, city management, including the finance department, for their cooperation on this audit. And in addition to City Management, Public Works, the City Attorney's Office, and other city staff, and my staff as well, for their contributions on this audit. Thank you.

651
01:55:02.530 --> 01:55:10.620
Boardroom: Thank you so much, Madam Auditor. There's lots to chew on here. Are there any questions from my Council colleagues?

652
01:55:13.590 --> 01:55:22.930

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Comments? Sure. Yeah, I would ask, actually, if our city manager could speak to some of the changes that have been made.

653
01:55:23.520 --> 01:55:28.880
Boardroom: Sure, thank you, Madam Mayor, and thank you, Madam Auditor and staff, for the… this audit.

654
01:55:29.170 --> 01:55:31.259
Boardroom: I won't read through them all, but if you…

655
01:55:31.440 --> 01:55:45.079
Boardroom: Go to the audit report on page 25, you'll see all the management responses, and you can see in there that, as the auditor said, we've agreed or partially agreed with them, and in fact have already implemented several of them.

656
01:55:45.260 --> 01:55:49.669
Boardroom: Some in November and some, June, July, so…

657
01:55:49.890 --> 01:55:55.269
Boardroom: I would just encourage people to read through that. You can see where we stand on the management response, both in the

658
01:55:55.420 --> 01:56:04.460
Boardroom: Where we agree and partially agree, and where we have implemented and have a date and plan to implement. So, just would point people there.

659
01:56:06.300 --> 01:56:10.070
Boardroom: Thank you. Did you have a question, Councilmember? Okay, go ahead.

660
01:56:10.870 --> 01:56:21.179
Boardroom: Thank you, Madam Mayor. And, my monitor, excellent work, as usual. I'm curious if you, if you ran across this in your, in your work,

661
01:56:21.270 --> 01:56:32.880
Boardroom: Is there any sort of interplay with the barrier study recommendations, the Berkeley Inclusion and Diversity Index, the Bendex, as some call it?

662
01:56:33.030 --> 01:56:48.839

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Because so much of this was about, you know, city contracting, city contractors, and, allowing new persons and new entities that are, you know, overlooked by the city to apply for these contracts. I'm wondering if there's any interplay with that at all.

663
01:56:51.420 --> 01:56:53.660
Boardroom: Yeah, this,

664
01:56:54.460 --> 01:57:12.970
Boardroom: The focus was on the competition elements of it, and we do acknowledge that without adequate competition and without, opening, you know, having adequate participants in the system, you're not going to get the level of diversity,

665
01:57:13.040 --> 01:57:20.920
Boardroom: that's optimal. So, that is something that, is very important for us to address as a city.

666
01:57:21.000 --> 01:57:24.819
Boardroom: Caitlin, did you have anything you wanted to add?

667
01:57:27.280 --> 01:57:31.079
Boardroom: Yeah, I pressed this.

668
01:57:32.830 --> 01:57:47.370
Boardroom: One of our final recommendations was to, ensure that responsibility is assigned to implement the VINDEX recommendations, to ensure that the city makes progress towards, implementing those and promoting fairness in contract awards.

669
01:57:51.140 --> 01:57:54.159
Boardroom: Okay, thank you. Did anyone have any comments on this?

670
01:57:55.820 --> 01:57:57.189
Boardroom: Okay. Oop.

671
01:57:57.600 --> 01:57:59.300
Boardroom: Yep, Vice Mayor Lunapara.

672
01:57:59.660 --> 01:58:06.319
Boardroom: Thank you. I just really wanted to thank the auditor and her staff for For this work,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

673
01:58:06.550 --> 01:58:10.080
Boardroom: And for everything that you put into it. So, thank you so much.

674
01:58:10.200 --> 01:58:13.470
Boardroom: And, yeah, how comprehensive it was. Thank you.

675
01:58:15.890 --> 01:58:18.640
Boardroom: Thank you. Moving on to Councilmember Humbert.

676
01:58:19.090 --> 01:58:27.639
Boardroom: Thank you, Madam Mayor. I want to thank Auditor Wong and your whole team for all the work that you put into this report.

677
01:58:27.900 --> 01:58:43.870
Boardroom: And I understand that it was a lot of meticulous work in putting this together, and I truly appreciate the dedication and care that went into it, given our dire budget situation, digging into our contracts and trying to find areas for efficiency and savings.

678
01:58:44.050 --> 01:58:50.219
Boardroom: that competition would bring is incredibly important. So, thank you so much for this really good work.

679
01:58:51.380 --> 01:58:53.179
Boardroom: Thank you. Councilmember Blackaby?

680
01:58:53.500 --> 01:59:10.070
Boardroom: Thanks, Madam Mayor, and thank you again to the auditor and her team, for this audit. Thanks also to the City Manager and staff for their responsiveness and, already, responding to the recommendations and starting to implement them, which we really appreciate. I'd just like to offer as,

681
01:59:10.220 --> 01:59:23.410
Boardroom: member of the Budget and Finance Committee, that it would be my hope, and we'll talk to it maybe at a future budget meeting, that once we get through this budget process, which I know will be very time-consuming, in terms of our meeting schedule, but I'd love to add this to

682
01:59:23.500 --> 01:59:43.249
Boardroom: the agenda of kind of our next meeting after we kind of approve the budget this year, just to do a deeper dive, and then, figure

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

out if there are other policy changes we need to consider, you know, beyond what staff is already doing. That'd be a great opportunity for us to spend more time with it, spend more time with you, and then think about it as a committee. So,

683
01:59:43.530 --> 01:59:52.790
Boardroom: we'll have an opportunity to add future agenda items at our next budget meeting, but it would be my hope we could consider this sometime in July, after we get through the June budget.

684
01:59:53.440 --> 01:59:54.420
Boardroom: Thank you.

685
01:59:55.540 --> 01:59:57.930
Boardroom: Thank you very much. Councilmember O'Keefe.

686
01:59:59.120 --> 02:00:06.199
Boardroom: I just want to add my thanks to the auditor and her team for this really important, thorough audit. It's,

687
02:00:06.500 --> 02:00:12.779
Boardroom: yeah, clearly a lot of work went into it, and it's very important, so thank you. And,

688
02:00:12.880 --> 02:00:22.590
Boardroom: I just want to signal my personal interest in, looking at bidding out the recycling contracts. I think that was a really important finding, and I'd like to… I hope we look at it more.

689
02:00:24.910 --> 02:00:27.530
Boardroom: Thank you. Councilmember Traika.

690
02:00:29.020 --> 02:00:39.840
Boardroom: Thank you. I wish to also echo my sincere gratitude to, the City Auditor and, your team.

691
02:00:40.440 --> 02:00:41.850
Boardroom: And,

692
02:00:43.240 --> 02:00:53.689
Boardroom: Appreciate this report, a number of, very substantive items here, and some great recommendations that warrant

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

693
02:00:53.750 --> 02:01:07.350
Boardroom: a deeper look, so I look forward to having a deeper dive on this, at a future council meeting or, in committee, or one-on-one.

694
02:01:07.390 --> 02:01:21.219
Boardroom: I also wish to thank the City Manager's Office, as well as the City Attorney, for already working diligently to resolve, a number of these recommendations.

695
02:01:21.370 --> 02:01:38.320
Boardroom: I do wish to note that Recommendation 1.2, which is a recommendation, to the City Council to work with City Management and the City Attorney to propose updates to BMC Chapter 7.18.

696
02:01:38.530 --> 02:01:44.220
Boardroom: That is a City Council action item,

697
02:01:44.360 --> 02:01:53.719
Boardroom: And I certainly would be interested in, at a time when it can be scheduled, likely post-budget,

698
02:01:54.260 --> 02:01:58.910
Boardroom: Very interested in, continuing to dig into this.

699
02:01:59.180 --> 02:02:07.800
Boardroom: I will note, I am… I sincerely understand that

700
02:02:08.070 --> 02:02:14.979
Boardroom: a number of these recommendations to fully implement them. It will require,

701
02:02:15.180 --> 02:02:26.079
Boardroom: some significant budget adjustments, at a challenging time for the city, budgetarily. And,

702
02:02:26.780 --> 02:02:36.699
Boardroom: I'm also thinking about, the opportunities there around the possibility of, not, or…

703
02:02:37.160 --> 02:02:53.360

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: the, reduced likelihood of potentially leaving money on the table, and so, when we have an opportunity to, resolve some of these, I will call them sticky wickets.

704
02:02:53.410 --> 02:03:06.379
Boardroom: we may actually then, put ourselves in a better position, a more advantageous budgetary, position, for the future.

705
02:03:06.440 --> 02:03:09.100
Boardroom: And thank you so much for this report.

706
02:03:10.620 --> 02:03:12.680
Boardroom: Thank you. Councilmember Kasarwani?

707
02:03:13.640 --> 02:03:22.620
Boardroom: Thank you very much, Madam Mayor. I just want to echo the thanks, Madam City Auditor and your team, for this very important audit. I have really…

708
02:03:22.630 --> 02:03:40.739
Boardroom: tried to make sure that when I'm putting budget referrals forward, that we try to use an RFP process, because it's very important that we are open and transparent in giving, especially when we're doing it from the City Council. As your report noted, right, giving

709
02:03:40.740 --> 02:03:44.569
Boardroom: All community-based organizations who may be.

710
02:03:44.630 --> 02:03:57.079
Boardroom: qualify the opportunity to compete, and receive funding. And I think, you know, on these larger contracts, like, the recycling contract and other contracts.

711
02:03:57.170 --> 02:03:59.870
Boardroom: We have to make sure that we are…

712
02:03:59.970 --> 02:04:14.360
Boardroom: just safeguarding the public's resources, especially in this budgetary environment, but I think in any kind of fiscal environment, it's very important that the procurement process is the only way to ensure

713
02:04:14.480 --> 02:04:18.220

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: That, that we are…

714
02:04:18.330 --> 02:04:24.899
Boardroom: Being fair about how we are making these decisions in terms of who wins these multi-million dollar contracts.

715
02:04:25.090 --> 02:04:31.210
Boardroom: And, without that, you know, I have to be honest, there is the appearance of…

716
02:04:31.280 --> 02:04:43.760
Boardroom: of, some kind of nefarious process. That's why we have to be open and transparent about it. If we just award a contract without a process, do a sole source, when we know that there is

717
02:04:43.760 --> 02:05:02.099
Boardroom: the option, to have an open and transparent process. That's not good government, in my opinion. And so, I think this audit is very important. I appreciate that the city manager is gonna be… has started implementing, these recommendations, and I want to make sure that we implement them all so that we can.

718
02:05:02.100 --> 02:05:10.460
Boardroom: have better processes. You know, I also want to note, you know, some of these contracts that started below the threshold for an open process.

719
02:05:10.490 --> 02:05:20.440
Boardroom: then had funds added, and then they, they went above the threshold, so… so we have to have controls, I think, in, in all cases, and… and… and,

720
02:05:21.220 --> 02:05:24.949
Boardroom: And there could be instances, you know, when there's an emergency situation.

721
02:05:25.060 --> 02:05:35.379
Boardroom: I understand we need to move quickly and have a sole source, but, you know, that was really not the case in many of these instances. So thank you again, Auditor, for this report.

722
02:05:36.770 --> 02:05:50.720
Boardroom: Thank you. I also just want to add my thanks and say thank you. I know it took a long time to go through this, so thank you to your

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

team, and also to the city staff, who I know are working to implement those, and thank you to our city manager for being so on top of it, so…

723
02:05:50.720 --> 02:05:58.489
Boardroom: Appreciate you. Yeah, thank you. I do want to allow folks, if anyone wanted to give comment on this item.

724
02:05:58.490 --> 02:06:08.050
Boardroom: I know it's not on consent, and it's not on action, so I did just want to give some time for public comment, so go ahead. I'm gonna give you each a minute.

725
02:06:08.200 --> 02:06:18.370
Boardroom: Thank you very much. Again, I just want to commend the auditor for this report. I think this is great. As an average taxpayer, I care about this, because I'm worried about my taxes going up.

726
02:06:18.370 --> 02:06:39.649
Boardroom: to cover these deficits, and so I'm also really heartened to hear about the comments from the council members and council member Keisabani in particular, and I'm glad that the city management has agreed with most of these recommendations, it sounds like, so that's really good. I will say, as a taxpayer, I was a little disheartening to hear about $85 million with no bid. Hopefully that's the end that we'll see of that.

727
02:06:39.650 --> 02:06:45.399
Boardroom: And I just hope all of you will stay on it to make sure that we follow through with these recommendations. Thank you. Thank you.

728
02:06:49.360 --> 02:06:55.800
Boardroom: Madam Mayor, City Council, Martin Bork, Executive Director at the Ecology Center.

729
02:06:56.030 --> 02:07:06.549
Boardroom: I just wanted to offer any additional information you might have about the contracting process with the Ecology Center in this last cycle, and the many cycles before that.

730
02:07:07.710 --> 02:07:12.280
Boardroom: the Ecology Center has had open tran- very transparent

731
02:07:12.540 --> 02:07:16.220
Boardroom: long and in-depth contract negotiations with Citi.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

732
02:07:16.890 --> 02:07:19.490
Boardroom: over and over and over. Sometimes.

733
02:07:19.680 --> 02:07:31.999
Boardroom: 1-year contract extensions, 2-year contract extensions, in an industry where 10- and 20-year contracts are the norm because of the amount of capital investment and operational intensity of the

734
02:07:32.180 --> 02:07:38.550
Boardroom: contracts. Each time that has come forward to Council and to staff, it's been thoroughly vetted.

735
02:07:38.680 --> 02:07:47.219
Boardroom: With third-party, verification of our proposals, deep, open book, transparent negotiations.

736
02:07:47.430 --> 02:07:50.289
Boardroom: And, we feel that the city has gotten

737
02:07:50.830 --> 02:08:03.790
Boardroom: excellent, results for… Thank you. …through these contracts. Thanks, Mark. I just want to offer you, if anyone wants to… Thanks, they can reach out to you. I'd be happy to give you more information. Thank you.

738
02:08:06.500 --> 02:08:10.019
Boardroom: Good evening, Council, and Auditor…

739
02:08:10.630 --> 02:08:18.499
Boardroom: of the world, the best. You know, we have the best auditor in the world in Jenny Wong, seriously. Amazing work.

740
02:08:18.650 --> 02:08:38.199
Boardroom: I just wanted to speak briefly. My name's Moni Law, speaking in my personal capacity as an individual as a resident of Berkeley Gobert's Class of 82. Firms owned by people of color and women lost out on millions as contracts flowed disproportionately to white men. Quote-unquote, 2021, Berkeley side, November 21,

741
02:08:38.580 --> 02:08:54.820
Boardroom: 2021. I want to thank also Councilmember Ben Bartlett, who worked fiercely on this issue. 2016 to 2019, the Mason-Tillman Associates

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

report covered 4-year process, and that study showed that business owned by white men

742
02:08:54.850 --> 02:09:12.980
Boardroom: were awarded over 80% of all city contracts, and Black businesses were underutilized with only 2.7% of the business. So my heart aches when people say, why is there such a low number of Black people in Berkeley? We don't feel as welcome, and people need their businesses supported. Thank you so much. Thanks, Moni.

743
02:09:16.380 --> 02:09:21.319
Boardroom: I will take public comment online as well, if there's anyone else who wants to make public comment on this report.

744
02:09:23.510 --> 02:09:30.240
Boardroom: So this is for public comment on the auditor's report only, if you're on Zoom,

745
02:09:30.350 --> 02:09:33.709
Boardroom: Please raise your hand only to speak on the auditor's report.

746
02:09:35.540 --> 02:09:37.770
Boardroom: Okay, first is a phone number.

747
02:09:37.970 --> 02:09:40.909
Boardroom: Ending in 211.

748
02:09:48.330 --> 02:09:49.380
Boardroom: Should, shouldn't be…

749
02:09:49.380 --> 02:09:54.540
1510****211: I called… I called for public comments. I'm going to mute myself, wait for public comments.

750
02:09:54.970 --> 02:09:56.369
Boardroom: Okay. Thank you.

751
02:09:56.640 --> 02:10:00.959
Boardroom: Again, this is public comments only on the auditor's report.

752
02:10:01.830 --> 02:10:07.120
Boardroom: So, we have, Della Luna is the next… Speaker.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

753
02:10:08.110 --> 02:10:27.189
Della Luna (she/her) Huichun: Yes. I wanted to say that as a constituent, I was saddened to hear how much of the auditor's work was done by hand and meticulously digging through records. I am sad that that's the state of 2026 in the City of Berkeley. There should be more… I feel like the, like.

754
02:10:27.400 --> 02:10:28.500
Della Luna (she/her) Huichun: the, like…

755
02:10:29.020 --> 02:10:44.169
Della Luna (she/her) Huichun: just what the auditor describes, like, that type of record keeping kind of leads to this type of behavior amongst the, departments or different parts of the city, so I'm really glad this work is being done, but it also feels like

756
02:10:44.220 --> 02:10:54.050
Della Luna (she/her) Huichun: it could have been circumvented, and I'm… I guess I'm also just saying that you have to make the systems more robust in their reporting.

757
02:10:54.210 --> 02:11:13.639
Della Luna (she/her) Huichun: And then I also want to say that this same audit should be done with the, housing developers, and their contracts and their applications need to be vetted by third parties, and not just, just accept everything they say, especially in the affordable housing, developers, because it seems like the same issue isn't happening in other areas as well.

758
02:11:13.650 --> 02:11:15.709
Boardroom: Thanks, Stella, thanks for your comment.

759
02:11:16.830 --> 02:11:20.840
Boardroom: Next is Jeff… Jeff Lomax.

760
02:11:23.050 --> 02:11:41.599
Geoff Lomax - KK6IZS: Yes, thank you, and again, big thanks to Jenny for her work here. It's very important. I want to second the previous comment about the lack of public transparency on these documents in general. Councilmember Trevor, it's not… I think what we need is

761
02:11:41.600 --> 02:12:04.280

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Geoff Lomax - KK6IZS: You need the public posting of the documents, the contracts, they should be available, and tied to a number of these contracts are reporting requirements or deliverables, which also are very difficult to connect the dots on. So really, essentially, all these contracts should contain a mini public docket. This is not money, this is not a lot of resources, it's just being organized and transparent.

762
02:12:04.280 --> 02:12:18.480
Geoff Lomax - KK6IZS: So that those of us who are interested in these issues and interrogate them frequently can get the information we're entitled to without having to go to a public records mechanism, which is often the mechanism we have to use, unfortunately, which wastes more time and resources.

763
02:12:18.630 --> 02:12:22.259
Geoff Lomax - KK6IZS: Make it transparent, make it clear, make it public. Thank you.

764
02:12:22.680 --> 02:12:23.619
Boardroom: Thank you. Thank you.

765
02:12:26.510 --> 02:12:30.840
Boardroom: And then we have, mina Wilson.

766
02:12:32.440 --> 02:12:34.270
Boardroom: To talk on the auditor's report.

767
02:12:40.490 --> 02:12:44.400
Boardroom: Mina, you should be able to unmute.

768
02:12:46.970 --> 02:12:56.009
Wilhelmenia "Mina" Wilson, Healthy Black Families: Greetings to you all, this is Mina Wilson from Healthy Black Families, nonprofit located in the Adeline Corridor in Berkeley.

769
02:12:56.420 --> 02:13:08.770
Wilhelmenia "Mina" Wilson, Healthy Black Families: I think it's really imperative, and I thank Jenny for her report. This kind of rigor is necessary, especially if we're holding, a banner for equity in our community.

770
02:13:09.040 --> 02:13:27.719
Wilhelmenia "Mina" Wilson, Healthy Black Families: the displacement of Black people from the city, the lack of opportunity, in the workforce,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

contribute to that, and these contracts could be a viable method for Black folks to get grounded and economically stable in the city.

771
02:13:27.750 --> 02:13:30.679
Wilhelmenia "Mina" Wilson, Healthy Black Families: Not only should we be looking at these contracts.

772
02:13:30.760 --> 02:13:43.849
Wilhelmenia "Mina" Wilson, Healthy Black Families: with this kind of rigor, but we should also be setting equity priorities around these contracts in the city to ensure that equity is happening. What gets measured gets accomplished. Thank you.

773
02:13:44.520 --> 02:13:45.620
Boardroom: Thank you, Mina.

774
02:13:46.790 --> 02:13:55.109
Boardroom: That's the last speaker. Very good. Okay. Well, thank you all so much, I really appreciate it again, and, we are gonna move on in our agenda.

775
02:13:55.320 --> 02:14:00.010
Boardroom: We are going to go to public comment on non-agenda matters.

776
02:14:09.380 --> 02:14:14.230
Boardroom: Okay, so we'll pick 5 cards for in-person speakers, and then the first

777
02:14:14.540 --> 02:14:22.199
Boardroom: Five hands raised online will be the… those will be our 10 non-agenda speakers.

778
02:14:29.980 --> 02:14:36.280
Boardroom: And the 5 in-person speakers, and you can come up in any order, so please just come up

779
02:14:36.960 --> 02:14:39.470
Boardroom: And line up when your name is called.

780
02:14:39.920 --> 02:14:53.590
Boardroom: We have Steven Alpert, Kit, Saginore… Looks like Tim O'Brien… Andrea Pritchett… Steven Shuler.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

781
02:15:03.370 --> 02:15:05.890
Boardroom: Good evening. I'm Dr. Steven Alpert.

782
02:15:06.100 --> 02:15:16.060
Boardroom: I have forwarded links of three recent publications addressing housing affordability to all city officials. The titles of these publications are shown on this poster.

783
02:15:16.460 --> 02:15:25.199
Boardroom: Using real-world data, these studies demonstrate it takes decades for newly built market-rate housing to eventually filter down to become affordable.

784
02:15:25.550 --> 02:15:36.880
Boardroom: Council members have commented that Brickel residents fail to acknowledge that 15-30% of lower-income units and new projects mandated by state density bonus law. At the March 2nd meeting.

785
02:15:37.080 --> 02:15:42.220
Boardroom: of the Land Use, Housing, and Economic Development Committee, Councilmember Kesawani introduced a proposal

786
02:15:42.760 --> 02:15:56.000
Boardroom: Porta is a means of providing affordable housing for families, which advocates removing the small amount of on-site lower-income units required by state density bonus, and instead allow developers to build solely market-rate units.

787
02:15:56.270 --> 02:16:04.669
Boardroom: This proposal, supported by Mayor Ishii and Councilmember Trigov, is based on faulty recommendation, faulty assumptions, and should be outright rejected.

788
02:16:05.450 --> 02:16:07.170
Boardroom: Thank you.

789
02:16:16.890 --> 02:16:23.230
Boardroom: Two weeks from now, you will be considering flock contracts, extending the one you have and adding to them.

790
02:16:23.230 --> 02:16:43.260
Boardroom: You really need to recognize that no matter what you put in contracts, you will not have actual control over the data that Flock will

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

have stored on their servers. And there are many ways in which that data can go to ICE or other malign federal actors, warrants signed by a judge.

791
02:16:43.260 --> 02:16:52.329
Boardroom: an individual outside Berkeley who's employed by an agency that BBD trusts can get data and pass it along.

792
02:16:52.330 --> 02:17:05.509
Boardroom: A mistake in a system setting controlled by Flock. An individual and Flock employee who has access to the software and database. And you really, really must not discount the possibility of the secret FISA warrant, which

793
02:17:05.510 --> 02:17:13.389
Boardroom: a judge can issue… a FISA judge can issue that will go directly to FLOC, and you will not be told about it. Thank you.

794
02:17:14.100 --> 02:17:15.290
Boardroom: Thanks, Kit.

795
02:17:23.180 --> 02:17:39.379
Boardroom: Hi everyone, my name is Steven Schuyler, and I live in Kittred Street, downtown Berkeley area. And about a year and a half ago, there was a big push by the zoning board to approve a lot of high-rise buildings in my area. I live a block and a half from all of them.

796
02:17:39.780 --> 02:17:43.659
Boardroom: And… so now we find ourselves in an opposite problem.

797
02:17:44.500 --> 02:17:47.440
Boardroom: They've all decided to either abandon their project.

798
02:17:47.809 --> 02:17:59.859
Boardroom: or one of them, on Center Street, has decided to put it on hold for 3 to 5 years because of the tariffs, and maybe ICE is gonna come and

799
02:18:00.280 --> 02:18:02.350
Boardroom: Arrest all of their workers.

800
02:18:02.889 --> 02:18:05.920
Boardroom: And they've disconnected all of the utilities.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

801
02:18:06.330 --> 02:18:08.710
Boardroom: And all of the businesses are gone.

802
02:18:09.260 --> 02:18:17.900
Boardroom: And if my research is correct, maybe my numbers are a little off, but I looked online, it's gonna cost about $2,000 a foot to reconnect the utilities.

803
02:18:18.230 --> 02:18:25.550
Boardroom: And if they just abandoned that project, too, it's gonna leave it on the city's onus to hook it back up. Thank you.

804
02:18:33.650 --> 02:18:35.570
Boardroom: Hi, my name's Tim O'Brien.

805
02:18:35.889 --> 02:18:42.770
Boardroom: This week we lost… Longtime Berkeley resident and titan of the 60s counterculture, Country Joe McDonald.

806
02:18:43.360 --> 02:18:49.779
Boardroom: Though he was a hero of the anti-war movement, which I realize is out of vogue with this current city council.

807
02:18:50.090 --> 02:18:54.049
Boardroom: I am hoping the city can find a way to commemorate his passing.

808
02:18:54.719 --> 02:18:58.690
Boardroom: Such a move, I feel, is well within the wheelhouse of this council.

809
02:18:58.920 --> 02:19:07.449
Boardroom: As it's an entirely performative gesture that requires no substantive action, political courage, or personal sacrifice.

810
02:19:07.790 --> 02:19:13.349
Boardroom: And so, if your handlers from the JCRC and the real estate lobby allow it.

811
02:19:13.450 --> 02:19:17.200
Boardroom: I hope you all can find a way to honor the legacy of a great American.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

812
02:19:17.639 --> 02:19:22.309
Boardroom: A legacy of social justice, So far in Berkeley's past.

813
02:19:22.750 --> 02:19:28.560
Boardroom: That, like the anti-apartheid campaign for South Africa and the free speech movement before it.

814
02:19:29.000 --> 02:19:35.330
Boardroom: You can all safely pay lip service to it without doing anything meaningful to advance it. Thank you.

815
02:19:42.280 --> 02:19:57.620
Boardroom: Good evening, council members. My name's Andrea Pritchett, and I filed a complaint with the Police Accountability Board last June after having been manhandled by some police officers because I was trying to video them beating an unhoused man, on the street.

816
02:19:57.780 --> 02:20:00.180
Boardroom: I recently received this from the chief.

817
02:20:00.340 --> 02:20:15.310
Boardroom: I carefully reviewed the complaint, including the complete investigation conducted by the Internal Affairs Bureau, the investigative findings provided by the Office of the Director of Police Accountability, which also included a report of the review by the Police Accountability Board. Sadly.

818
02:20:17.350 --> 02:20:29.800
Boardroom: cooperate with an Internal Affairs Bureau investigation, so I'm really curious to know what the chief used to reach her conclusion, that none of my allegations were sustained, or even considered founded.

819
02:20:30.150 --> 02:20:35.380
Boardroom: But interestingly, I never got anything from the PAB. I never got anything from the director.

820
02:20:35.690 --> 02:20:38.779
Boardroom: Our accountability mechanism is

821
02:20:38.920 --> 02:20:47.510

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: inoperable, dysfunctional, and for you to continue to give more weapons to the police that are unaccountable is irresponsible. Thanks, Andrea. Thanks.

822
02:20:54.930 --> 02:21:08.609
Boardroom: This is a non-agenda item, right? Your card has to be there. Oh, you have to have a card now. Sorry, I forgot. Okay. So the first, commenter online is phone number ending in 211.

823
02:21:15.350 --> 02:21:16.640
1510****211: Hi, good evening.

824
02:21:16.880 --> 02:21:19.949
1510****211: My assistant, Roy, hand you some

825
02:21:20.260 --> 02:21:24.100
1510****211: Documents, please read them. Respond. Should respond.

826
02:21:24.910 --> 02:21:32.600
1510****211: Our business, EIDSTV, have been in business for 52 years. We did over $200 million worth Bales?

827
02:21:32.920 --> 02:21:38.570
1510****211: who contributed over $1 million to the City of Berkeley Finances, and sales tax.

828
02:21:38.800 --> 02:21:40.610
1510****211: And license fees.

829
02:21:41.330 --> 02:21:43.440
1510****211: I wish, I, I hope…

830
02:21:43.680 --> 02:21:49.750
1510****211: Eleanor, hold on, listening to my call, because I talk, I called this lady many times, we had very friendly talks.

831
02:21:49.940 --> 02:21:53.020
1510****211: A while ago, but she never returned my call or email right now.

832
02:21:53.160 --> 02:22:05.639

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1510****211: I do need to email, and by the way, go down Telegraph, go down University, go down San Pablo, go down Chaddock. Blocks are closed, shut down, businesses, bad…

833
02:22:05.780 --> 02:22:08.810
1510****211: Mega landlords destroyed these businesses.

834
02:22:09.070 --> 02:22:12.279
1510****211: We need to bring the good life to Berkeley again.

835
02:22:12.700 --> 02:22:17.330
1510****211: Mayor Yigi, please give me a call. And this work brings.

836
02:22:17.330 --> 02:22:18.590
Boardroom: Berkey, great again.

837
02:22:18.590 --> 02:22:19.860
1510****211: Thank you.

838
02:22:21.330 --> 02:22:26.010
Boardroom: Next is…

839
02:22:29.610 --> 02:22:30.590
Boardroom: Eric?

840
02:22:30.720 --> 02:22:31.650
Boardroom: Eric?

841
02:22:31.830 --> 02:22:33.980
Boardroom: Should be able to unmute, unmute.

842
02:22:34.730 --> 02:22:51.800
Erik Knaresboro: Hello, my name is Eric Naresbro. I'm from the project Streets of Equality here in Berkeley. I wanted to talk to the Council and the Madam Mayor about the horrible conditions of ProWAG that we are allowing in this city. Not only has construction gotten un…

843
02:22:51.800 --> 02:23:01.350
Erik Knaresboro: Just completely unruly. But we are allowing them now to not only block sidewalks, but block the bicycle lanes that we have paid for.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

844
02:23:01.730 --> 02:23:03.230
Erik Knaresboro: This is…

845
02:23:03.540 --> 02:23:12.489
Erik Knaresboro: outrageous to me as a citizen of Berkeley, and even more outrageous as a disabled citizen of Berkeley. We are not

846
02:23:12.870 --> 02:23:16.660
Erik Knaresboro: Coming up with the standards that this city is known for.

847
02:23:16.670 --> 02:23:28.079
Erik Knaresboro: we are having in the disabled community to find different ways around everything, and it is almost every week. Adeline Street has been shut down for months now.

848
02:23:28.080 --> 02:23:39.619
Erik Knaresboro: You can hardly get to the East Bay Center for the Blind on certain roads, and I just don't know where to go anymore. I don't know what to do. It's absolutely outrageous. Thank you.

849
02:23:39.620 --> 02:23:40.810
Boardroom: Thanks for your comment.

850
02:23:43.810 --> 02:23:48.850
Boardroom: Okay, next is… Della Luna?

851
02:23:49.370 --> 02:23:51.169
Boardroom: Deluna, you should be able to…

852
02:23:51.170 --> 02:24:01.809
Della Luna (she/her) Huichun: Yes, I want to talk about a serious issue on the Berkeley streets. Right now, it is incredibly dangerous to walk as a pedestrian on the streets. It's also really dangerous to drive.

853
02:24:01.990 --> 02:24:07.999
Della Luna (she/her) Huichun: I wanted to speak about the pedestrian lights that were put up. I think, in theory, they are good.

854
02:24:08.270 --> 02:24:32.790
Della Luna (she/her) Huichun: But right now, the way they work, when the pedestrian pushes the lights, the lights start blinking at 6 different

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

spots across the intersection, and that split second, that actually distracts the driver. And the lights need to start blinking from where the pedestrian pushes the button, and then radiate out from there, and then start blinking everywhere. And I want to speak about the walkway, the pedestrian crosswalk at the Ashby BART. That was under construction, and the improvements were being made.

855
02:24:32.790 --> 02:24:35.400
Della Luna (she/her) Huichun: And there were signs, and there was cones.

856
02:24:35.690 --> 02:24:37.399
Della Luna (she/her) Huichun: And then all of that went away.

857
02:24:37.710 --> 02:24:49.349
Della Luna (she/her) Huichun: And before, the new crosswalk and the new, system had put reflectors and lights, and before it got finished. So, like, one crew finished.

858
02:24:49.350 --> 02:24:59.239
Della Luna (she/her) Huichun: and the next crew didn't come, there was a lag there, and someone just got hit in that crosswalk. So I think that this is something that the Public Safety Commission can work on to close those gaps.

859
02:24:59.240 --> 02:25:00.820
Boardroom: Thank you very much for your comment.

860
02:25:01.310 --> 02:25:05.770
Boardroom: Next is, virtual meetings.

861
02:25:13.740 --> 02:25:14.559
Boardroom: It shouldn't be…

862
02:25:14.560 --> 02:25:19.130
Virtual Meetings: Sorry, this is Wendy Alps, and I just wanted to,

863
02:25:19.320 --> 02:25:32.620
Virtual Meetings: ask you in what you… now that you have the City Auditor's report in mind to look at all of those recommendations in light of the flock contract coming to you in two weeks, is I think that

864
02:25:33.160 --> 02:25:35.730
Virtual Meetings: They should be applauded. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

865
02:25:36.710 --> 02:25:37.750
Boardroom: Thank you.

866
02:25:38.100 --> 02:25:42.690
Boardroom: That's the last one, that's 9 we could pull.

867
02:25:43.310 --> 02:25:51.119
Boardroom: One more card. Moni, did you want to make… I don't know if Moni's still here. Oh. Well, we have Celeste Marks. Okay. Oh.

868
02:25:51.230 --> 02:25:56.789
Boardroom: Well, Tony didn't put a card in. Oh, sorry. She didn't do a card, though, sorry.

869
02:25:57.030 --> 02:25:59.689
Boardroom: But I'm gonna let her go, cause she gave up.

870
02:26:00.220 --> 02:26:01.400
Boardroom: There you go. Okay.

871
02:26:01.500 --> 02:26:04.090
Boardroom: Thank you, Celeste. Thanks, Celeste.

872
02:26:08.000 --> 02:26:24.129
Boardroom: Last Monday, I was with Marcia Poole an hour before she passed… she had just passed away, and I know that you're honoring her. She's an icon of Berkeley. She's one of the legends. I'm doing a film called Legends of Berkeley, and I told her I'm gonna film her.

873
02:26:24.130 --> 02:26:48.949
Boardroom: about her, busting, a trafficking situation in Berkeley. It's a pretty famous story. If you don't know about it, you'll learn about Marsha Poole, and I just want to give honor to her memory. And the other thing was, dangerous intersections. Thank whoever in the city that put together the sidewalk covering and clearing, because a woman, a Cal student, got hit by a car, and she had been complaining about how the street had no marking of

874
02:26:48.950 --> 02:26:59.129
Boardroom: colors, so people couldn't see as they turned on college. So we need to do that at more intersections, because too many people are getting hit, and I'm a pedestrian, and I often run across the crosswalk.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

875
02:26:59.180 --> 02:27:03.000
Boardroom: So please, drivers out there, please be careful and don't hit anyone. Thank you.

876
02:27:03.640 --> 02:27:05.029
Boardroom: Thank you.

877
02:27:05.560 --> 02:27:13.199
Boardroom: Okay, so we are now moving on to public comment by employee unions. Are there any employee unions present?

878
02:27:15.390 --> 02:27:17.620
Boardroom: There's, anyone online?

879
02:27:17.780 --> 02:27:23.840
Boardroom: There's one online, Berkeley CSUPTRLA.

880
02:27:25.990 --> 02:27:26.830
Boardroom: Where'd you go?

881
02:27:27.680 --> 02:27:29.480
Boardroom: I should be able to unmute there.

882
02:27:31.800 --> 02:27:37.880
Berkeley CSU/PTRLA: Hi, good evening, this is Jocelyn Goldsmith DeSena from the SEIU 1021

883
02:27:37.990 --> 02:27:41.870
Berkeley CSU/PTRLA: C-S-U-P-T-R-L-A chapter, can you hear me okay?

884
02:27:42.560 --> 02:27:43.300
Boardroom: Yes.

885
02:27:43.300 --> 02:27:49.759
Berkeley CSU/PTRLA: Okay, great. I'm just gonna apologize in advance if you all hear me coughing, because I am getting over being sick.

886
02:27:50.050 --> 02:28:04.999

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Berkeley CSU/PTRLA: I am a public health worker at the WIC office, and I'm also a board-certified lactation consultant, and I'm the COPE coordinator for the CSU PTRLA chapter of SEIU 1021.

887
02:28:05.120 --> 02:28:12.049
Berkeley CSU/PTRLA: And I'm speaking tonight on behalf of our entire officer board.

888
02:28:12.580 --> 02:28:25.929
Berkeley CSU/PTRLA: We urge the Berkeley City Council to oppose the three proposed items that would reduce police oversight and accountability in the City of Berkeley, with particular attention to Item 17 this evening.

889
02:28:26.300 --> 02:28:32.120
Berkeley CSU/PTRLA: The proposed amendments to reporting and permissive processes for the use of chemical

890
02:28:32.720 --> 02:28:38.300
Berkeley CSU/PTRLA: Agents, helicopters, and police dogs are presented under the pretense of efficiency.

891
02:28:38.480 --> 02:28:46.530
Berkeley CSU/PTRLA: In reality, they would eliminate critical layers of oversight and transparency by removing officer accounts in the report.

892
02:28:46.820 --> 02:28:51.159
Berkeley CSU/PTRLA: This is not a matter of efficiency, it is a matter of public trust.

893
02:28:51.770 --> 02:28:53.290
Berkeley CSU/PTRLA: Excuse me.

894
02:28:53.500 --> 02:29:04.649
Berkeley CSU/PTRLA: Weakening reporting and review requirements risks eroding the confidence that residents and workers place in the Berkeley Police Department and in the City's commitment to accountability.

895
02:29:05.140 --> 02:29:15.239
Berkeley CSU/PTRLA: We are particularly alarmed by the proposal to lift the ban on the use of pepper spray and smoke for crowd control, as well as tear gas for special operations.

896
02:29:15.460 --> 02:29:23.509

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Berkeley CSU/PTRLA: Reauthorizing the use of chemical agents that have been well documented to have harmful impact does not make our communities safer.

897
02:29:23.630 --> 02:29:31.940
Berkeley CSU/PTRLA: Such measures would roll back reforms that were adopted in response to the over-militarization of policing in cities across the country.

898
02:29:32.240 --> 02:29:42.080
Berkeley CSU/PTRLA: Reversing these reforms sends a troubling message at a time when many communities are calling for greater transparency in public safety practices.

899
02:29:42.560 --> 02:29:50.709
Berkeley CSU/PTRLA: As officers of a union representing members who work in the City of Berkeley, we strongly oppose these items.

900
02:29:50.850 --> 02:29:57.070
Berkeley CSU/PTRLA: We, like you, want our colleagues in public safety roles to be safe and supported.

901
02:29:57.670 --> 02:30:02.899
Berkeley CSU/PTRLA: Excuse me. As they carry out challenging and sometimes dangerous work.

902
02:30:03.090 --> 02:30:08.450
Berkeley CSU/PTRLA: But safety cannot come at the expense of accountability or community well-being.

903
02:30:08.740 --> 02:30:19.669
Berkeley CSU/PTRLA: We believe our colleagues should be equipped with tools and training that protect them and the public, not measures that risk causing unnecessary harm to the very people we serve.

904
02:30:19.820 --> 02:30:28.929
Berkeley CSU/PTRLA: As workers in the City of Berkeley, we are deeply concerned about expanding access to these weapons and reducing oversight around their use.

905
02:30:30.140 --> 02:30:42.220
Berkeley CSU/PTRLA: We strongly urge you to consider the broader national context of rising mistrust in government institutions and increasing concern about state violence.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

906
02:30:42.480 --> 02:30:48.689
Berkeley CSU/PTRLA: Now is the time to strengthen transparency and community trust, not weaken it.

907
02:30:49.480 --> 02:31:01.189
Berkeley CSU/PTRLA: So, we, the officer board of CSU PTRLA chapter of SEIU 1021, respectfully ask you to vote no on item 17 tonight.

908
02:31:01.470 --> 02:31:02.990
Berkeley CSU/PTRLA: Thank you very much.

909
02:31:04.010 --> 02:31:05.000
Boardroom: Thank you.

910
02:31:06.100 --> 02:31:09.540
Boardroom: Is… are there any other, unions on?

911
02:31:12.200 --> 02:31:12.980
Boardroom: Okay.

912
02:31:13.470 --> 02:31:16.520
Boardroom: Alright, we will move on then. Thank you very much.

913
02:31:17.060 --> 02:31:30.080
Boardroom: Okay, so we are moving on to our consent calendar. I normally would give us a little stretch break, but I think we've got a lot of things to cover, so, let's keep moving. Are there any comments from my Councilmember colleagues?

914
02:31:31.140 --> 02:31:34.850
Boardroom: I imagine there are a bunch.

915
02:31:35.340 --> 02:31:36.380
Boardroom: Yeah.

916
02:31:36.690 --> 02:31:42.910
Boardroom: We need to accept this material, so I was… Expecting… yeah. Councilmember Treyko.

917
02:31:44.730 --> 02:31:55.770

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I would like to… Can I make a motion to accept both the urgency item and the supplemental?

918
02:31:56.660 --> 02:32:01.970
Boardroom: Yes, they both… Required two-thirds vote, so…

919
02:32:03.130 --> 02:32:14.579
Boardroom: Okay, I, I move to accept the urgent item, which is a, resolution, condemning the,

920
02:32:15.590 --> 02:32:25.850
Boardroom: illegal war on Iran and expressing support for Berkillians impacted by this crisis, as well as, our supplemental

921
02:32:25.880 --> 02:32:36.180
Boardroom: Number 3 to agenda Item 10, which is a resolution opposing the Bureau of Land Management Oil and Gas Leasing and drilling on California public lands and parks.

922
02:32:36.580 --> 02:32:37.460
Boardroom: Second.

923
02:32:39.780 --> 02:32:51.159
Boardroom: Is there any opposition to adding both of these items? Oh, I think we need to take a roll call vote for the, sure. Yeah. Okay, to accept both items, Councilmember Kessner-Wani…

924
02:32:51.900 --> 02:33:05.800
Boardroom: To accept the items, yes. Yes. Taplin? Yes. Bartlett? Yes. Craigam? Yes. Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Marishi? Yes. Okay.

925
02:33:06.360 --> 02:33:12.210
Boardroom: Okay. Those are accepted, and the urgent item is… Added to the consent calendar.

926
02:33:12.670 --> 02:33:15.580
Boardroom: Thank you. Going to Councilmember O'Keefe.

927
02:33:16.030 --> 02:33:18.500
Boardroom: I did not expect to be first.

928

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:33:18.740 --> 02:33:32.310
Boardroom: Actually, if you don't want to be first, I can also… I'd also like to move something else to this end. Yeah, let's do that. Okay, so, one of our old business items, item 18, was the City of Berkeley's 2026

929
02:33:32.310 --> 02:33:46.270
Boardroom: state and federal legislative platform, which, basically, we took everything that you all said last time, and we put it onto this one document, but I wanted it to be public so that people could see it. And then there was a friendly amendment that's being proposed that we also add.

930
02:33:46.270 --> 02:34:07.339
Boardroom: Support legislative and budgetary efforts to create a not-for-profit utility service to replace investor-owned utility programs, reduce the ratepayer burden imposed by investor-owned utilities, and support community choice energy under the infrastructure policy priorities. And so I'd like to add that as well, and then ask that we move that over to the,

931
02:34:07.710 --> 02:34:10.019
Boardroom: To the consent calendar.

932
02:34:11.190 --> 02:34:18.400
Boardroom: Is there a second? Does it need a second? Second. Sorry? Yeah. So, can we take the roll on that, please? Oh,

933
02:34:19.260 --> 02:34:22.490
Boardroom: If you could just move it to consent, you don't have to vote on it.

934
02:34:24.260 --> 02:34:25.620
Boardroom: Okay.

935
02:34:26.720 --> 02:34:34.520
Boardroom: Great. I mean, you can move it to consent if there's no objection. Yeah. There's no objection. Is there an objection? Okay.

936
02:34:34.710 --> 02:34:40.659
Boardroom: So that will save us a little bit of time. Very good. Okay, now…

937
02:34:40.810 --> 02:34:57.960

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Councilmember O'Keefe. Thanks. Yeah, I just have a bunch of disparate comments, I want to make sure I got them all. I want to start by thanking Councilmember Taplin for adding North Shattuck to the Entertainment Zones. I was gonna ask him for that, but he put it in the supplemental, so thank you so much.

938
02:34:58.340 --> 02:35:01.190
Boardroom: party in North Shattuck soon.

939
02:35:01.390 --> 02:35:08.910
Boardroom: I would like to, ask if I could co-sponsor item 10, Councilmember Trigger.

940
02:35:10.000 --> 02:35:14.479
Boardroom: The one we just… I would be deeply honored. Great, thank you.

941
02:35:14.870 --> 02:35:22.440
Boardroom: Good item. And then I would like to be recorded as donating $250 to item 12.

942
02:35:25.270 --> 02:35:44.619
Boardroom: And then the… okay, those are the smaller things. And then the larger thing I want to say regarding the AI items, I did actually want to go, early, because I wanted to clear up any confusion there might be. These… there's two AI items. They are, not in any way in opposition, so I had a couple people kind of…

943
02:35:44.620 --> 02:36:04.029
Boardroom: speculating about that, and I just wanted to clear it up. I'm, I wrote one, Councilmembers Bartlett and Trey Group wrote another one, and… What did I say? I said the wrong names. Anyway, Bartlett and Trey Group wrote the other one, and, it's all good. I think… I think what happened was both office… or all these offices, kind of.

944
02:36:04.470 --> 02:36:13.820
Boardroom: saw a need for something to be, done in this area, and we all kind of did it at the same time. I see my item, I'll just speak about my item,

945
02:36:13.820 --> 02:36:27.960
Boardroom: It's really designed to be much more, kind of, smaller and more practical than, I believe, the other item, although I'll let you guys describe it on your own. I really felt like, just from discussing the issue with the city manager, it seemed like

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

946
02:36:28.090 --> 02:36:30.309
Boardroom: You know, this is a very new…

947
02:36:30.440 --> 02:36:41.970
Boardroom: pretty much lawless technology. We don't understand it that well. People are using it. People should be using it in some contexts. It can be a really powerful tool for a lot of jobs, but we just… it seemed like…

948
02:36:42.280 --> 02:37:00.670
Boardroom: it would be a good idea, the city manager and I agreed, that there should be some sort of official city guidance for how to use it properly, because a lot of people, I think, feel really lost, like, what are the rules? There's some very, important issues of, like, maintaining privacy. People, we don't really…

949
02:37:00.740 --> 02:37:07.830
Boardroom: you know, I think it's important the city staff understands, don't just put a bunch of people's names into ChatGPT, right? Like, that's not,

950
02:37:08.260 --> 02:37:27.580
Boardroom: you know, we don't really understand where it goes, and that's… that's certainly problematic. So things like that, it just seemed prudent to have a couple of clear guidelines about how best to use this, and so my item is just really trying to do that. And I think, like I said, I'll let the other council members speak to their item, which is a little… I think it's just a little more…

951
02:37:27.710 --> 02:37:35.999
Boardroom: more, visionary than mine. So, I just want to assure nobody has to choose between them. I think I'm planning… I'm happy to support both. Thank you very much.

952
02:37:37.620 --> 02:37:40.589
Boardroom: Thank you very much. Councilmember Taplin.

953
02:37:42.740 --> 02:37:44.260
Boardroom: Thank you, and good evening.

954
02:37:44.400 --> 02:38:00.129
Boardroom: On item 7, the entertainment zones, I'd like to thank my co-sponsors, Vice Mayor Lunapara, Council Members Castromani and Blackaby, the members of the Land Use and Economic Development Committee, as well

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

as my fellow members of the Knight Council. And as Councilor O'Keefe mentioned, in the Sub 2,

955
02:38:00.430 --> 02:38:07.699
Boardroom: We have included Northstatic among the recommended stakeholder merchant stakeholders, thank you.

956
02:38:08.590 --> 02:38:10.740
Boardroom: Thank you very much. Councilmember Blackaby?

957
02:38:11.050 --> 02:38:30.240
Boardroom: Thanks, Madam Mayor. I'll just tick through a few of these items as well. Thanks to Councilmember Taplin for authoring the Entertainment Zone Ordinance and allowing me to co-sponsor. I support, entertainment and nightlife, even though I may not be the most, avid partaker of it, but I appreciate it, and the importance to the city.

958
02:38:30.270 --> 02:38:45.290
Boardroom: having a couple of kids, kind of limits your opportunities, but I like, I like, the way this is going. Wanted to support, and thank, Councilmember, Bartlett and Tregeb, and also, Councilmember O'Keefe for their AI items.

959
02:38:45.290 --> 02:39:09.769
Boardroom: Thanks to Councilmember O'Keefe for incorporating a few edits, that I suggested on her item. My main takeaway is it is important to have guardrails, it is important to have a framework, but I also want to make sure that city staff feel encouraged to do a little experimenting safely, because I think there is a lot of opportunity as long as we're responsible with it, especially at a period of time where we have real budgetary

960
02:39:09.850 --> 02:39:26.219
Boardroom: limitations and constraints, we need to find some other ways where we can scale, and this may be one of those things as we move forward, carefully and responsibly. So, a lot of the stuff that, I worked with Councilmember O'Keefe on was making sure we're sharing best practices internally. If one department

961
02:39:26.290 --> 02:39:34.079
Boardroom: discovers some really interesting application of it. We should share that with other departments, because there's probably a need for that across the organization.

962
02:39:34.080 --> 02:39:54.309

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And then we just continue to revisit the framework, continue to revisit the rules on a regular basis, because, as we know, this is moving really quickly, and so whatever we adopt tonight, may look a lot different in, 6 months, let alone 6 weeks or 6 days. So, again, but I just want to credit them for their leadership on this, and I think it's really important that we're taking this step.

963
02:39:54.520 --> 02:40:04.549
Boardroom: On the, on the micromobility Regulatory framework, thank you to Councilmember Tregeb for authoring it, thank you, for allowing me to co-sponsor it.

964
02:40:04.550 --> 02:40:23.070
Boardroom: This is a really important, thing in many of our districts, just making sure that, micromobility devices are better regulated, that there is more safety, that there's more onus on the providers of the micromobility devices, as well as the riders, to take responsibility.

965
02:40:23.070 --> 02:40:32.949
Boardroom: We need to figure this out, because again, it is an important transportation solution, but in its current state, it is causing real hazards on sidewalks and on streets.

966
02:40:32.950 --> 02:40:47.600
Boardroom: A lot of us have constituents who, find it very difficult to navigate, sidewalks and streets with devices, and we need to figure this out, as quickly as we can, so I appreciate Councilmember Tregeb's, authorship of this and allowing me to ride along, as it were.

967
02:40:47.970 --> 02:41:05.030
Boardroom: Also, Councilmember Trego, I believe I'm a co-sponsor on number 10, is that right? Just to… You are. I was gonna add you, but… Thank you, sorry, okay, I'll… you can add that, but thank you for authoring this as well on the… opposing the, oil and gas leasing on California public lands.

968
02:41:05.670 --> 02:41:20.729
Boardroom: On item 12, on the Berkeley Free Clinic, I'd like to record our office's, relinquishing $250 towards the item. Thank you to Councilmember, Vice Mayor Luna Parra for authoring this item.

969
02:41:21.040 --> 02:41:28.340
Boardroom: And on item 13, thank you so much as we're thinking about housing…

970

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:41:28.540 --> 02:41:41.519
Boardroom: zoning questions and concerns across the city, that we're making sure we're looking at other high-resource areas, not just the corridors, as we're moving forward. And so, Councilmember Humbert's, item to look at

971
02:41:41.550 --> 02:41:49.260
Boardroom: what might be possible on Telegraph, on Claremont, and other places around the city. I just, again, appreciate, your authoring that and your leadership on that.

972
02:41:49.500 --> 02:41:51.279
Boardroom: And that's it for now. Thank you.

973
02:41:51.470 --> 02:41:53.979
Boardroom: Thank you very much. Councilmember Treykop.

974
02:41:55.060 --> 02:41:57.889
Boardroom: Thank you, Madam Mayor.

975
02:41:58.210 --> 02:42:09.550
Boardroom: First of all, on item 2, which is the reestablishment of the downtown Berkeley Property and Business Improvement District, would… would like to thank,

976
02:42:09.570 --> 02:42:24.419
Boardroom: Eleanor and the entire economic development team, as well as, the City Manager and Deputy City Manager David White, who, attends the monthly,

977
02:42:24.670 --> 02:42:39.600
Boardroom: Downtown Berkeley Association meetings, and of course, would be very remiss in not thanking John Kaner, who is, sitting right here. Excited to see this, move forward.

978
02:42:40.060 --> 02:42:45.040
Boardroom: Downtown Berkeley, May have its challenges that we're working through.

979
02:42:45.240 --> 02:42:47.770
Boardroom: But it is a downtown that is on the rise.

980
02:42:47.950 --> 02:42:54.900

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Next, I would like to…

981
02:42:55.330 --> 02:43:14.499
Boardroom: I would like to thank, Councilmember Kaplan, for his Entertainment Zone item. It was a very popular item, so while I did not get a chance to be a co-sponsor of this one, I'm excited to support it and, continue to partner, with your office on next steps.

982
02:43:14.670 --> 02:43:21.859
Boardroom: I'm very proud of Berkeley for taking a thoughtful and proactive approach to artificial intelligence.

983
02:43:21.860 --> 02:43:36.829
Boardroom: AI is already here and evolving rapidly. Whether we welcome it or not, it is shaping how we live and work. Our responsibility as a city is to educate ourselves, protect our workers, and thoughtfully explore how this technology can serve the public good.

984
02:43:36.830 --> 02:43:39.330
Boardroom: Even when the path forward is complex.

985
02:43:39.330 --> 02:43:49.289
Boardroom: It is important that we try to stay ahead of these developments, rather than simply react to them later. And in that spirit, I'm proud to be respectful

986
02:43:49.340 --> 02:44:00.379
Boardroom: respectively, an author and a co-sponsor of two AI items before us tonight. Item 8, with Councilmember Bartlett, the Berkeley Rule,

987
02:44:00.380 --> 02:44:11.919
Boardroom: the Artificial Intelligence Municipal Framework, as well as item 11, by Councilmember O'Keefe, Citywide Guidelines on Artificial Intelligence.

988
02:44:13.240 --> 02:44:24.880
Boardroom: On the, our referral, item 9, strengthening Berkeley's micromobility Regulatory framework to improve public safety, AD accessibility, and operator accountability.

989
02:44:24.960 --> 02:44:35.839

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I would like to, in addition to thanking Fights for their positive recommendation, and Councilmember Blackaby for his thought partnership.

990
02:44:35.840 --> 02:44:53.040
Boardroom: I'd like to express my deepest gratitude to our public works staff, especially Wahid Amiri, for his tremendous help in developing the micromobility safety item before us tonight, as well as his team that we worked with closely.

991
02:44:53.040 --> 02:44:56.889
Boardroom: I know, I know that,

992
02:44:57.110 --> 02:45:07.069
Boardroom: This is only one step, and it is not lost on me that probably in the foreseeable future, I will still have to continue to move,

993
02:45:07.070 --> 02:45:19.010
Boardroom: scooters out of the way, if they're parked illegally, but I'm prepared to do so whenever I see that in my district, while also working on meaningful policies such as this one.

994
02:45:19.130 --> 02:45:27.580
Boardroom: And I would like to, just briefly on item 10,

995
02:45:27.610 --> 02:45:42.719
Boardroom: make sure we are adding, council members, Blackaby and O'Keefe as co-sponsors, and, think there was a question, if, if there, if there was someone else interested, I, perhaps.

996
02:45:42.720 --> 02:45:52.410
Boardroom: Vice Mayor Luna Parra, I just couldn't remember if there was a conversation, but would be happy to add you. We do have a spot available,

997
02:45:53.580 --> 02:46:03.240
Boardroom: And, appreciate your support for admitting these amendments, into the item,

998
02:46:04.300 --> 02:46:20.980
Boardroom: And lastly, item 12, Berkeley Free Clinic Critical Renovations. I would like to relinquish $150 from my G13 account, with gratitude to the Vice Mayor for this item, and her co-sponsors.

999

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:46:21.090 --> 02:46:22.050
Boardroom: Thank you.

1000
02:46:22.630 --> 02:46:29.370
Boardroom: Thank you. Can I just respond quickly? I would love to be added to item 10. Thanks. Considerably done.

1001
02:46:30.200 --> 02:46:33.039
Boardroom: Okay, thank you. Alright, moving on, Councilmember Humbert.

1002
02:46:33.940 --> 02:46:36.740
Boardroom: Thank you, Madam Mayor. I'd like to…

1003
02:46:36.950 --> 02:46:49.540
Boardroom: As on item number 12, the Berkeley Free Clinic Critical Renovations item, brought by Councilmember Luna Parra, I'd like to contribute, $250 from our office account.

1004
02:46:49.560 --> 02:47:05.370
Boardroom: D8's office account. And with respect to, item number 13, which is Pitch, the project to increase telegraph and Claremont housing, I'd like to add Councilmember Kassarwani as a co-sponsor, with her permission.

1005
02:47:05.760 --> 02:47:11.220
Boardroom: And I want to say, with respect to this item, my proposal to increase

1006
02:47:11.440 --> 02:47:20.590
Boardroom: housing on Telegraph and certain places up in the Claremont. I want to thank planning staff and the City Attorney's Office for their assistance.

1007
02:47:20.590 --> 02:47:31.920
Boardroom: In preparing the item, I also want to thank the Land Use Committee for their excellent input, which I was happy to incorporate, and also thank my colleagues on the Agenda Committee for being open to putting this on consent.

1008
02:47:32.040 --> 02:47:38.999
Boardroom: I just want to make a note of a couple of minor changes to the item that were provided in the supplemental that we filed.

1009

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:47:39.030 --> 02:47:46.230
Boardroom: The first is that I wanted to make sure that staff had flexibility within the item's direction around base heights.

1010
02:47:46.230 --> 02:48:03.209
Boardroom: to make sure we are studying what height options will enable us to optimize the provision of affordable housing. So we're not just automatically defaulting to a certain base height if it won't actually result in more housing, and might, in fact, reduce provision of inclusionary units.

1011
02:48:03.510 --> 02:48:21.889
Boardroom: And second, also to specify that the staff work would include any general plan amendments and attendant work that may be necessary. I think this was implied in the original item, but, with, input from the City Attorney's Office, I wanted to make it explicit. Thank you.

1012
02:48:23.480 --> 02:48:25.819
Boardroom: Thank you. Vice Mayor Lunapara.

1013
02:48:26.560 --> 02:48:41.200
Boardroom: Thank you. First, I was proud to author this urgency item, condemning the Trump administration's illegal declaration of war in Iran, and expressing the City Council's support for our constituents impacted by this crisis.

1014
02:48:41.680 --> 02:49:00.990
Boardroom: I'm also very excited to co-sponsor the Entertainment Zone item. I want to thank Councilmember Taplin for developing this item and inviting me to co-sponsor. Data shows that our communities are safest and small businesses are the most profitable with increased foot traffic. So I look forward to seeing how these changes increase the number of street events on Telegraph and Durant and Southside.

1015
02:49:01.310 --> 02:49:21.210
Boardroom: I was also proud to author item 12, the discretionary item, supporting critical renovations at the Berkeley Free Clinic's new location in West Berkeley. The Berkeley Free Clinic has served as a cornerstone of community health for over 5 decades, and I'm really happy that we're able to provide them with some much-needed financial support this evening.

1016
02:49:21.280 --> 02:49:22.460
Boardroom: Thank you so much.

1017

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:49:22.560 --> 02:49:25.180
Boardroom: Thank you very much, and Councilmember Bartlett.

1018
02:49:26.100 --> 02:49:34.619
Boardroom: Thank you, Madam Mayor. Just running through the packed agenda here. Very excited about item 3, the, Ashby Bart East Lot.

1019
02:49:34.800 --> 02:49:48.530
Boardroom: transit-Oriented Development RFP framework. So this is wonderful, so at long last, the city is poised to release its RFP, to get people applying, to fulfill our dreams at the East Lot Dashby Park.

1020
02:49:48.950 --> 02:49:59.630
Boardroom: really excited about that, all these years. The entertainment zone ordinance, thank you, Councilor Taplin, for this. I understand that the Lauren District, the South Brugget District, could not be in due to the…

1021
02:49:59.630 --> 02:50:20.810
Boardroom: geographic spacing of our, booze halls. So… so I do want to just flag this for the staff, anyone's listening. I see you over there, I see you over there. When they look through this, could they possibly find a way to… to get us in there, too? We used to have, for years, illegal, street parties in South Berkeley, it was wonderful, on the sidewalk.

1022
02:50:20.810 --> 02:50:24.209
Boardroom: So we know how to do it. We can have a good time. We know how to have a good time.

1023
02:50:24.250 --> 02:50:27.320
Boardroom: Trust us. The Berkeley Rule…

1024
02:50:27.400 --> 02:50:44.569
Boardroom: And, this is my, my item here, we worked on it really hard. Came out of conversations with, the city manager. We were, it looks like there was some, a scattershot approach, evolving, we were getting hit up by vendors, and so, we thought it'd be interesting to, to…

1025
02:50:44.920 --> 02:50:47.099
Boardroom: kind of not let AI happen to us.

1026
02:50:47.310 --> 02:50:53.030
Boardroom: But let us have an AI. And so, essentially, this is an effort to articulate,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1027
02:50:53.040 --> 02:51:07.550
Boardroom: community vision, community values, and implant that into the industry. And let's see what comes out of that. And I also want to thank Council O'Keefe, and I'm a co-sponsor on your wonderful item with you and Mr. Blackaby, on a more, regulatory approach.

1028
02:51:07.550 --> 02:51:14.979
Boardroom: To the industry, thank you for that. We are providing leadership, in a much-needed time, trust me.

1029
02:51:15.370 --> 02:51:23.049
Boardroom: $250, please, from my office to the Berkeley Free Clinic. Thank you, Vice Mayor Lenapara, for that. They do great work over there.

1030
02:51:23.220 --> 02:51:29.830
Boardroom: I really do. And, and then I want to thank Councilmember Humbert for your excellent work on the pitch item.

1031
02:51:30.120 --> 02:51:33.579
Boardroom: This is, very delicate work. Yours too, Madam Mayor.

1032
02:51:33.670 --> 02:51:41.910
Boardroom: very delicate work here to increase housing equity, everywhere in Berkeley. And thank you, I'm happy to help you in every single way. Thank you. Thank you.

1033
02:51:41.980 --> 02:51:58.710
Boardroom: Thank you very much. Councilmember Kesarwani. Thank you very much, Madam Mayor. I also wanted to just chime in and recognize item 3, the, request for proposal framework for the Ashby East Lot. This is very exciting, and

1034
02:51:58.710 --> 02:52:04.789
Boardroom: you know, we look forward to, both, both BART stations breaking ground soon.

1035
02:52:04.790 --> 02:52:22.229
Boardroom: Item number 7, I want to thank Councilmember Taplin for the Entertainment Zone item. I was very pleased to co-sponsor that. And item number 12, Councilmember Lunapata, I'd like to be recorded as donating $100 for the, Berkeley Free Clinic critical renovations.

1036

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:52:22.440 --> 02:52:39.350
Boardroom: And then finally, item 13, I want to thank Councilmember Humbert… well, I guess you're all authors. Thank all of you, the Mayor and Councilmember Bartlett, for this item to, rezone Telegraph in Claremont, and I'm very, pleased to be able to co-sponsor that item. That's it. Thank you very much.

1037
02:52:39.550 --> 02:53:04.169
Boardroom: Thank you. Just gonna add my excitement about the Ashby Bart Eastlot RFP, and applaud the addition of the, universal design standards and 25% affordability going to, units reserved for people with, disabilities. So, very excited about that. And I don't think it's clarified on there, so for Berkeley Free Clinic, I know I'm listed as a co-sponsor, but $250 for my office.

1038
02:53:04.170 --> 02:53:04.850
Boardroom: office.

1039
02:53:05.020 --> 02:53:13.889
Boardroom: Okay, very good. We are now going to move on to public comment for consent calendar items and information items only.

1040
02:53:14.590 --> 02:53:15.759
Boardroom: Come on up!

1041
02:53:19.970 --> 02:53:27.239
Boardroom: Good evening, Council. John Kainer, Downtown Berkeley Association. Want to thank Council and staff

1042
02:53:27.310 --> 02:53:52.279
Boardroom: for the work in the renewing of the downtown Berkeley PBED, and particularly Councilmember Chev and his partnership, and the City Manager and all the staff. This is a 10-year renewal. We did 5 for the first time in 2012, and then 2017, another 10 years. It's about a 20% rate increase, about 8% to 9% is, structural cost changes, and then about 12% we're doing a safety ambassador program.

1043
02:53:52.280 --> 02:53:54.689
Boardroom: which will be rolled out in January.

1044
02:53:54.690 --> 02:54:08.050
Boardroom: Because that was a key issue. We talked to over 500 stakeholders in the downtown. There's an ability within 5 years for the board also to trigger perhaps another 10% for a larger economic development and retail attraction role.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1045
02:54:08.050 --> 02:54:25.199
Boardroom: I, also just want to thank you, particularly, Councilmember, Taplin for the Economic Zone Works. We fully, fully support that, as I spoke earlier, we need to support events, joyous events, in the downtown. So thank you all very much.

1046
02:54:25.280 --> 02:54:34.069
Boardroom: Thank you. I think it said for 2 minutes, it should be 1, right? And I'm sorry, in the back, could you please take your conversation outside? Thank you. Okay.

1047
02:54:36.920 --> 02:54:56.369
Boardroom: Good evening, Mayor Ishii, members of the Council. My name is Daniel Swafford, I'm the Executive Director of the North Shattuck Association Business Improvement District, and just wanted to come out in person and, thank Councilmember Taplin and other members of the Subcommittee on Entertainment Zones, for the vision and for the effort and for the encouragement to get more people out.

1048
02:54:56.370 --> 02:55:21.299
Boardroom: support our small business community. The district is wholeheartedly behind the initiative and will be there as a true partner with the city, so thank you for that. And just incidentally, in the spirit of entertainment zones, I invite you to come to North Shattuck and walk down the street. New Street Banners just went up showcasing 13 different Berkeley artists from all over the city to create a wonderful outdoor gallery, so those are the kind of things you can do

1049
02:55:21.300 --> 02:55:31.530
Boardroom: and walking, and getting into different restaurants and bars, and just really celebrating community in the way that so many of us are excited to do this spring and summer, so I appreciate you all.

1050
02:55:31.990 --> 02:55:33.250
Boardroom: Thank you.

1051
02:55:36.920 --> 02:55:51.650
Boardroom: My name is Cherie King, and I do tennis tournaments at San Pablo Park. Last year, I have had a contract with the Park and Rec for over 10 years, and have generated a number of $400,000. This year, I generated $66,000.

1052
02:55:51.990 --> 02:55:59.210

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Because, I am the… Officer of Operation Pride, I also do Cheaters.

1053
02:55:59.580 --> 02:56:06.220
Boardroom: lessons, and I also support the Park and Rec goals and objectives.

1054
02:56:06.570 --> 02:56:13.560
Boardroom: What's important about doing tournaments is that I represent the United States Tennis Association. I am on the board.

1055
02:56:13.600 --> 02:56:26.860
Boardroom: I have done tournaments, I've received a tournament of the Year twice, and what happens is, when you bring a tournament to town, they spend money. I did a tournament last weekend, and I had 27 kids, and 50 parents came to see their children play.

1056
02:56:26.860 --> 02:56:38.649
Boardroom: I do one every year. I have a small after-school program, and that after-school program is a low-income program, and I'll just say, I changed that to Fit Your Budget Program, because what it does is…

1057
02:56:38.850 --> 02:56:49.230
Boardroom: Thank you. Thanks so much. Was that related to the entertainment zones item? You know, I need to practice the one minute. No worries, I know it's tough. Thank you for coming, I appreciate your public comment. Thank you.

1058
02:56:51.660 --> 02:57:10.570
Boardroom: Good evening all. My name's Tom Parrish, I'm the Managing Director of Berkeley Repertory, theater, and a member of the board of the Downtown Berkeley Association, and I'm here to voice my support for the renewal of the Property-Based Improvement District downtown, as well as the entertainment zones, and thank you all for your efforts to increase the vitality of our city. Thanks.

1059
02:57:11.300 --> 02:57:12.410
Boardroom: Thanks, Tom.

1060
02:57:17.400 --> 02:57:28.930
Boardroom: Hello, I'm David Mayeri. I'm the CEO of the UC Theater. I'm here to support item number 2, as well as item number 7. Both of them, I think, are very important for different reasons.

1061

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:57:28.960 --> 02:57:45.339
Boardroom: The, watching, John's work over the last 10 years, in the downtown PBID, it really has brought, a great sense of community, kept the streets clean, Goodwill ambassadors there to answer questions, and really helped to.

1062
02:57:45.340 --> 02:57:50.159
Boardroom: foster a great sense of community. Regarding the, entertainment zones.

1063
02:57:50.160 --> 02:58:10.150
Boardroom: It's a great opportunity to revitalize different areas of the city, to create this outdoor activity. It'll generate revenue for small businesses, create safer streets, and just generally, I think, improve Berkeley as a place for people to go out and enjoy and hang and have a good time. Thank you. Thank you.

1064
02:58:11.500 --> 02:58:14.120
Boardroom: She's quiet and Okay.

1065
02:58:15.100 --> 02:58:26.940
Boardroom: Hello, everyone. My name is, Sahar Maleki, and I'm a resident. So, I, wanted to comment on one of the resolutions that I think was put on the

1066
02:58:27.130 --> 02:58:29.569
Boardroom: Constant table as an…

1067
02:58:30.520 --> 02:58:44.220
Boardroom: as an Iranian-American, I just wanted to express my disappointment as a voice of Iranian people. I know that they are not for this consent table, this resolution.

1068
02:58:44.310 --> 02:58:55.259
Boardroom: I think that the reasons that were expressed was financial and, peace. I think that Iranian people want to be helped. There were…

1069
02:58:55.270 --> 02:59:04.580
Boardroom: massacre, occurred in Iran about, two months ago, and they look at it as a, help.

1070
02:59:04.740 --> 02:59:18.499

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: from outside, they don't look at this as a war against them. Also, as an American, I think that this may, help to peace in the long run. Thank you. Thank you.

1071
02:59:21.260 --> 02:59:27.729
Boardroom: Carol Morasvik speaking in my individual capacity, because I'm not authorized by the Peace and Justice Commission.

1072
02:59:28.070 --> 02:59:34.979
Boardroom: But I'm unable to reach the author of the item, who is Iranian. Last night, we actually voted

1073
02:59:35.080 --> 02:59:40.890
Boardroom: on a, recommendation on Iran.

1074
02:59:40.890 --> 02:59:54.980
Boardroom: And I will read that out. Adopt a resolution reaffirming the commitment of the City of Berkeley to international peace, opposing the war in Iran, an unconstitutional war initiated unilaterally by the U.S. President.

1075
02:59:54.980 --> 03:00:05.220
Boardroom: without congressional authorization, and expressing solidarity with the people of Iran and their right to self-determination. I did add the friendly amendment about the…

1076
03:00:05.220 --> 03:00:17.749
Boardroom: unconstitutionality. So, we did pass this last night. I am gonna add, actually, I was lobbied most of the day to not vote for this, and…

1077
03:00:17.820 --> 03:00:27.179
Boardroom: And that Council would never pass an item like this. So it's going to be interesting when I share it with the Commission. Thank you. Thank you.

1078
03:00:32.260 --> 03:00:41.109
Boardroom: About that urgency item, is it already passed? There was no opposition, so it's passed by consent already, or you will be swayed by our…

1079
03:00:41.400 --> 03:00:42.240
Boardroom: Okay.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1080
03:00:42.630 --> 03:00:58.429
Boardroom: Oh, yeah. So I, I wrote a resolution to end the war before it starts about Iran. Must have been 12 years or so ago, because it was in the crosshairs of the Project for a New American, yes, century. And, it was…

1081
03:00:58.880 --> 03:01:11.340
Boardroom: this is very mild compared to that one, and yet that one passed unanimously. And look, Berkeley did it! Berkeley staved off the war on Iran for all these years.

1082
03:01:11.370 --> 03:01:22.000
Boardroom: It's very important to take this stand, and I have many Iranian friends who live here who would be in favor of it, who are in favor of stopping the war.

1083
03:01:22.410 --> 03:01:28.469
Boardroom: Because of all the suffering that war causes, and of course, it's more complicated than that.

1084
03:01:28.640 --> 03:01:31.479
Boardroom: So, you know that the…

1085
03:01:32.290 --> 03:01:39.079
Boardroom: 85 seconds to midnight, the doomsday clock. The war in Iran will affect all of us. Thank you.

1086
03:01:44.580 --> 03:01:56.580
Boardroom: Well, I just wanted to offer my hearty support to anything that's going to the Berkeley Free Clinic. That is a beloved institution. I think they do great work. And, you know, it's still my hope that we will have a special care unit.

1087
03:01:56.750 --> 03:02:04.970
Boardroom: Still my hope that one day we will find those ambulances, Those beautiful wheelchair-accessible transport vans.

1088
03:02:05.260 --> 03:02:23.189
Boardroom: And I believe that we should continue, in whatever way we can, to build out the philosophy of the Berkeley Free Clinic, which was about community collaboration, which was about not calling the police, but providing care. And I continue to ride my bike through the streets of this town.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1089
03:02:23.390 --> 03:02:26.859
Boardroom: I continue to see people who are in great distress.

1090
03:02:26.990 --> 03:02:29.049
Boardroom: And I have no idea where to call.

1091
03:02:29.540 --> 03:02:32.270
Boardroom: And if anybody on this council can advise me.

1092
03:02:32.710 --> 03:02:34.439
Boardroom: I, I, I'd love to hear it.

1093
03:02:34.570 --> 03:02:37.739
Boardroom: Because right now, we have fire trucks and police.

1094
03:02:38.080 --> 03:02:44.319
Boardroom: But somebody to sit down with a cup of coffee and talk to somebody. Offer them some care, some transport.

1095
03:02:44.450 --> 03:02:45.380
Boardroom: Some love.

1096
03:02:45.690 --> 03:02:47.480
Boardroom: Thank you. Thanks, Andrea.

1097
03:02:51.560 --> 03:02:52.330
Boardroom: Hello?

1098
03:02:52.550 --> 03:02:58.650
Boardroom: My name is Rithwick, I just wanted to quickly express support for the AI items and

1099
03:02:58.790 --> 03:03:10.590
Boardroom: I guess I feel positive that Berkeley can lead in terms of AI policy. I'm also a recent graduate from the University of California here, and I studied

1100
03:03:10.690 --> 03:03:27.470
Boardroom: and researched both AI implementation and policymaking. Berkeley is internationally regarded as maybe the number one place to

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

study both of those topics, and so I also think, looking at the economic dashboard packet here, which encourages

1101
03:03:27.550 --> 03:03:30.959
Boardroom: city-university connections, I think,

1102
03:03:31.370 --> 03:03:40.830
Boardroom: Having advice from staff, professors, students from the university could mean a lot for the implementation and execution of those two AI policies.

1103
03:03:41.680 --> 03:03:42.400
Boardroom: Okay.

1104
03:03:42.510 --> 03:03:58.059
Boardroom: And Mayor, we have, 12 speakers online, so we'll go to the first speaker, that's Merrill Siegel. Is it possible to speak about AI tools? No, I'm sorry, Phoebe, you had your time. Merrill Siegel? I saw your shirt, though. I think your shirt says it.

1105
03:03:58.500 --> 03:04:06.529
Boardroom: Well, why don't we stop following? I know. Narrow applications are okay. Thanks. Sounds good.

1106
03:04:08.710 --> 03:04:10.879
Boardroom: Merrill Siegel, you should be able to speak.

1107
03:04:11.820 --> 03:04:23.500
meryl siegal: Thank you. Regarding the entertainment zone ordinance, it is really great, but there's a complication, and I was requesting that the City Council

1108
03:04:23.650 --> 03:04:31.449
meryl siegal: remove the item from consent and put it to action. And the reason why is that

1109
03:04:32.200 --> 03:04:37.129
meryl siegal: The city right now is in a $30 million budget deficit.

1110
03:04:37.360 --> 03:04:53.490
meryl siegal: But because this item would require staff time, and there is no real urgent need for this measure, and because it's still not

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

possible to understand the effects of this measure on the San Pablo Avenue-specific plan.

1111
03:04:53.490 --> 03:05:00.699
meryl siegal: Because the way it's written right now, it's like, maybe the part of San Pablo Avenue that's

1112
03:05:01.040 --> 03:05:17.170
meryl siegal: south of University Avenue will be included, but the rest of San Pablo won't, but there will be a Gilman District. I… I appreciate the thought that went into this measure, but.

1113
03:05:17.170 --> 03:05:18.030
Boardroom: Thanks, Mary.

1114
03:05:18.030 --> 03:05:20.170
meryl siegal: We… can I just say one… one…

1115
03:05:20.170 --> 03:05:25.689
Boardroom: Sorry, Daryl, your time's up. Thank you. Thanks for your comment. Okay, my next speaker is,

1116
03:05:26.550 --> 03:05:28.970
Boardroom: Speaker is listed as Iran.

1117
03:05:32.010 --> 03:05:49.510
Iran: Good evening, council members. I stand by Sahar earlier. I want to announce that I'm deeply opposed the Iran resolution item, and request that it be pulled from the consent calendar and moved to the action calendar.

1118
03:05:49.510 --> 03:05:59.749
Iran: for full public discussion. As an Iranian-American who lived under that regime for 27 years and has first degree and second degree family members.

1119
03:05:59.750 --> 03:06:04.719
Iran: Currently living in Iran. I'm telling you, and on behalf of all Iranian people.

1120
03:06:04.830 --> 03:06:10.949
Iran: This is not peace, this is not war against Iran. Iranian people want this help.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1121
03:06:11.230 --> 03:06:19.100
Iran: This is war against a fascist theocracy that murdered, brutally, 40,000 people.

1122
03:06:19.340 --> 03:06:21.759
Iran: Innocent people, unarmed people.

1123
03:06:22.160 --> 03:06:34.369
Iran: And whoever voted for this, standing by that fascist theocracy, I want you to understand the gravity of this matter, and don't just fall for any propaganda that you see.

1124
03:06:34.370 --> 03:06:35.440
Boardroom: Thank you.

1125
03:06:38.100 --> 03:06:45.309
Boardroom: Next is, speaker is, Mohsen Hushman.

1126
03:06:46.940 --> 03:06:48.240
Boardroom: Where'd he… oh.

1127
03:06:48.500 --> 03:06:49.380
Boardroom: Where'd he go?

1128
03:06:52.970 --> 03:06:56.999
Boardroom: there he is. Mohsen?

1129
03:06:58.250 --> 03:07:12.110
Mohsen Houshmand: Yeah, hi, hi, everybody. So, I want to, confirm the Iran accounts, and Sahar speaking regarding the Iran war. It's not… it's not the war against Iran, it's a war against the

1130
03:07:12.150 --> 03:07:28.779
Mohsen Houshmand: Ashist regime, and I oppose those, those resolutions, and I… I highly appreciate if, if I request it, if it be pulled from the consensus calendar and moved to the action calendar for full public discussion. Thank you.

1131
03:07:29.850 --> 03:07:30.760
Boardroom: Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1132
03:07:33.510 --> 03:07:36.740
Boardroom: Next is, Marzan Hafezi.

1133
03:07:40.240 --> 03:08:04.940
Marjan Hafezi: Good evening, thank you for taking my comment. I also want to oppose this resolution, just because, living in… inside the Iran and living the conditions with execution, torture, political prisoners, systematic oppression of women, thousands of young people have been killed, so why are we even suggesting

1134
03:08:04.940 --> 03:08:08.629
Marjan Hafezi: this humanitarian act to stop.

1135
03:08:08.680 --> 03:08:09.440
Marjan Hafezi: if…

1136
03:08:09.440 --> 03:08:32.620
Marjan Hafezi: If any of us live under those conditions, that is what we would want people to do for us. 90 million people are asking for help, and here, thousand miles away from Iran, we sit here and take the authority to speak for those 90 million people. So please, no on this resolution.

1137
03:08:32.710 --> 03:08:33.879
Marjan Hafezi: Thank you.

1138
03:08:33.880 --> 03:08:35.180
Boardroom: Thank you.

1139
03:08:36.990 --> 03:08:41.590
Boardroom: Next is, eric Naresbarrow? Borough?

1140
03:08:43.720 --> 03:08:52.630
Erik Knaresboro: Hello, Councilmembers and Madam Mayor. I wanted to talk about the, agenda number 9.

1141
03:08:54.360 --> 03:09:05.840
Erik Knaresboro: Igor Trega and Blackaby's, author of Micro Mobility Accountability. I'm legally blind. My fiancee is totally blind. We work with guide dogs.

1142
03:09:06.020 --> 03:09:12.899

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Erik Knaresboro: the scooter epidemic, and I'm gonna call it an epidemic because it's a major issue here in this city.

1143
03:09:12.900 --> 03:09:28.090
Erik Knaresboro: We are literally falling over scooters every day. If we don't bring our guide dogs with us and just choose to use our canes, we are putting ourselves at risk for injury. Not only us, but all of our fellow disabled people.

1144
03:09:28.100 --> 03:09:30.049
Erik Knaresboro: All of our fellow…

1145
03:09:30.630 --> 03:09:46.840
Erik Knaresboro: Aging people. This is a problem. We need a solution, and I believe that Igor and Blackaby have that solution. We need to make sure that these companies are held accountable. Thank you.

1146
03:09:51.890 --> 03:10:02.510
Boardroom: Let's see… They spoke, and they spoke… Next is… Katrin?

1147
03:10:11.890 --> 03:10:16.050
Boardroom: You're unmuted, you should be able to… Speak.

1148
03:10:17.980 --> 03:10:19.520
Boardroom: Katrin, are you there?

1149
03:10:20.550 --> 03:10:21.730
Katrin: Yes, can you hear me?

1150
03:10:21.910 --> 03:10:23.329
Boardroom: Yes, yes, we can.

1151
03:10:23.880 --> 03:10:42.319
Katrin: Okay. I am also an Iranian, and I am here to share an Iranian perspective about the current crisis in Iran. I'm deeply opposed to the resolution that was done yesterday about Iran. The people of Iran are in a war with the regime, and that was happening for 47 years.

1152
03:10:42.320 --> 03:11:05.549
Katrin: The regime of Iran has maintained a posture of hostility toward Western countries and has supported destabilizing activities and terrorism in the region and beyond. What we are witnessing today is the culmination of a long struggle between the Iranian people and the ruling

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

regime. In the recent events, this situation has developed into a severe human…

1153
03:11:05.550 --> 03:11:28.940
Katrin: humanitarian crisis that requires immediate international attention. We urge observers to set aside partisan political biases and recognize this situation for what it is, a humanitarian crisis that demands serious international concern and response. Thank you. I, as an Iranian… yes.

1154
03:11:29.010 --> 03:11:31.949
Boardroom: Thank you, Sarah, your time is up, but thank you for your comment.

1155
03:11:33.460 --> 03:11:35.689
Boardroom: Next is Sue Smith.

1156
03:11:41.170 --> 03:11:44.620
Sue Smith: Hi, I actually,

1157
03:11:44.760 --> 03:11:54.619
Sue Smith: have a couple of friends that want to speak, and they're not, they're having trouble getting their Zoom hands recognized. What can they do?

1158
03:11:55.830 --> 03:11:59.849
Boardroom: Well, there's a long list, so we haven't… maybe we just haven't got to them yet.

1159
03:12:01.240 --> 03:12:02.360
Sue Smith: Okay.

1160
03:12:02.910 --> 03:12:17.189
Sue Smith: Okay, then, my… my comment is I, too, agree with the scooter issue. I'm 75 years old, and I am terrified

1161
03:12:17.190 --> 03:12:28.870
Sue Smith: that walking on the sidewalk in our dimly lit streets, I'm gonna bump into one and fall and break bones. We hope you can find a solution. Thank you.

1162
03:12:29.480 --> 03:12:30.490
Boardroom: Thank you. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1163
03:12:32.790 --> 03:12:39.310
Boardroom: Next speaker is… Mo's gone… Madizza day.

1164
03:12:45.080 --> 03:12:46.690
Boardroom: You should be able to unmute.

1165
03:12:59.320 --> 03:13:00.200
Boardroom: Hello.

1166
03:13:00.200 --> 03:13:01.189
Mojgan Mahdizadeh: Can you hear me?

1167
03:13:01.190 --> 03:13:02.710
Boardroom: Yes, now we can hear you.

1168
03:13:02.910 --> 03:13:12.689
Mojgan Mahdizadeh: Hi, thank you for, taking my call. I just want to share a perspective that is often missing from discussion, like the resolution being introduced tonight.

1169
03:13:12.690 --> 03:13:28.930
Mojgan Mahdizadeh: The regime that rules Iran is not reformable. For more than four decades, it has survived by repression, violence, and deception. It doesn't respond to goodwill or appeasement. It responds only to strength. I remain in close contact with family members in Iran.

1170
03:13:28.930 --> 03:13:51.660
Mojgan Mahdizadeh: What they are describing is deeply troubling. The regime has evacuated almost all of its bases and is placing missile launchers in heavy populated areas, holding meetings in hospitals, and storing weapons in schools, effectively using civilian as human shields. This is the reality people inside Iran are living with. Many of us

1171
03:13:51.680 --> 03:14:08.070
Mojgan Mahdizadeh: have disagreement with the president's domestic policies, but we must be honest about the stakes here. The current confrontation is not simply about geopolitics. It's also about protecting the Iranian people and defending our national security and the security of our allies.

1172
03:14:08.070 --> 03:14:13.630
Boardroom: or comments? I'm sorry, your time is up. Next is… David?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1173
03:14:15.060 --> 03:14:16.859
Boardroom: David, you should be able to unmute.

1174
03:14:16.860 --> 03:14:32.610
David’s iPhone: Hi, yes, I'm actually… I went to Berkeley and lived in Berkeley, and Berkeley is always known for human rights, from South Africa to Nicaragua and so forth. But I think right now, the Council is on the wrong side of the history, and people, especially Lonipara's other representative.

1175
03:14:32.610 --> 03:14:43.900
David’s iPhone: You gotta live under Sharia law to really understand us. Two months ago, not only did they killed 40,000 people, a few years ago, they killed under Women Life Freedom that was all over, they shoot people.

1176
03:14:43.900 --> 03:14:57.440
David’s iPhone: in their head, in their eyes, they executed people in the hospital. This is a 9-11 moment for us. This is a bin Laden coming in, he says, anyone who comes out is gonna get shot. Anyone who's arrested is gonna get shot. They call them saboteur.

1177
03:14:57.440 --> 03:15:09.530
David’s iPhone: And no one in Iran, the 90 million people, they're unarmed. It's like in North Korea, and the internet is blocked. If you want to do something right, say how you can have internet, because they're jamming the satellite signal.

1178
03:15:09.530 --> 03:15:19.939
David’s iPhone: You're in the wrong side of the history today, and I send you guys tickets to go to Talibans in Afghanistan or in IRGC to see it, how the Sharia law works.

1179
03:15:19.940 --> 03:15:22.069
David’s iPhone: As a woman, as a sister, as a mother.

1180
03:15:22.070 --> 03:15:29.040
Boardroom: Thank you very much for your comment. Your time is up. Next is, Megan Nazari.

1181
03:15:32.270 --> 03:15:47.159

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Megan Nazeri: Thank you, council members. Me too, I would like to roger all my fellow countrymen and women out there. On January 8th, 9th, 8 and 9th, 2026, millions of Iranians

1182
03:15:47.160 --> 03:16:10.959
Megan Nazeri: took it to the streets, and the regime responded with extreme violence. In less than 48 hours, more than 33,000 protesters were massacred, and 1,000 more were imprisoned and executed. Yet, the Secretary General of the United Nations remained silent and instead congratulated the regime on its anniversary. This is very similar to what you're doing now.

1183
03:16:10.960 --> 03:16:16.070
Megan Nazeri: Millions of Iranians protesting empty-handed under internet blackouts.

1184
03:16:16.070 --> 03:16:26.420
Megan Nazeri: They cannot defeat a heavily armed regime alone. Targeted military action is not only a moral responsibility, it's an opportunity to help Iranian

1185
03:16:26.420 --> 03:16:36.810
Megan Nazeri: People free themselves from a regime that threatens both its citizens and global security. And while this suffering continues, we see vigils in the Bay Area mourning.

1186
03:16:36.810 --> 03:16:38.850
Boardroom: Thank you very much, I appreciate your comment.

1187
03:16:39.060 --> 03:16:41.819
Boardroom: Next is Alana Auerbach.

1188
03:16:46.070 --> 03:16:56.570
Elana Auerbach: Good evening, everyone. I encourage you to donate more funds to the Berkeley Free Clinic, please. It is a treasure, a treasure in our community.

1189
03:16:57.800 --> 03:16:59.359
Boardroom: I want to support.

1190
03:16:59.360 --> 03:17:05.420
Elana Auerbach: no surprise, your emergency item. Let's… wherever anybody thinks

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1191
03:17:05.420 --> 03:17:23.729
Elana Auerbach: about the horrors that are happening to so many people right now. This war is illegal, and it is unconstitutional. So no matter what you think, what your politics are, those are the facts. So we must oppose it. We must support our waning democracy.

1192
03:17:23.730 --> 03:17:30.930
Elana Auerbach: Please note, Iranians are not a monolith. I know people in Iran, I know people here in our community who

1193
03:17:30.930 --> 03:17:44.090
Elana Auerbach: are highly opposed to the thousands of people who have been murdered and who are suffering right now because of this war, because of the expansion, of basically the Gossification of

1194
03:17:44.130 --> 03:17:48.770
Elana Auerbach: of the world. This is… you need to oppose.

1195
03:17:48.770 --> 03:17:49.300
Boardroom: This woman…

1196
03:17:49.300 --> 03:17:50.040
Elana Auerbach: Or…

1197
03:17:50.040 --> 03:17:53.810
Boardroom: Alana, thank you, your time's up. Next to Jeff Lomax.

1198
03:17:56.460 --> 03:18:07.339
Geoff Lomax - KK6IZS: Thank you. I must say, I just… I feel like there's a real internal inconsistency in terms of when we choose

1199
03:18:07.510 --> 03:18:14.270
Geoff Lomax - KK6IZS: to speak out or not speak out on issues of international affairs. And…

1200
03:18:14.590 --> 03:18:24.409
Geoff Lomax - KK6IZS: in the case this evening, I'm swayed by the comments of Iranians, who have constituted the majority of the views here, so…

1201
03:18:24.430 --> 03:18:36.909

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Geoff Lomax - KK6IZS: I would just like to understand more explicitly why we sort of pick and choose our issues on international affairs. It's, like I say, I see no consistency.

1202
03:18:36.910 --> 03:18:49.689
Geoff Lomax - KK6IZS: And I think that's in itself a problem and needs to be, addressed in terms of, you know, why we're doing these types of statements under certain conditions and not under others. Thank you.

1203
03:18:50.180 --> 03:18:51.029
Boardroom: Thank you.

1204
03:18:53.150 --> 03:18:56.470
Boardroom: Next is Zoom.

1205
03:18:57.320 --> 03:19:00.779
Boardroom: user, Zoom user, you should be able to unmute.

1206
03:19:03.380 --> 03:19:08.339
Zoom user: Thank you, Councilman. I agree with my country, Iranian.

1207
03:19:08.530 --> 03:19:23.830
Zoom user: I think the free and brave of this great land have sacrificed so much that they should try to do the right thing. Iran has been in a war, we're an occupying regime, whereas it pays foreign gunmen to come in.

1208
03:19:23.830 --> 03:19:32.679
Zoom user: With the help of automatic anti-air machine gun, mow down a decent citizen.

1209
03:19:32.850 --> 03:19:34.880
Zoom user: And, 40,000 plus.

1210
03:19:35.040 --> 03:19:44.149
Zoom user: It's easy to sit down in United States comfortably, and to be totally disconnected with the emotional effect that is going on. If this does not stop.

1211
03:19:44.250 --> 03:20:00.109
Zoom user: then God help the Iranian, because there will be massive suicide due to the depression. There's no way this can be tolerated. This

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

issue has been created by a superpower, because Iran was doing so good, then it is our jobs to make sure that it's ended. Thank you.

1212
03:20:00.440 --> 03:20:01.310
Boardroom: Thank you.

1213
03:20:03.120 --> 03:20:07.220
Boardroom: Next is a phone number ending in 211.

1214
03:20:12.500 --> 03:20:13.470
1510****211: Hezman?

1215
03:20:13.650 --> 03:20:19.879
1510****211: As many of you know, I've been in Berkeley for 62 years. Beautiful town, beautiful city. I miss that. It's no longer the case.

1216
03:20:20.150 --> 03:20:26.300
1510****211: The fact is, We lost a lot of businesses in Berkeley because the structure of the city

1217
03:20:26.490 --> 03:20:41.100
1510****211: parking meters are driving everybody away. Our business was rated number 3. The iron maces and Emporium number of people visiting our four stores, 3 in Berkeley and one in San Francisco. As far as the Iran situation.

1218
03:20:41.350 --> 03:20:48.759
1510****211: No, way in hell does Trump or his… or Netanyahu have any right

1219
03:20:48.770 --> 03:21:08.320
1510****211: Because the victims now are innocent civilians. I don't care about the Iranian government. Yes, they're horrible. I don't care how they treat women. In Egypt, University of Cairo, my friends, females, wear bikini in Cairo, universal swimming pool. We're very different. I think we should take religion out of all societies.

1220
03:21:08.570 --> 03:21:12.129
1510****211: Thank you very much, and I will call you again. I'll talk again. Take care.

1221
03:21:12.840 --> 03:21:14.060
Boardroom: Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1222
03:21:14.260 --> 03:21:16.569
Boardroom: Next speaker is Sunny.

1223
03:21:23.220 --> 03:21:26.060
Boardroom: Sonny, you should be able to… Unmute.

1224
03:21:27.970 --> 03:21:34.249
Sunny: Well, hi, I will, wish, everyone there Happy Women's Day.

1225
03:21:34.470 --> 03:21:39.389
Sunny: You know, it's a great honor that you're all celebrating the Women's Day, and you have the freedom

1226
03:21:39.580 --> 03:21:43.270
Sunny: But the same freedom is missing in Iran.

1227
03:21:43.390 --> 03:21:48.079
Sunny: for the woman. If you have seen the, you know, recent,

1228
03:21:48.250 --> 03:21:51.430
Sunny: Iranian, soccer team, where…

1229
03:21:51.490 --> 03:22:04.309
Sunny: They were playing in Australia, they got asylum there, because they're scared to death, because once they go back to Iran, they might be persecuted, or they might be murdered. So, this is a reality, guys.

1230
03:22:04.310 --> 03:22:11.600
Sunny: So, I'm… let's not talk about politics like Democrats or Republicans, right? The important is…

1231
03:22:11.680 --> 03:22:31.580
Sunny: The regime is fanatic. They have been executing a lot of Iranians. It has been there and verified, so you need to understand and balance the act. Where are all the Palestinian people? You know, they… the Iranians are also humans. You know, you need to show the support.

1232
03:22:31.580 --> 03:22:31.950
Boardroom: Thank you.

1233

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:22:31.950 --> 03:22:33.279
Sunny: Forget about who.

1234
03:22:33.280 --> 03:22:41.790
Boardroom: Thanks for your comment, your time's up. Next is a caller with a number ending in 06… Zero.

1235
03:22:49.650 --> 03:22:53.050
Boardroom: Should be able to unmute. Star 6 to unmute.

1236
03:23:00.580 --> 03:23:02.370
Boardroom: Nope, they're… they're gone.

1237
03:23:03.330 --> 03:23:07.270
Boardroom: Next is, Nagin.

1238
03:23:10.130 --> 03:23:25.870
negin: Hi, everyone. Thank you for having us tonight. I'm also Iranian-American, and I wanted to just make a couple points really quickly. One is that with all the horrific things that has been happening in Iran, especially since December.

1239
03:23:25.870 --> 03:23:36.270
negin: It's very troubling for the diaspora about, like, to see what the media coverage… lack of media coverage, or if there is media coverage, is completely skewed.

1240
03:23:37.250 --> 03:23:56.539
negin: the American people are confused, and the other point that I wanted to make is the problems that are happening in Iran, they're not a thousand miles away. They are very soon, if it's not stopped, they're gonna reach here, at home. I grew up in Iran, and I… many, like myself.

1241
03:23:56.540 --> 03:24:15.369
negin: We know what kind of a mind frame and ideology this regime has, and I think everyone in the United States, Republican and Democrat and Independent, this should be a bipartisan goal to eliminate this regime, because their goal and ideology is to eliminate us.

1242
03:24:15.370 --> 03:24:19.099
Boardroom: Thank you for your comments, Nikeen. Thank you. Next is Stephanie.

1243

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:24:27.870 --> 03:24:30.139
Boardroom: Stephanie, you should be able to unmute.

1244
03:24:35.170 --> 03:24:36.579
Stephanie: Hello, can you hear me?

1245
03:24:37.690 --> 03:24:38.340
Boardroom: Yes.

1246
03:24:38.510 --> 03:24:46.250
Stephanie: Apologies for the, the name. Actually, on Zoom,

1247
03:24:46.890 --> 03:24:47.540
Boardroom: Okay, please.

1248
03:24:47.540 --> 03:25:01.250
Stephanie: signed in the wrong way. My name is Bob Aksani. I'm actually a commissioner on the City of Berkeley Peace and Justice Commission. I was the author of the resolution that we discussed last night at the commission meeting.

1249
03:25:01.560 --> 03:25:06.439
Stephanie: and was adopted, to be recommended to the City Council.

1250
03:25:06.440 --> 03:25:26.410
Stephanie: What I wanted to say is that, a lot of the comments you're hearing, I was able to join, for the last 5 minutes, is really essentially, frankly, a trauma response, a lot of the comments from the Iranian population to what the Islamic Republic has done to the protesters. This war is,

1251
03:25:26.600 --> 03:25:38.490
Stephanie: illegal. It, as, stated in the resolution, there was no constitutional, there was no congressional authorization obtained, it's, therefore it's,

1252
03:25:38.830 --> 03:25:42.180
Stephanie: it's an unconstitutional war, and I think.

1253
03:25:42.830 --> 03:25:43.860
Boardroom: Thank you.

1254

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:25:44.040 --> 03:25:47.200
Boardroom: Thanks for your comment. Next is Kelly Hammergren.

1255
03:25:52.330 --> 03:25:55.039
kelly hammargren: Hello, I'll just make this.

1256
03:25:55.820 --> 03:25:56.590
kelly hammargren: Whip.

1257
03:25:57.190 --> 03:26:07.220
kelly hammargren: Looking at history, When has U.S. interference with another government Made it better.

1258
03:26:10.460 --> 03:26:17.349
kelly hammargren: I think that, you know, we're hearing comments thinking that our interference is going to make things

1259
03:26:17.600 --> 03:26:21.050
kelly hammargren: Better for them, but so many times.

1260
03:26:21.500 --> 03:26:25.280
kelly hammargren: The U.S. interference has made things so much worse.

1261
03:26:25.700 --> 03:26:33.069
kelly hammargren: 4… The citizens of nations, and we've done that over and over around the world.

1262
03:26:33.420 --> 03:26:41.599
kelly hammargren: And, so, other than World War II, I can't think of a time when we've actually made things.

1263
03:26:43.070 --> 03:26:44.000
kelly hammargren: Thank you.

1264
03:26:46.290 --> 03:26:49.230
Boardroom: Thanks, Kelly. Okay. That was the…

1265
03:26:49.590 --> 03:26:56.929
Boardroom: final speaker on Zoom. Okay, I see that, Vice Mayor Luna Parra has her light on.

1266

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:26:57.550 --> 03:27:14.400
Boardroom: Thank you. I just wanted to clear up some misconceptions about the resolution. It opposes the Trump administration's illegal circumvention of Congress and expresses support for the freedom and sovereignty and self-determination of all people, and including specifically the people of Iran. It does not

1267
03:27:15.150 --> 03:27:17.819
Boardroom: Comment on the current,

1268
03:27:17.960 --> 03:27:31.910
Boardroom: and the current government of Iran and Trump's attack on our Constitution will do nothing but make the possibility of a democratic Iran more unlikely. I'm grateful to the Iranian members of the community who helped us draft this item. Thanks.

1269
03:27:33.470 --> 03:27:36.700
Boardroom: Thank you, Councilmember Bartlett.

1270
03:27:37.020 --> 03:27:53.410
Boardroom: Thank you, Madam Mayor. You know, I didn't vote for a resolution in the Gaza conflict because the community was not in consensus on that matter. And here, I'm hearing the same thing. There's not consensus. I'm gonna abstain.

1271
03:27:54.490 --> 03:27:56.020
Boardroom: Councilmember Humbert.

1272
03:27:56.960 --> 03:28:05.780
Boardroom: Thank you, Madam Mayor, and I want to say that, listening here tonight to the Iranian Americans who've commented,

1273
03:28:05.960 --> 03:28:15.429
Boardroom: you know, I have great sympathy for them, and I have no… and I have no, love for the horrific…

1274
03:28:15.560 --> 03:28:25.129
Boardroom: regime in Iran that came to power in 1979. But our resolution does not support that horrific regime.

1275
03:28:25.230 --> 03:28:33.700
Boardroom: It… Very clearly and concisely condemns the illegal nature of the war.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1276
03:28:33.700 --> 03:28:52.449
Boardroom: which was not authorized by the U.S. Congress, which holds the power to declare war. I mean, I think it's as clear as a glass of clear water that Trump is acting unconstitutionally. And that's the nature of the resolution. It does not support

1277
03:28:52.840 --> 03:28:57.880
Boardroom: Again, the horrific regime in Iran. Thank you. Thank you. Councilmember O'Keefe.

1278
03:28:59.280 --> 03:29:01.409
Boardroom: Yeah, I'll just state briefly,

1279
03:29:01.690 --> 03:29:12.040
Boardroom: I… I'm also going to abstain on the resolution, but I do just want to make it clear that I… I, respect the resolution, I agree with it, frankly. I,

1280
03:29:12.180 --> 03:29:29.690
Boardroom: have a policy of, that I've stated publicly many times, of not, voting on things that have to do with international relations. That's just a personal preference, but I wish everyone the best, and I wish for peace in Iran and the Middle East. Thank you very much, folks. Please…

1281
03:29:29.690 --> 03:29:37.309
Boardroom: Okay, so we are now voting on the consent calendar, so is there a motion to approve the consent calendar?

1282
03:29:37.620 --> 03:29:38.690
Boardroom: So moved.

1283
03:29:40.110 --> 03:29:43.849
Boardroom: A second? Second? Okay.

1284
03:29:44.870 --> 03:30:03.490
Boardroom: Let's take the roll. I think that's easier. Okay. To approve the consent calendar with the, abstentions noted, Councilmember Kesarwani? Yes. Taplin? Yes. Bartlett? Yes. Traeger? Aye. O'Keefe? Yes. Blackaby? Yes.

1285
03:30:04.000 --> 03:30:21.339

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Luna Parra? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Motion carries. We are going to take a brief break, because it's been 2 hours, and we need to stretch. And then we'll move on to the action calendar. We've got some public hearings coming up, and…

1286
03:30:21.400 --> 03:30:25.779
Boardroom: It'll give some time for folks to set up as well. So, thanks.

1287
03:30:37.340 --> 03:30:42.190
Boardroom: Hello! We are coming back! Thanks, everyone, for your patience.

1288
03:30:42.790 --> 03:30:56.050
Boardroom: A hungry council is a cranky council, so I feel like it's good for all of us. Okay, so, anyway, we are moving on to the action calendar. We've got some public hearings coming up, starting with item number 14. Okay, quiet in the back, please.

1289
03:30:56.050 --> 03:31:15.389
Boardroom: Thank you. Amendments to BMC Title 23 to update the regulation of non-conforming lot coverage for area ratio and density for residential uses in selected zoning districts. And I will pass it over to Jordan Klein. Thank you. Thank you, Mayor. Good evening, Councilmembers. Jordan Klein, Director of Planning Development. I'm joined here at the staff table.

1290
03:31:15.420 --> 03:31:19.320
Boardroom: by Ann Hirsch, the Land Use Planning Manager, Justin Horner, Principal Planner.

1291
03:31:19.470 --> 03:31:25.319
Boardroom: on the policy team, and Faye Mingham, assistant planner, who will be presenting on this item. Take it away.

1292
03:31:25.440 --> 03:31:26.350
Boardroom: Faye, thanks.

1293
03:31:26.470 --> 03:31:41.839
Boardroom: Thank you, Mayor Ishii and members of the City Council. My name is Faye Mingam, an Assistant Planner with the Land Use Planning Division. Tonight, I'll present proposed amendments to Title 23 of the Berkeley Municipal Code to update the regulation of non-conforming lot coverage, floor area ratio.

1294

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:31:41.840 --> 03:31:48.440
Boardroom: and density for residential uses in the R1, R2, R2A, and MUR zoning districts.

1295
03:31:49.190 --> 03:31:59.389
Boardroom: I'll begin with a summary of background, followed by the current effects, and then we'll present the proposed ordinance amendments, and then after, I will share staff's recommendation.

1296
03:32:01.970 --> 03:32:14.889
Boardroom: The middle housing zoning changes were adopted on July 8th, 2025. Middle housing expanded the development potential of lots in the affected zoning districts and established new objective development standards that cannot be exceeded.

1297
03:32:15.380 --> 03:32:20.989
Boardroom: Projects that meet these objective development standards can be approved ministerially through a zoning certificate.

1298
03:32:21.430 --> 03:32:25.490
Boardroom: Since adoption, middle housing project applications have been submitted.

1299
03:32:25.660 --> 03:32:31.309
Boardroom: Upon review, staff identified minor inconsistencies in the zoning ordinance that require fixing.

1300
03:32:31.510 --> 03:32:43.140
Boardroom: The problem staff identified in Section 23.324.050 is a pathway that requires a use permit for nonconforming structures that otherwise conform with the development standards.

1301
03:32:45.930 --> 03:32:56.689
Boardroom: BMC Section 23.324.050 contains provisions for the maintenance, replacement, removal, expansion, and alteration of nonconforming structures and buildings.

1302
03:32:56.800 --> 03:33:00.889
Boardroom: Nonconforming buildings are pre-existing and do not conform with zoning.

1303
03:33:01.060 --> 03:33:07.949
Boardroom: A building may be non-conforming if it projects into the setback, or exceeds maximum height or lot coverage, for example.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1304
03:33:08.200 --> 03:33:15.419
Boardroom: This section requires a use permit for additions and alterations to buildings with nonconforming lot coverage, FAR, and density.

1305
03:33:18.050 --> 03:33:33.060
Boardroom: The section conflicts with the policy intent of middle housing by requiring a use permit for residential additions and alterations that meet the objective standards, but do not conform with the new minimum density. This type of project is intended to be approved with a zoning certificate.

1306
03:33:33.530 --> 03:33:39.300
Boardroom: It also conflicts by allowing projects to exceed maximum FAR and lot coverage standards with use permit.

1307
03:33:39.720 --> 03:33:51.180
Boardroom: It was not the intention of middle housing to require existing projects to meet minimum density when they proposed to add square footage, nor was it intended to allow projects to exceed development standards in any case.

1308
03:33:54.800 --> 03:34:07.740
Boardroom: To correct these inconsistencies, the proposed amendment exempts residential uses in the middle housing zoning districts from the provisions of this section, thereby removing the use permit pathways for non-conforming lot coverage, FAR, and density.

1309
03:34:09.650 --> 03:34:18.279
Boardroom: At its 2000… sorry, January 21st, 2026 meeting, the Planning Commission agreed that this BMC section conflicts with the policy intent of middle housing.

1310
03:34:18.410 --> 03:34:27.919
Boardroom: The Planning Commission recommended the amendments for adoption by City Council and added language, intending to prevent nonconforming projects from further exacerbating nonconformities.

1311
03:34:28.190 --> 03:34:41.010
Boardroom: However, this language inadvertently preserves the discretionary approval pathway by implying that a project that does increase or exacerbate a nonconformity could apply for a use permit to exceed maximum lot coverage.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1312
03:34:41.130 --> 03:34:44.610
Boardroom: Staff believes that this outcome was not the Planning Commission's intent.

1313
03:34:45.110 --> 03:34:49.549
Boardroom: Because it continues to provide discretionary approval pathways for middle housing projects.

1314
03:34:49.880 --> 03:34:54.560
Boardroom: For these reasons, staff's recommendation excludes the Planning Commission's language addition.

1315
03:34:56.510 --> 03:35:05.909
Boardroom: Staff recommends that the City Council conduct a public hearing and adopt the first reading of an ordinance to amend BMC Section 23.324.050.

1316
03:35:06.040 --> 03:35:24.099
Boardroom: Thank you. I'm here for your questions. Thank you very much. We've, opened the public hearing, but are there any questions from my Council colleagues? Councilmember Kisarwani? Yeah, so, if I understand correctly, are you saying that there is no pathway to pursue middle housing with a non-conforming

1317
03:35:24.240 --> 03:35:30.590
Boardroom: Structure, sort of non-conforming standards through a use permit.

1318
03:35:30.860 --> 03:35:33.729
Boardroom: That's not possible with the amendments you're proposing.

1319
03:35:35.350 --> 03:35:37.820
Boardroom: Correct. If I understand correctly, yes.

1320
03:35:37.970 --> 03:35:47.580
Boardroom: mill housing projects are intended to be approved with a zoning certificate, if they meet the development standards. Okay, so, so just so I understand correctly, so…

1321
03:35:47.650 --> 03:36:02.669
Boardroom: if it's an existing structure that's non-conforming, and all of the additions are conforming with the middle housing development

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

standards, you will still issue the zoning certificate, and that's what the cleanup is doing. Okay, thank you.

1322
03:36:04.370 --> 03:36:05.980
Boardroom: Okay, any other questions?

1323
03:36:06.970 --> 03:36:11.710
Boardroom: Okay, are there any comments on this item? We are on item number 14.

1324
03:36:11.890 --> 03:36:14.519
Boardroom: Amendments to BMC Title 23.

1325
03:36:15.200 --> 03:36:22.410
Boardroom: To update the regulation of nonconforming lot coverage, floor area ratio, and density for residential uses in selected zoning districts.

1326
03:36:23.760 --> 03:36:25.169
Boardroom: Okay, anyone online?

1327
03:36:28.430 --> 03:36:35.320
Boardroom: No commenters. Very good. Is there a motion to close the public hearing? Second.

1328
03:36:36.100 --> 03:36:40.339
Boardroom: Do we need… No. Any opposition?

1329
03:36:40.500 --> 03:36:42.719
Boardroom: Okay, we have closed the public hearing.

1330
03:36:42.910 --> 03:36:45.690
Boardroom: Very good. Are there any comments from my Council colleagues?

1331
03:36:46.530 --> 03:36:48.140
Boardroom: Move the item.

1332
03:36:49.480 --> 03:36:52.330
Boardroom: Is there any opposition to approving this item?

1333
03:36:54.220 --> 03:37:09.000

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Okay. No, I do have a question, because I think, like, where I'm hung up on is, prior to the middle housing ordinance, somebody could come and propose something non-conforming and have the option to go to ZAB.

1334
03:37:09.230 --> 03:37:22.350
Boardroom: So we are… I just want to be clear, we are taking away that option for people. They cannot do a non-conforming middle housing project now. You can only do it with a middle housing development standards.

1335
03:37:22.760 --> 03:37:27.340
Boardroom: Correct? There's no… there's no option to go to ZAB.

1336
03:37:27.580 --> 03:37:32.830
Boardroom: in these zones, if you want to do middle housing? Correct. Yes. Okay, thank you.

1337
03:37:35.940 --> 03:37:37.740
Boardroom: Sorry, so did you have…

1338
03:37:37.900 --> 03:37:52.500
Boardroom: Any other… okay. I am ready to vote, that's fine. Okay. Vice Mayor Leno Parra, did you have a… I did have one follow-up question. If a middle housing, proposal uses the density bonus, however unlikely that may be, then would they go to ZAB?

1339
03:37:54.020 --> 03:37:56.999
Boardroom: For a nonconforming? No.

1340
03:37:57.670 --> 03:37:59.000
Boardroom: How would that work?

1341
03:38:01.510 --> 03:38:07.279
Boardroom: It would just be approved through the planning department? Yes, it would… yes, correct. Okay, thank you.

1342
03:38:07.660 --> 03:38:15.240
Boardroom: Sometimes questions bring up more questions, so it's good. It's good we asked that. Okay, very good. Thanks, everyone. Is there any opposition to approving this?

1343
03:38:15.890 --> 03:38:19.169
Boardroom: Okay, motion is approved. Thank you very much.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1344
03:38:20.430 --> 03:38:38.420
Boardroom: Alright, we are now moving to item 15, amendments to the Berkeley Elections Reform Act regarding the return of unspent public matching funds, reuse of campaign materials, campaign expenditures, and cost of living adjustments. And I think Sam is online to present, is that correct?

1345
03:38:41.150 --> 03:38:46.590
Sam Harvey: Yes, Madam Mayor, and I believe, Chair Saginore is present as well.

1346
03:38:46.590 --> 03:38:48.619
Boardroom: Yes, Kit is here as well.

1347
03:38:51.490 --> 03:39:04.270
Boardroom: Does she wanna… oh, are you presenting? I'm sorry. So, Secretary Harvey had asked me to introduce the motion, and then he would give more detail. Okay, sounds good. Sorry about that. That's fine.

1348
03:39:04.880 --> 03:39:18.200
Boardroom: So, Kit Saginore, I'm the outgoing chair of the Fair Campaign Practices Commission that was established by the Berkeley Election Reform Act to ensure that municipal campaigns comply with campaign finest regulations.

1349
03:39:18.210 --> 03:39:25.990
Boardroom: In using Berra and applying it in real life, we've encountered passages that Don't quite function as intended.

1350
03:39:25.990 --> 03:39:44.479
Boardroom: So, we expanded and we impaneled an ad hoc committee that worked intensively with our staff secretary team, Sam Harvey, Stephen Hylus, and Lauren Packard, to craft language for the amendments that the Commission adopted by unanimous vote, and that we are presenting here to you.

1351
03:39:45.770 --> 03:40:03.289
Boardroom: Secretary Harvey will summarize the amendments and answer any questions, but I'd just like to point out that the amendments to Section 530 were sparked by a candidate wanting to know if he would be out of compliance if he used plastic lawn signs that he had from an earlier campaign.

1352

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:40:03.320 --> 03:40:11.999
Boardroom: We had to tell him that it was not permitted under Barra, which was an environmentally unfortunate conclusion we had to come to because of the way BARRA was at the time.

1353
03:40:12.430 --> 03:40:29.620
Boardroom: So I think you will be pleased to see in these amendments that we worked out a way to keep the process fair without forcing a campaign to throw away materials and replace them with new, identical materials. And there are some other, amendments here that, Secretary Harvey will

1354
03:40:29.620 --> 03:40:34.279
Boardroom: talk about with you. And of course, any questions you have of me, I'd be happy to answer them.

1355
03:40:37.010 --> 03:40:54.750
Sam Harvey: Thank you, Chair Saginore, and good evening, Madam Mayor and members of Council. There are four, proposed amendments before you. As a reminder, in order to amend BARA, amendments must first be approved by the FCPC by a two-thirds vote, and then subsequently approved

1356
03:40:54.750 --> 03:40:59.859
Sam Harvey: By the Council, by a two-thirds vote as well. The First Amendment,

1357
03:41:00.580 --> 03:41:25.140
Sam Harvey: create… applies a rule that already applies to city candidates in Berkeley, because it exists in state law, but it would incorporate it into BERA so that it could be directly enforced by the FCPC. This is known as the one bank account rule. It provides that all candidate campaign expenditures must be made from the campaign account, including the candidate's own money, with some exception for initial filing.

1358
03:41:25.140 --> 03:41:48.139
Sam Harvey: And so, by incorporating this into BIRA, it's not a substantive change for city candidates, but it would provide a more direct, explicit hook for FCPC enforcement. The second change is a change to the timeline by which candidates who participate in the city's public financing program must return any unspent matching funds following the election.

1359
03:41:48.150 --> 03:41:53.759
Sam Harvey: Currently, participating candidates, receive matching funds at a 6 to 1 ratio.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1360
03:41:53.760 --> 03:42:10.709
Sam Harvey: and then must return any unspent funds by 60 days after the election. So, for the 2024 election, 60 days fell on January 4th, 2025. Now, the reporting cycle immediately following the election ends on December 31st, so candidates now have this sort of

1361
03:42:10.810 --> 03:42:34.639
Sam Harvey: December 31st deadline, and then a subsequent deadline a couple days later. Importantly, the clerk is required to notify the FCPC immediately once he determines that any candidate who participated in the public financing program has failed to return any matching funds. The proposal here is to move that deadline to return matching funds to December 31st, so it would match the close of that

1362
03:42:34.640 --> 03:42:42.610
Sam Harvey: ending campaign cycle. This means that, whether or not matching funds were returned would be reported,

1363
03:42:42.610 --> 03:42:47.340
Sam Harvey: On the report for that cycle, which is due at the end of the following month.

1364
03:42:47.360 --> 03:42:48.449
Sam Harvey: So this would…

1365
03:42:49.120 --> 03:43:00.859
Sam Harvey: clarify the timelines, make it a little easier for city staff to more readily determine whether a campaign hasn't returned any matching funds. And then the third change here is the one

1366
03:43:00.860 --> 03:43:20.130
Sam Harvey: the chair mentioned, which is the reuse of campaign materials. We had a candidate who was a participating candidate in the public matching funds program, and we had to tell them that, you know, essentially when a candidate wishes to reuse old materials, those have to be treated as a contribution from your old campaign to your new campaign.

1367
03:43:20.200 --> 03:43:38.829
Sam Harvey: And under the city's public financing rules, campaign committees are prohibited from making contributions to another committee, and then there's also a $60 contribution limit. So this amendment would carve out an exception where a candidate could reuse old campaign signs, mailers, posters, door hangers, and similar items.

1368

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:43:38.830 --> 03:43:49.549
Sam Harvey: Now, in order to not receive an unfair advantage, not be able to receive either, you know, double dip, basically a double, benefit of the public matching

1369
03:43:49.550 --> 03:44:10.980
Sam Harvey: funds, the candidate would have to pay to the city the fair market value of those items to offset that unfair advantage. And so, this would apply both to a candidate who is currently participating in the public matching program, as well as someone who had participated in the past, or if they'd participated in the past, as well as are currently participating.

1370
03:44:11.340 --> 03:44:30.459
Sam Harvey: And then, the fourth change is an administrative cleanup. It's intended to be a non-substantive cleanup to some of the rounding language regarding how certain numbers that are routinely adjusted for cost of living are rounded, just to streamline that language. So those are the four changes. I'm happy to answer any questions the Council may have.

1371
03:44:31.220 --> 03:44:42.090
Boardroom: Thank you. A question from Councilmember Humbert? Yes, thank you, Madam Mayor, and I wanna… I do have one question, but I wanna express my thanks.

1372
03:44:42.130 --> 03:44:54.349
Boardroom: to Secretary Harvey, Chair Saginaw, outgoing Chair Saginaw, and members of the FCPC for their detailed work. They always do good work, in my experience. I sat for a short time on the…

1373
03:44:54.560 --> 03:44:57.350
Boardroom: on the Commission. I believe…

1374
03:44:57.500 --> 03:45:09.690
Boardroom: that these are all sensible amendments to our election rules, which, of course, are always a work in progress, and so I'm generally happy to support these changes. I do have a question, and that's.

1375
03:45:09.770 --> 03:45:24.860
Boardroom: you know, sort of the way campaigns work, if somebody affiliated with a campaign goes out and buys donuts out of his or her own pocket, would the one bank account rule prohibit the campaign from reimbursing

1376

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:45:24.860 --> 03:45:33.000
Boardroom: that campaign worker for the donuts that he or she purchased. You know, that's just an example, but it's fairly typical that, you know.

1377
03:45:33.260 --> 03:45:45.410
Boardroom: that there might be expenditures by folks that are part of the campaign that then get reimbursed. Is that an issue, with this change in the rule? Or is it even a change in the rule?

1378
03:45:45.410 --> 03:45:53.359
Sam Harvey: Well, it's not a change in the rules, substantively, for campaigns. It's a reiteration of how the rules are currently worded.

1379
03:45:53.360 --> 03:45:58.780
Boardroom: In a state law, so it applies to, to, candidates now. Yeah.

1380
03:45:59.120 --> 03:46:15.429
Sam Harvey: certainly if the campaign, you know, currently, if someone goes out and spends their own money, and they're not, you know, they're not the candidate, that could be an in-kind contribution to the campaign. Generally, I think reimbursements, do have to be mindful of the one bank account rule.

1381
03:46:15.690 --> 03:46:18.920
Sam Harvey: So,

1382
03:46:19.230 --> 03:46:25.369
Sam Harvey: But I don't think this amendment before you would… would in any way change the current state of things.

1383
03:46:25.370 --> 03:46:39.140
Boardroom: I guess then my question is, so the one bank account rule would prohibit that sort of reimbursement out of the campaign account for an expenditure made by someone who worked with the campaign?

1384
03:46:41.660 --> 03:46:42.630
Boardroom: Does it…

1385
03:46:42.630 --> 03:46:48.500
Sam Harvey: You know, I don't know exactly how that would operate. I'd have to give us more thought.

1386
03:46:49.190 --> 03:46:50.020

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Sam Harvey: Thank you.

1387
03:46:51.050 --> 03:46:56.570
Boardroom: If I can, just given what you were just saying, Sam, that…

1388
03:46:56.740 --> 03:47:05.369
Boardroom: That this isn't a substantive change, that it already exists. I think that the Councilmember's question is one that we can still get answered later.

1389
03:47:05.520 --> 03:47:15.340
Boardroom: Given that this is already in place. But I'm also curious about that, because my understanding is that reimbursements were allowed, so I think it's important for us to answer that question anyway.

1390
03:47:16.070 --> 03:47:20.610
Boardroom: So, thank you. Okay, Councilmember Trega.

1391
03:47:21.490 --> 03:47:26.690
Boardroom: Yeah, thank you. This too is…

1392
03:47:28.180 --> 03:47:31.989
Boardroom: Whether it stands for today or not.

1393
03:47:33.830 --> 03:47:48.349
Boardroom: is probably not an issue, but since, on Part 4 cleanup amendment to the Cost of Living Adjustment Rounding Language, I wanted to clarify if the…

1394
03:47:48.590 --> 03:47:51.509
Boardroom: FCPC,

1395
03:47:52.100 --> 03:48:04.939
Boardroom: has, taken any action on any cost of living adjustments under Bayer, last year for the 2026 election.

1396
03:48:07.470 --> 03:48:15.560
Sam Harvey: Yes, the… the FCPC, updates the amounts,

1397
03:48:15.670 --> 03:48:19.560
Sam Harvey: every other year, so these are actually updated

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1398
03:48:21.430 --> 03:48:27.010
Sam Harvey: The City Clerk posted these, so these have been updated for the 2026 election. They're posted to the City Clerk's website.

1399
03:48:27.010 --> 03:48:34.170
Boardroom: We brought the item to the FCPC in… it was, I think, January or February of 2025.

1400
03:48:34.310 --> 03:48:37.050
Boardroom: Right. We, we do, we do the,

1401
03:48:37.190 --> 03:48:42.750
Boardroom: Cost of living adjustments at the beginning of the odd year, in between the election years.

1402
03:48:44.150 --> 03:48:45.380
Boardroom: Okay, thank you.

1403
03:48:46.610 --> 03:48:48.000
Boardroom: Okay.

1404
03:48:48.270 --> 03:49:01.569
Sam Harvey: And just to clarify, sort of reimbursements, on the reimbursement question, you know, not permitted for candidates themselves, but for people other than, other than, other than candidates, maybe reimbursed, from the campaign.

1405
03:49:03.390 --> 03:49:16.459
Boardroom: Thank you. Thank you for answering our questions so quickly. Alright, very good. So, we have already opened this public hearing, we just took Council questions, so I will now open for public comment. Is there any public comment on this item?

1406
03:49:26.890 --> 03:49:42.180
Boardroom: So, I think Sam already addressed most of this, but my name is Ruth Wick, one of the commissioners on the FCPC. I just wanted to help clarify a little bit the, intention behind the reuse section

1407
03:49:42.360 --> 03:49:47.990
Boardroom: Covers anyone who was a participating candidate previously.

1408
03:49:48.220 --> 03:49:51.980

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And is now either a participating candidate or not?

1409
03:49:52.130 --> 03:49:58.340
Boardroom: As well as if someone was previously not a participant candidate, but now is.

1410
03:49:59.030 --> 03:50:15.210
Boardroom: And if they are currently a participating candidate, the funds used to pay back the city for reuse of materials has to be with matching funds. I think that's, implied in VERA, the way this is written, but I just thought, that would clarify that.

1411
03:50:16.890 --> 03:50:18.789
Boardroom: Thank you. Okay.

1412
03:50:18.950 --> 03:50:34.659
Boardroom: Any other public comment on this item? We are currently on item number 15, amendments to the Berkeley Election Reform Act regarding the return of unspent public matching funds, reuse of campaign materials, campaign expenditures, and cost of living adjustments. Anyone online have public comment for this item?

1413
03:50:35.100 --> 03:50:49.659
Boardroom: No, no hands raised online. Okay, I will hear a motion. I want to entertain a motion to close the public hearing. So moved. Actually, I have a question. I'm sorry, can I still ask the question before we close?

1414
03:50:50.540 --> 03:51:00.640
Boardroom: Okay. Actually, the last public comment, prompted my question, so… Sam,

1415
03:51:02.480 --> 03:51:04.850
Boardroom: I'm trying to understand,

1416
03:51:05.160 --> 03:51:22.139
Boardroom: If, hypothetically, a candidate wanted to reuse, campaign signs or other material, did I hear correctly that that can only be done using matching funds? So, does that mean the candidate has to first

1417
03:51:23.040 --> 03:51:25.329
Boardroom: raise, or, well…

1418
03:51:25.580 --> 03:51:38.910

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: the appropriate number of contributions to go up to the FCPC and apply for matching fund, and then wait for those matching funds to transfer into their account before they can,

1419
03:51:39.610 --> 03:51:44.309
Boardroom: Do this type of, fair market value transaction?

1420
03:51:44.550 --> 03:52:02.630
Sam Harvey: They would not have to do that. It's the practical effect of actually paying the city directly, is that it would essentially negate or deduct from any disbursement of matching funds they do receive as a result of participating in the program, regardless of whether they've received them or not.

1421
03:52:02.890 --> 03:52:03.640
Sam Harvey: Yet.

1422
03:52:04.220 --> 03:52:07.970
Boardroom: Okay, so they can do it at any time in the campaign.

1423
03:52:09.830 --> 03:52:10.680
Sam Harvey: I guess.

1424
03:52:12.290 --> 03:52:17.790
Boardroom: Thank you. I think it would be very hard to track that otherwise. Okay.

1425
03:52:17.790 --> 03:52:32.309
Boardroom: Anyone online? Any other public comment online? Okay, we… there was a motion to close the public hearing, there was a second. Is there any opposition to closing the public hearing? Okay, the public hearing is closed. Any comments on this item from my council colleagues?

1426
03:52:32.680 --> 03:52:34.190
Boardroom: I move adoption of the item.

1427
03:52:34.260 --> 03:52:47.340
Boardroom: Second. I do just want to say thank you all so much for your work on this. I do appreciate that we're able to use old materials, because I think it's better than wasting them, especially when some of these materials are plastic and…

1428
03:52:47.340 --> 03:52:56.980

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Yeah, we're trying to reduce our plastic and also paper, so thank you very much for your work here. And, and Sam, thank you also for your work as well.

1429
03:52:57.020 --> 03:53:06.640
Boardroom: Okay, so we have a motion, and it's been seconded. Any opposition to approving this item? Okay, item is approved. Very good.

1430
03:53:09.220 --> 03:53:19.239
Boardroom: All right, we are moving on to item 16, Appeal of special assessment tax lien and the Need for Abatement Action at 2750 Cedar Street.

1431
03:53:20.460 --> 03:53:24.069
Boardroom: Thank you all so much for being here and for waiting for so long.

1432
03:53:35.950 --> 03:53:48.869
Boardroom: So, how this is gonna go is I'm opening the public hearing right now for item number 16. We will have a presentation from our staff, and then hear from the appellant. The appellant will have 7 minutes to respond.

1433
03:53:49.030 --> 03:54:00.110
Boardroom: We'll then go through, like we did before, council questions, public comment, closing the public hearing, having council comments, and then a vote. So, I will pass it over to staff. Thank you.

1434
03:54:00.910 --> 03:54:02.220
Boardroom: Thank you, Mayor.

1435
03:54:02.720 --> 03:54:15.130
Boardroom: Good evening. Oh, and Appellant, if you would like to sit so you don't have to stand during the presentation, it's up to you, but you'll have a little… You're welcome to just sit back there if you'd like. Or if you want to stand, that's fine, too. Okay.

1436
03:54:16.710 --> 03:54:23.020
Boardroom: Thank you. Good evening again, Councilmembers. Jordan Klein, Director of Planning Development. I'm joined here at the staff table.

1437
03:54:23.140 --> 03:54:31.370
Boardroom: by David Lopez, the city's building official, Jeff Jensen, assistant building official, and David Montes, a building inspector.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1438
03:54:32.000 --> 03:54:37.199
Boardroom: We also have… Deputy Fire Chief Colin Arnold.

1439
03:54:37.460 --> 03:54:48.120
Boardroom: on the Zoom, available to help answer any questions, related to fire code, or their activities in response to this. So, as the Mayor mentioned,

1440
03:54:48.670 --> 03:54:57.149
Boardroom: Staff are seeking to record with Alameda County a special assessment lien on the property at 2750 Cedar Street.

1441
03:54:57.480 --> 03:55:03.079
Boardroom: To recover the city's costs related to abatement activities that we conducted at that property.

1442
03:55:03.680 --> 03:55:05.229
Boardroom: And that action's being appealed.

1443
03:55:05.340 --> 03:55:10.339
Boardroom: So I'm gonna start by giving you some background, about staff's recommendation.

1444
03:55:11.660 --> 03:55:16.780
Boardroom: In spring of 2024, the city began hearing from neighbors

1445
03:55:17.110 --> 03:55:22.279
Boardroom: of 2750 Cedar Street, complaints of unpermitted and illegal construction.

1446
03:55:23.560 --> 03:55:36.950
Boardroom: The subject property is a parcel with existing hazardous conditions. It's located in a California Geological Survey landslide zone. It's located in a high fire hazard severity zone. The site has steep slope.

1447
03:55:37.400 --> 03:55:46.080
Boardroom: It has an existing failing retaining wall with soil visibly eroding onto the building area, and it's an L-shaped parcel with limited access.

1448

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:55:46.650 --> 03:55:52.480
Boardroom: Upon inspection, we did observe that construction work was being undertaken without required permits.

1449
03:55:53.580 --> 03:55:58.610
Boardroom: In general, any… Unpurbed construction is considered unsafe.

1450
03:55:58.770 --> 03:56:04.980
Boardroom: the… Primary purpose of the building permitting process, including inspection and

1451
03:56:05.140 --> 03:56:14.270
Boardroom: Review of plans is to ensure… is to protect public health, safety, and welfare, and to ensure buildings are constructed in a safe, durable, and compliant manner.

1452
03:56:14.880 --> 03:56:33.029
Boardroom: In this case, the illegal construction was being performed on a parcel with hazardous conditions, in close proximity to neighboring properties, at a time when destructive wildfires had been experienced in other locations in California, in an area which had experienced a serious landslide just the year before, in 2023.

1453
03:56:34.000 --> 03:56:41.100
Boardroom: The architect, Mr. Michael Tolleson, was adamant that the construction being performed was exempt from permit.

1454
03:56:41.870 --> 03:56:44.910
Boardroom: His interpretation of the code was incorrect.

1455
03:56:45.230 --> 03:56:58.279
Boardroom: And it was not accepted by the building official. It is the building official's responsibility to interpret the building code, and the building official's interpretation is supported by the International Code Council.

1456
03:56:59.410 --> 03:57:12.589
Boardroom: Their disagreement over the code interpretation is very explicitly covered in the staff report. I won't go over it here in detail, but Mr. Lopez and Mr. Jensen are available to speak to that point if you have any questions.

1457
03:57:13.650 --> 03:57:30.929

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: The architect had applied for a building permit. In multiple rounds of correspondence, the city very clearly communicated to the applicant that a use permit was required to demolish the existing structure and to build a new structure, and that the submitted drawings were inadequate for issuance of a building permit.

1458
03:57:31.600 --> 03:57:46.889
Boardroom: the architect refused to provide the proper plans and documents in order to justify code compliance. In fact, the architect repeatedly threatened, verbally and in writing, that he would proceed to construction without building permits. And ultimately, he did just that.

1459
03:57:48.050 --> 03:57:55.269
Boardroom: The city notified the owners and their architect on multiple occasions that the illegal construction work was being performed

1460
03:57:55.390 --> 03:58:00.880
Boardroom: That the illegal construction work being performed required permits, including a use permit.

1461
03:58:01.730 --> 03:58:14.239
Boardroom: From April through October of 2024, a city building inspector, primarily Mr. Montes, performed 11 inspections of the property. The Planning and Development Department issued 6 stop work orders.

1462
03:58:14.950 --> 03:58:24.209
Boardroom: 6 in orders and orders to correct, and 2 citations. The fire department also had an inspector conduct multiple inspections during that time, who also observed code violations.

1463
03:58:24.310 --> 03:58:29.700
Boardroom: The owners and architect ignored all the orders and citations, and continued to build without permits.

1464
03:58:30.390 --> 03:58:42.040
Boardroom: When it was apparent that the architect was not going to halt construction, the city requested an administrative warrant from Alameda County Superior Court to inspect the property and abate the illegal construction.

1465
03:58:42.480 --> 03:58:46.690
Boardroom: The court agreed with the city's reasoning for abatement, and granted us the warrant.

1466

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:58:47.210 --> 03:58:54.900
Boardroom: Subsequently, the city ordered the owner to remove all illegal construction by October 25th, 2024.

1467
03:58:55.330 --> 03:59:10.119
Boardroom: And we made it clear in that order that if they failed to do so, we would abate the illegal construction ourselves. And we made it very clear that if we were forced to conduct the abatement ourselves, it would ultimately be at the expense of the owner.

1468
03:59:11.090 --> 03:59:18.809
Boardroom: The owner did not meet the deadline, and the city exercised the warrant and abated the illegal construction, and stored the removed material on a city property.

1469
03:59:19.070 --> 03:59:26.709
Boardroom: The abatement was completed on October 31st, 2024. It was performed by a licensed contractor retained by the Public Works Department.

1470
03:59:27.020 --> 03:59:31.880
Boardroom: In removing the unpermitted structure, the city incurred costs of $24,000

1471
03:59:31.910 --> 03:59:50.389
Boardroom: $831, and we now seek to place a lien on the property to recover these costs. We have slides with additional information, including a timeline and photographs upon request. And of course, we're open to any questions you may have regarding this matter. We strongly recommend that you dismiss the appeal.

1472
03:59:53.010 --> 03:59:58.560
Boardroom: Thank you very much. We will now hear for, the appellant for 7 minutes.

1473
04:00:02.890 --> 04:00:12.410
Boardroom: Is this a poem? You don't have to take the whole 7 minutes, just to clarify, it's… you can have 7 minutes to speak. Go ahead. Thank you, okay.

1474
04:00:12.620 --> 04:00:26.670
Boardroom: For the record, on this lien appeal, this is, RE, Permit B2024-02077, March 10th, 2026. Would you mind speaking into the mic? You can adjust it, so…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1475
04:00:27.210 --> 04:00:40.750
Boardroom: Yeah, you can adjust it so you can speak more directly to it. See what I'm reading, so I'm trying to do… Oh, okay, yeah, if you just tilt that top part up, we'll be able to hear you better. There you go, yeah, there you go.

1476
04:00:40.980 --> 04:00:43.439
Boardroom: That's better, thank you. Okay,

1477
04:00:43.610 --> 04:00:49.670
Boardroom: In our introduction, item 1, I'm Michael Tolleson, architect in California, 35 years.

1478
04:00:49.810 --> 04:00:53.250
Boardroom: License C22075.

1479
04:00:53.490 --> 04:01:03.880
Boardroom: Documents provided in advance of this summary include, the 12-page lien appeal and the 7-page responses to all court declarations by staff.

1480
04:01:04.190 --> 04:01:11.469
Boardroom: The following summary and digital copies of all documents are available upon request to michael at michaeltollison.com.

1481
04:01:11.580 --> 04:01:17.620
Boardroom: Where CRC 105.2 is used herein, it is synonymous with R105.2.

1482
04:01:18.380 --> 04:01:26.389
Boardroom: Period. Summary 2. We believe our case has been made in our written statements, and expect that they have been reviewed in detail.

1483
04:01:26.490 --> 04:01:33.399
Boardroom: These include supplementals addressing staff errors and false statements in court declarations recently received.

1484
04:01:33.710 --> 04:01:35.330
Boardroom: Period. 3.

1485
04:01:35.540 --> 04:01:53.820
Boardroom: This lien appeal seeks to resolve the body of misinformation currently infecting our efforts to repair and improve an existing,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

legally, partially demolished single-family residence that has been in a deteriorating state since the previous owner's passing more than a decade ago.

1486
04:01:54.130 --> 04:01:57.869
Boardroom: The city has allowed these conditions to continue to exist.

1487
04:01:59.190 --> 04:02:11.959
Boardroom: Period. 4. The context of the dispute stems from staff failures to allow CRC 105.2 work exempt from permit, or even possess an awareness of its existence in city code.

1488
04:02:12.170 --> 04:02:20.140
Boardroom: We informed staff of our intention to use CRC 105.2 prior to commencement of work without reply.

1489
04:02:20.330 --> 04:02:32.719
Boardroom: Given the delays caused by the City's plan check errors, and the multiple departures of staff by resignation, reassignment, or dismissal, and instructions by the Council to impede review.

1490
04:02:33.170 --> 04:02:35.650
Boardroom: We have cho- we have,

1491
04:02:35.880 --> 04:02:41.190
Boardroom: chosen to use CRC 105.2 to begin temporary work

1492
04:02:41.290 --> 04:02:55.320
Boardroom: to the allowed extent possible, and to prevent further deterioration of the structure. Staff has failed to respond to CRC 105.2 in any way, and you will find it absent from any staff reply.

1493
04:02:55.510 --> 04:03:12.459
Boardroom: Period. 5. CRC 105.2 allows the construction of accessory structures of 120 square feet and decks of 200 square feet without permit, which may be combined and places no limit on the number of these modules.

1494
04:03:12.580 --> 04:03:29.209
Boardroom: We determined that we could construct 3 temporary modules separated by 5 feet each, which would become incorporated into the completed framing of the proposed rehabilitated single-family residence upon final permit approval, period.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1495
04:03:29.210 --> 04:03:43.970
Boardroom: 6. To ensure safety and craftsmanship, the architect provided continuous special inspection on a full daily basis, as cited in CRC Chapter 17 for the entire duration of construction.

1496
04:03:44.080 --> 04:03:49.600
Boardroom: As well, the architect and owner, who is a structural engineer, were in daily communication.

1497
04:03:49.970 --> 04:03:55.500
Boardroom: To be clear, the construction was always safe, and always compliant.

1498
04:03:55.740 --> 04:04:10.599
Boardroom: Period. Period 7. We find that the professional discussion that should have accompanied our approach has been undermined by staff, inspectors, neighbors, and even council members. We have documented and responded thoroughly.

1499
04:04:10.600 --> 04:04:20.689
Boardroom: to the outlandish and hysterical misinformation used to describe our professional positions in physical implementation, period 8.

1500
04:04:20.780 --> 04:04:26.499
Boardroom: We are requesting that the lien be removed in addition to administrative fees already removed.

1501
04:04:26.740 --> 04:04:30.080
Boardroom: And that reimbursed compensation be provided.

1502
04:04:30.210 --> 04:04:38.549
Boardroom: In lieu of a request for separate punitive damages against the city, we are offering to construct the original one-bedroom, one-bath.

1503
04:04:38.920 --> 04:04:46.480
Boardroom: residents under the by-right laws referenced by Councilmember Winggraph included in our written statement.

1504
04:04:46.750 --> 04:04:56.179
Boardroom: This would eliminate any rational opposition to the two-bedroom, 2-bath version on the same footprint and the same volume as we have proposed.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1505
04:04:56.280 --> 04:05:02.210
Boardroom: The Council has the authority to allow by-right approval tonight by our current permit

1506
04:05:02.360 --> 04:05:06.610
Boardroom: But our current permit will be issued regardless as an entitlement.

1507
04:05:06.850 --> 04:05:12.279
Boardroom: Note, importantly, that our plans for a future ADU are not a subject of this appeal.

1508
04:05:12.400 --> 04:05:17.199
Boardroom: Period. 9. We have made every effort to provide creative solutions

1509
04:05:17.490 --> 04:05:26.539
Boardroom: For the city, including temporarily dismantling the roof and walls and panels, and offering to cover all work with fire-resistive tarps

1510
04:05:26.790 --> 04:05:33.329
Boardroom: Only to have our cooperation overrun by city subcontractors without allowing us to complete

1511
04:05:33.530 --> 04:05:40.150
Boardroom: or compromise commissions, or secure bids. Staff never informed the fire department of these solutions.

1512
04:05:40.280 --> 04:05:41.200
Boardroom: And…

1513
04:05:41.250 --> 04:05:55.440
Boardroom: Fire has failed to respond… has failed to reply to three separate queries, period 10, as shown in photographic dating and court documents, the court provided neither… excuse me, the city provided neither a legal warrant

1514
04:05:55.440 --> 04:06:02.849
Boardroom: Nor for final inspection required by law prior to demolition, which we could easily argue makes the lien illegal.

1515

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:06:02.860 --> 04:06:06.729
Boardroom: We have chosen to continue our professional efforts

1516
04:06:07.010 --> 04:06:10.099
Boardroom: Including responding to all questions in writing.

1517
04:06:10.330 --> 04:06:25.890
Boardroom: If requiring, technical review, period. 11. From Paul Mack, structural engineer and owner, as an example of city endangerment, not ours. The city weakened the concrete retaining walls as the end result of the deck demolition.

1518
04:06:26.000 --> 04:06:43.150
Boardroom: The wood deck, which replaces the distressed deck, acts as a structural diaphragm. The structural diaphragm acts in combination with the cripple walls and concrete retaining wall to form a CBC slash BMC code-recommended structural lateral force system.

1519
04:06:43.510 --> 04:06:55.320
Boardroom: It serves as a rigid lateral force-resistive system to withstand and resist any lateral loads from the retaining slope and any seismic or wind loads acting on the structure.

1520
04:06:55.430 --> 04:07:04.819
Boardroom: The city's actions to remove the wood deck actually removed the code-required structural system, weakening or degrading the performance of the retaining walls.

1521
04:07:05.540 --> 04:07:06.490
Boardroom: Period.

1522
04:07:06.840 --> 04:07:09.580
Boardroom: Items, 12 through 14.

1523
04:07:09.710 --> 04:07:13.960
Boardroom: Our footnotes if needed, questions, if additional.

1524
04:07:14.340 --> 04:07:15.380
Boardroom: Oh, yeah.

1525
04:07:15.940 --> 04:07:24.890
Boardroom: Thank you. Okay, so are there any council questions? Is that a question, Councilmember Blackaby? Go ahead.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1526
04:07:25.900 --> 04:07:28.819
Boardroom: Thanks, Madam Mayor, thanks to the staff, thanks to the appellant for being here.

1527
04:07:30.130 --> 04:07:44.970
Boardroom: First question to the appellant, was your intention from the beginning to rebuild a primary… Could you speak up just a little bit? Sure. Was your… was it your intent from the beginning to rebuild a primary structure on that existing footprint?

1528
04:07:48.330 --> 04:08:02.630
Boardroom: Yes, in both square footage and in volume, we had made interior alterations in our proposal. Okay. So it wasn't… you were not building an accessory unit, you were building a primary unit? No, we were building an accessory unit, which, cleverly.

1529
04:08:02.840 --> 04:08:15.020
Boardroom: could be combined with the forthcoming framing to create the entire structure. The key thing was the structure, which has been deteriorating for 10 years or more.

1530
04:08:15.410 --> 04:08:26.029
Boardroom: And our concern was, we're not going to have anything to reuse if we keep the structure in the way it is with the delays caused by the city.

1531
04:08:26.190 --> 04:08:34.110
Boardroom: So, our intention was to construct as much as we could, legally, and then when we got our permit.

1532
04:08:34.310 --> 04:08:52.880
Boardroom: for the proposed structure, we could connect them effectively into the total package, which would be then inspected in a normal way. It seems to me, as I read the CRC R105.2, as you've laid it out, and the staff have laid it out, this is about accessory units like sheds.

1533
04:08:53.110 --> 04:09:10.600
Boardroom: Tool sheds, playhouses, garden structures. This isn't intended to be for a primary residence, or a series of them to be combined. It has an interim period in which it abides by 105.2, and then the inspection for framing would be complete once we had our permit in hand.

1534
04:09:10.860 --> 04:09:22.890

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: importantly, the structure, does not suffer additional damage. It just keeps accumulating. Okay. And we promise to use as much, reuse material as possible. Okay.

1535
04:09:23.030 --> 04:09:30.259
Boardroom: Do you have other projects in your history where you've substituted your own judgment for the building official, and basically said.

1536
04:09:30.310 --> 04:09:46.390
Boardroom: My reading of this regulation is XYZ, therefore I'm just gonna go do it, because that's my interpretation. Like, we have building officials for a reason, right? Which is to interpret the code and have some consistency in the city around safety and quality of construction. 104.1 of the code says that the building

1537
04:09:46.560 --> 04:09:47.580
Boardroom: Official.

1538
04:09:47.840 --> 04:09:52.769
Boardroom: Needs to incorporate the intent and purpose of the specific code.

1539
04:09:53.040 --> 04:09:54.370
Boardroom: Which I have done.

1540
04:09:54.730 --> 04:09:58.649
Boardroom: I have built the tallest legal single-family residence

1541
04:09:58.840 --> 04:10:10.939
Boardroom: in the state, in Los Angeles, using every exception in the code to do it, all of which was legal. I've done something kind of similar here, maybe a little more clever.

1542
04:10:10.990 --> 04:10:19.629
Boardroom: But working with the inspectors to show them what I had used, and working with, Los Angeles Building Department.

1543
04:10:20.100 --> 04:10:27.379
Boardroom: for, the application of all of those codes. I should say there were variances involved in those projects.

1544
04:10:27.490 --> 04:10:39.339

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: We don't see any variances needed here. As I'm going through the timeline, that came, again, in staff report, it looks like, I mean, again, there were multiple rounds of plan check and revision that you participated in, at least 5 initially.

1545
04:10:39.340 --> 04:10:59.219
Boardroom: for construction… Yes, because I wasn't getting responses, wasn't getting… You got responses and responded back and forth to those responses, right? There was an interactive process with you and the police department. Sorry, I just want to prevent us from going back and forth too much, so… did you have other questions? Okay, go ahead.

1546
04:10:59.260 --> 04:11:00.040
Boardroom: Yep.

1547
04:11:00.650 --> 04:11:09.240
Boardroom: On the timeline, so you received the first stop work order on September 18th, right? And you received that stop work order?

1548
04:11:10.100 --> 04:11:20.099
Boardroom: I'd like to get that to you to make sure that I'm accurate. I did receive them, I don't believe it was 6, I believe it was 4. Okay. But that's, that's irrelevant. Alright, so you got one on 9-18.

1549
04:11:20.220 --> 04:11:22.770
Boardroom: And then, what was your response to that stop work order?

1550
04:11:23.180 --> 04:11:27.159
Boardroom: Again, I'll give these to you in writing, because I think they need to be read. I've sent you…

1551
04:11:27.330 --> 04:11:32.789
Boardroom: A lot of information in… But the answer is, did you stop work or not?

1552
04:11:33.310 --> 04:11:43.879
Boardroom: No, but I informed the inspector that I was not going to stop work, and he failed to address 105.2. Did you get a second stop work order on the 19th of September?

1553
04:11:43.890 --> 04:12:02.929
Boardroom: That's correct, with my same response to him. Okay. Finally, I got so frustrated by my failure to reply to my responses that I insisted

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

that we have a meeting. During the meeting, only 3 of the attendees bothered to read my responses.

1554
04:12:03.510 --> 04:12:06.429
Boardroom: And that is part of the problem. Okay.

1555
04:12:06.540 --> 04:12:21.380
Boardroom: You got a third, a fourth, a fifth, and a sixth stop work order over the span of the following month. At any point, did you stop work in response to those orders? No, because the reasons he cited were that the structure was unsafe. The structure's never been unsafe.

1556
04:12:22.070 --> 04:12:26.450
Boardroom: The structure was legal and safe according to 105.2.

1557
04:12:26.680 --> 04:12:27.430
Boardroom: Right.

1558
04:12:28.610 --> 04:12:34.129
Boardroom: And then you had the meeting with city officials on the 18th… sorry, the 16th of October.

1559
04:12:34.520 --> 04:12:39.230
Boardroom: Where you were informed that it was an unpermitted structure after 6 stop work orders.

1560
04:12:39.620 --> 04:12:42.329
Boardroom: And that the city was gonna seek,

1561
04:12:42.520 --> 04:13:02.310
Boardroom: abatement. And we stopped, and we started removing structure. And we panelized it, and we laid it flat, and we offered to put tarps over it, which were fire-resistant. We got no response to that. Fire tells me they never received those… that information, and, my actions were appropriate, given those conditions.

1562
04:13:02.310 --> 04:13:09.129
Boardroom: We asked for a warrant. We weren't given a warrant before the contractors came out and demolished everything.

1563
04:13:09.740 --> 04:13:16.140
Boardroom: You had, as I understand it, again, at least a couple of weeks' notice before that demolition occurred, right?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1564
04:13:16.860 --> 04:13:30.709
Boardroom: This was not like a surprise, middle of the night, 24 hours. It was a surprise, because we expected the warrant. We stopped work when the contractors got there. Right, so you had 6 stop work orders where you hadn't stopped. We were launching the structure ourselves, removing wood.

1565
04:13:30.870 --> 04:13:38.329
Boardroom: Reusing as much as possible, taking precautions for fire, all these things we were doing as we had been legally all along.

1566
04:13:39.000 --> 04:13:44.219
Boardroom: We did not receive a warrant until November 7th. Check that date.

1567
04:13:44.570 --> 04:13:48.889
Boardroom: We stopped when the contractors arrived on October 31st.

1568
04:13:53.310 --> 04:14:08.729
Boardroom: All right. My read of the timeline is you had 6 stop work orders, you had a meeting with the city… I will double-check the timeline and give… Sorry, can you let him finish his questions? Go ahead. We're repeating ourselves. Well, okay, I just… I want to confirm that…

1569
04:14:09.430 --> 04:14:11.779
Boardroom: You had multiple opportunities here.

1570
04:14:13.870 --> 04:14:15.580
Boardroom: Not according to the code.

1571
04:14:15.940 --> 04:14:32.019
Boardroom: Well, that's your, again, that's your interpretation of the code. The building inspector gave you an interpretation of the code. Okay, I don't want to, sorry, I really don't want to engage in this back and forth in this way. I think it's pretty clear that there were plenty of warnings that were given, and you chose

1572
04:14:32.680 --> 04:14:44.820
Boardroom: not to adhere to them, and so I'd like to move forward if the… unless there are any other substantive questions. I believe, did you ever consult with the property owner during this process? When you'd gotten…

1573
04:14:45.320 --> 04:14:50.249

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And so he was sort of also… He's the owner, he's my client, he's my…

1574
04:14:50.710 --> 04:14:56.029
Boardroom: owner by private agreement? I mean, we speak on a daily basis, we still do.

1575
04:14:56.480 --> 04:14:59.970
Boardroom: I have worked with him for 40 years. Okay.

1576
04:15:00.300 --> 04:15:01.449
Boardroom: Alright, thank you.

1577
04:15:02.530 --> 04:15:03.570
Boardroom: Okay.

1578
04:15:04.410 --> 04:15:06.999
Boardroom: Is there any public comment on this item?

1579
04:15:08.870 --> 04:15:10.119
Boardroom: Come on up.

1580
04:15:10.740 --> 04:15:16.720
Boardroom: Sir, if you could make room for this public comment. I think he's gonna sit in the reserved seating, isn't he?

1581
04:15:18.530 --> 04:15:21.030
Boardroom: He's gonna speak here at the podium.

1582
04:15:23.060 --> 04:15:33.679
Boardroom: I'm kind of curious, as to how many of you councilpersons understood what he said. I know you understand what he said.

1583
04:15:34.220 --> 04:15:36.270
Boardroom: But did you understand what he was saying?

1584
04:15:36.920 --> 04:15:38.259
Boardroom: Just show of hands.

1585
04:15:39.480 --> 04:15:46.830
Boardroom: 1, 2… Okay, well… Do you?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1586
04:15:47.080 --> 04:15:48.020
Boardroom: Yeah.

1587
04:15:48.430 --> 04:15:56.880
Boardroom: Did you have a comment, though? Okay, you don't, you don't, you don't, no, no? Go ahead. I wanted to start off by saying, having worked as a city planner before.

1588
04:15:58.240 --> 04:16:03.999
Boardroom: the first thing I realized… First day on the job. Or the first few, you know, months.

1589
04:16:04.310 --> 04:16:11.840
Boardroom: was that the code… and by the way, I memorized the code, basically, right? You could ask me anything in the code.

1590
04:16:11.980 --> 04:16:12.740
Boardroom: Boom.

1591
04:16:13.980 --> 04:16:18.360
Boardroom: And what I realized is that when people would come in.

1592
04:16:20.210 --> 04:16:30.109
Boardroom: when they would ask for something, or be curious about something, I'm talking about local people, not developers, because they get all that stuff, and they have their people to work it out.

1593
04:16:30.640 --> 04:16:37.769
Boardroom: And just bring the plans in, and they're on point. But local folks don't really know. So I realized that

1594
04:16:38.360 --> 04:16:41.860
Boardroom: Code covers what it covers.

1595
04:16:43.130 --> 04:16:45.150
Boardroom: But there's another code.

1596
04:16:46.520 --> 04:16:49.340
Boardroom: That's not a part of what's in… what's written.

1597

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:16:49.510 --> 04:16:50.880
Boardroom: Right? Planners?

1598
04:16:51.060 --> 04:16:53.389
Boardroom: The code does not cover everything.

1599
04:16:53.780 --> 04:16:57.409
Boardroom: And so, what I realized is that there's two codes.

1600
04:16:58.850 --> 04:17:02.879
Boardroom: And I said, wow, there's two codes. There's the one that's stated.

1601
04:17:03.260 --> 04:17:05.510
Boardroom: And then there's the one that's not.

1602
04:17:05.660 --> 04:17:07.220
Boardroom: And the one that's not.

1603
04:17:07.360 --> 04:17:13.140
Boardroom: if you're clever, and he used the word clever, and that's what made me think, and I need to come up here and say this.

1604
04:17:13.510 --> 04:17:19.729
Boardroom: is that… You're trying to get to a destination, but there's more ways to get to it.

1605
04:17:20.420 --> 04:17:24.660
Boardroom: The code covers one, but there are other ways to get to it.

1606
04:17:25.260 --> 04:17:28.189
Boardroom: And that's why I asked the question, did everyone understand?

1607
04:17:28.430 --> 04:17:34.040
Boardroom: Thank you. Because we may be talking about a different way to get to the same place. Thank you.

1608
04:17:34.430 --> 04:17:35.110
Boardroom: Okay.

1609
04:17:36.130 --> 04:17:39.569

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Is there anyone online who has public comment for this item?

1610
04:17:44.710 --> 04:17:47.289
Boardroom: There's one hand raised online.

1611
04:17:47.470 --> 04:17:49.480
Boardroom: That's Maria Soule.

1612
04:17:52.520 --> 04:17:59.749
maria sol: Oh, hi, this was a lot of fun, given I've done construction for so many years. Excuse me, and what that…

1613
04:17:59.900 --> 04:18:17.799
maria sol: public speaker just said is what I've experienced, and given I've been in for so long, codes change, and they change due to the creative experience of trying to make sure things are safe, but as he said, addressing it differently.

1614
04:18:17.800 --> 04:18:25.389
maria sol: And I understand that we are taking responsibility as a city, but I know that there's been

1615
04:18:26.230 --> 04:18:38.150
maria sol: I was involved in alternative building, for instance, rammed earth, and straw bale and cob, and it took years for California to accept straw bale.

1616
04:18:38.640 --> 04:18:46.479
maria sol: You know? But they do, if it's done correctly. So, I just want to speak to the fact that there's…

1617
04:18:46.810 --> 04:18:51.249
maria sol: You know, many ways to address what an elephant is.

1618
04:18:51.360 --> 04:18:58.450
maria sol: In terms of where we're looking and how we're looking, and not every code and or inspector

1619
04:18:58.840 --> 04:19:05.370
maria sol: Has been accurate, in my experience, and sometimes just simple.

1620

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:19:05.620 --> 04:19:12.360
maria sol: Albeit different, creative possibilities, deserve to be at least looked at.

1621
04:19:12.690 --> 04:19:23.370
maria sol: Otherwise, we're just following the letter of the law, rather than what the purpose of this is. So thank you for listening to me, and I wish everyone well. Thank you.

1622
04:19:23.510 --> 04:19:24.760
Boardroom: Thanks, Maria.

1623
04:19:25.420 --> 04:19:28.060
Boardroom: Any other comments online?

1624
04:19:28.750 --> 04:19:29.750
Boardroom: Okay.

1625
04:19:30.250 --> 04:19:34.860
Boardroom: Alright, so, I would like to see if there's a motion to close the public hearing.

1626
04:19:35.500 --> 04:19:37.170
Boardroom: Second. I have a question.

1627
04:19:37.970 --> 04:19:39.080
Boardroom: Okay, go ahead.

1628
04:19:40.000 --> 04:19:43.899
Boardroom: Thank you. First of all,

1629
04:19:44.620 --> 04:19:54.560
Boardroom: In my 14 years of, hearing quasi-judicial appeals on this body and on the Zoning Adjustments Board.

1630
04:19:54.830 --> 04:20:00.139
Boardroom: Never once prior to this have I been asked to provide my credentials, but…

1631
04:20:00.350 --> 04:20:02.980
Boardroom: For the record, I will,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1632
04:20:03.770 --> 04:20:16.070
Boardroom: I may not be a licensed architect or planner, but I spent 13 years conducting a nuclear safety regulatory oversight function, so I'm…

1633
04:20:16.520 --> 04:20:23.009
Boardroom: Quite familiar with, understanding codes or asking questions,

1634
04:20:23.470 --> 04:20:34.319
Boardroom: that clarify the code if I don't understand something, so I'm going to just ask, Director Klein, this question.

1635
04:20:35.560 --> 04:20:41.749
Boardroom: Insofar as… A claim was made that there are two sets of codes.

1636
04:20:42.090 --> 04:20:52.269
Boardroom: Can you speak to… Can you speak to, in page 9 of the report,

1637
04:20:52.830 --> 04:20:56.709
Boardroom: it says the Berkeley Building Code has an amendment,

1638
04:20:58.090 --> 04:21:04.210
Boardroom: And can you just clarify, is this a local amendment that makes,

1639
04:21:04.470 --> 04:21:14.080
Boardroom: All, applications, basically subordinate to, Applicable state and local codes.

1640
04:21:17.530 --> 04:21:22.150
Boardroom: Yes, all applications are applicable to state and local codes. Thank you.

1641
04:21:23.570 --> 04:21:30.949
Boardroom: Okay. Is there… so, there was a motion to close the public hearing, and there was a second. Is there any opposition to closing the public hearing?

1642
04:21:31.530 --> 04:21:43.939
Boardroom: Okay, the public hearing is closed. Are there any council comments? Councilmember Humbert? Yes, thank you, Madam Mayor. I read carefully through the file in this matter, and I've listened carefully.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1643
04:21:44.040 --> 04:21:46.280
Boardroom: To the presentations here tonight.

1644
04:21:46.440 --> 04:21:58.179
Boardroom: And I believe that the appeal of the special assessment tax lien is utterly lacking in merit, and that the lien was entirely justified. The arguments made by this appellant are specious.

1645
04:21:58.400 --> 04:22:07.540
Boardroom: I want to thank our city staff for enforcing our building codes and taking proper action in the interests of public safety. I will be voting to deny the appeal.

1646
04:22:08.650 --> 04:22:11.339
Boardroom: Thank you very much. Any other comments from Council?

1647
04:22:13.540 --> 04:22:21.109
Boardroom: Yes, Councilmember Blackaby. Madam Mayor, thank you. And I agree with Councilmember Humbert. I mean, I think this is a pretty clear…

1648
04:22:21.410 --> 04:22:31.179
Boardroom: Record, I think that, staff, went above and beyond in terms of the process, in terms of communication, in terms of noticing.

1649
04:22:31.740 --> 04:22:45.079
Boardroom: multiple meetings, involved multiple personnel. I'll also note, as someone who represents this area in the hillside, this was also happening in, extreme fire weather at a time when the,

1650
04:22:45.200 --> 04:22:48.640
Boardroom: The building department also asks construction to cease.

1651
04:22:49.080 --> 04:22:59.260
Boardroom: Which we haven't brought up yet, but that's another… talk about health and safety issue, that's a health and safety issue. So, you know, I, I, I, I appreciate,

1652
04:22:59.520 --> 04:23:08.140
Boardroom: everyone's right to appeal, but I… I don't… I just don't see the foundation for it, so I move that we adopt the staff recommendation and deny the appeal.

1653

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:23:08.240 --> 04:23:09.110
Boardroom: Second.

1654
04:23:11.160 --> 04:23:29.920
Boardroom: Thank you. I do just want to say, thank you very much to the city staff. It does take a lot of time and hours to go through all of this documentation and the appeals, and quite frankly, I feel very frustrated that this is not a good use of our time. So I do want to thank the staff very much.

1655
04:23:30.040 --> 04:23:35.280
Boardroom: And, of course, everyone has a right to an appeal, and you have had your time to do that.

1656
04:23:35.510 --> 04:23:40.840
Boardroom: And I will see if there's any opposition to the motion that's on the floor to reject the appeal.

1657
04:23:41.740 --> 04:23:42.580
Boardroom: Okay.

1658
04:23:43.210 --> 04:23:49.199
Boardroom: Alright, the motion is passed, and the appeal is rejected. Thank you very much.

1659
04:23:52.000 --> 04:24:02.319
Boardroom: Okay, so we are now moving on to item number 17, resolution rescinding Berkeley Police Department's pepper spray reporting requirement.

1660
04:24:03.970 --> 04:24:10.259
Boardroom: So I will ask Councilmember Kessnerwani to, present her resolution.

1661
04:24:17.880 --> 04:24:25.260
Boardroom: Thank you very much, Madam Mayor. So, I'm referencing, the Supplemental Packet 2 report that I submitted, and

1662
04:24:25.440 --> 04:24:28.239
Boardroom: I want to thank my colleagues, because it looks like,

1663
04:24:28.390 --> 04:24:44.190

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Others have also submitted supplementals, and I expect that we should be able to land on this. So, and I want to thank the Public Safety Policy Committee for reviewing this item. We had a lot of public comment there. I want to thank the police department for being available.

1664
04:24:44.190 --> 04:24:52.240
Boardroom: then and tonight, to provide more information. The purpose of this item, and the reason I brought it forward last fall, was

1665
04:24:52.680 --> 04:25:11.629
Boardroom: Simply to, seek to update our, procedures, and, I have a couple of other items that will be coming to the Council that seek to do the same thing, simply modernize our practices, given our transparency hub, which,

1666
04:25:11.930 --> 04:25:18.079
Boardroom: Provides information daily about, use of force incidents.

1667
04:25:18.240 --> 04:25:34.910
Boardroom: And, so we felt that this additional report that was established in 1997 was no longer needed. But I really do appreciate the process and the discussion that we've had around this item, because as a result, we did add a referral to…

1668
04:25:36.990 --> 04:25:55.490
Boardroom: improve the transparency Hub so that we have definitions of the various use of force levels, and we can include better navigational guidelines. That's something I heard, in some community meetings that I held, that people, are trying to access the transparency Hub, but, if they're…

1669
04:25:55.500 --> 04:25:57.260
Boardroom: New to doing it.

1670
04:25:57.320 --> 04:26:11.870
Boardroom: or if they're looking for this information for the first time, you know, we can do better to make it more accessible, so we do want to do that. And then I also want to thank the Police Accountability Board, because they did write us a letter, I think I've included this letter as an attachment, and they were…

1671
04:26:12.000 --> 04:26:31.830
Boardroom: recommending that we incorporate the reporting of the use of pepper spray in the annual military equipment report to maintain the narrative reports of pepper spray utilization, and I think that is,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

perfectly reasonable to do that in an existing report that the department is already doing.

1672
04:26:31.830 --> 04:26:35.029
Boardroom: So, so, you know, the desire here is not to…

1673
04:26:35.210 --> 04:26:48.990
Boardroom: reduce the amount of public information that's available, but, to… to just streamline it so that it makes more sense. There are other uses of force that don't… didn't get this sort of pepper spray, separate report treatment, so it seemed like

1674
04:26:49.030 --> 04:26:57.099
Boardroom: It didn't make a whole lot of sense to stick to that 1997 resolution approach. So, in any case, I think that the mayor has…

1675
04:26:57.150 --> 04:27:05.310
Boardroom: Some amendments, which I'm fine with, I know we're gonna discuss further, maybe there'll be some further refinement, but look forward to the discussion. Thank you very much.

1676
04:27:06.380 --> 04:27:12.980
Boardroom: Yes, thank you very much, Councilmember. Actually, did you want to present, Vice Mayor Lunapara?

1677
04:27:17.760 --> 04:27:24.410
Boardroom: Alright, I will go first. So I'm gonna pull up… On our screen…

1678
04:27:27.280 --> 04:27:37.349
Boardroom: So, this is a supplemental that has been, brought forward by myself, Councilmember Blackaby, Councilmember Tragov, and Councilmember O'Keefe.

1679
04:27:37.410 --> 04:27:47.929
Boardroom: And since then, we've also made some adjustments as well, so I'd like to, I just have a few talking points that I want to address, so…

1680
04:27:52.070 --> 04:27:53.500
Boardroom: Excuse me…

1681
04:27:54.330 --> 04:28:06.170

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: All right, so, well, first, of course, thank you very much for your item of… and, also to Vice Mayor Luna Parra, thank you to the PAB. I know we have both our, our interim

1682
04:28:06.220 --> 04:28:09.630
Boardroom: interim, Jose Murillo, who's here.

1683
04:28:09.630 --> 04:28:31.930
Boardroom: And, so thank you very much to Pat and ODPA for your letters and suggestions, and thank you so much to the Chief and to Arlo for working with us, because we've had a number of different conversations to get here. Streamlining, of course, is really important. We don't want to be duplicating efforts, and of course, we didn't want to lose anything, and so that's a really… a big reason why we adjusted, some things through the supplemental.

1684
04:28:31.930 --> 04:28:52.059
Boardroom: And, you know, for me, at a time like this, when our federal government is doing everything they can to prevent transparency and to put pressure on our communities, ensuring transparency at the local level just becomes more important. So… and I am really grateful to everyone who's been kind of putting in their thoughts here, because I think that that's what's going to make this better.

1685
04:28:53.130 --> 04:28:57.570
Boardroom: So, our supplemental tonight does two main things.

1686
04:28:57.570 --> 04:29:18.449
Boardroom: First, we codified into the resolution what should be reported on the transparency Hub, so that the public can have the most up-to-date information about how our police department is using pepper spray. And second, we're requesting that our city manager come back with an item to reincorporate pepper spray into the annual military equipment report, which was the recommendation from the PAB.

1687
04:29:18.450 --> 04:29:27.440
Boardroom: And both of these points really are intended to promote transparency while still acknowledging the burden that unnecessary paperwork, has for our department. So…

1688
04:29:28.090 --> 04:29:30.320
Boardroom: I have…

1689
04:29:31.490 --> 04:29:37.859

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Great. So we… so one change that we made was just to have this sent to the city manager.

1690
04:29:38.110 --> 04:29:43.260
Boardroom: This is just different from what we already submitted, just to be clear. Yeah.

1691
04:29:43.260 --> 04:30:07.860
Boardroom: And then, after a conversation with our police department, there was concern about, you know, if there were some, technological issues for the reason why it might take longer for it to get onto, the transparency hub, so we've adjusted it to 14 days to allow for that. I think there was some confusion of the phrasing, the officer involved, it's the officer's role, so we just clarified

1692
04:30:07.860 --> 04:30:15.369
Boardroom: that language, not the officer's name specifically. That, that wasn't currently, that didn't currently exist in the reporting.

1693
04:30:15.390 --> 04:30:23.099
Boardroom: And then, again, City Manager, and then the bottom of this is the resolution. So in this language here, it actually…

1694
04:30:23.170 --> 04:30:26.140
Boardroom: More clearly lays out

1695
04:30:26.350 --> 04:30:40.859
Boardroom: what would be included onto the Transparency Hub, because we believe that this will help to, include the information that was on the report, but put it onto the Transparency Hub, just to make sure that it's accessible to people. And again, that would be within those 14 days.

1696
04:30:40.860 --> 04:30:53.489
Boardroom: And so this was done in collaboration with the council members that are on this item, but also with our chief and Arlo, so thank you all very much for your, for your input and your feedback and conversation about this, so…

1697
04:30:53.520 --> 04:30:55.260
Boardroom: Did you want to go next?

1698
04:30:56.310 --> 04:31:04.149
Boardroom: Yeah, thank you. I wanted to go last just to explain the differences so that we're not saying the same thing over and over again.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1699
04:31:04.450 --> 04:31:20.279
Boardroom: We also… oh, sorry. We also, wanted to incorporate the officer account into the transparency Hub. My office found discrepancies, both between the council and PAB notification. Oh, sorry.

1700
04:31:24.080 --> 04:31:27.870
Boardroom: multiple people talking to me, so I'm sorry, and I think my mic was on. Go ahead.

1701
04:31:28.180 --> 04:31:29.809
Boardroom: Okay,

1702
04:31:29.810 --> 04:31:49.120
Boardroom: My office found discrepancies between the Council PAB notification and the Transparency Hub data, and between the annual military equipment report and what is posted to the Transparency Hub. And so, for that reason, I think that the provision to report to the Transparency Hub will be essential for maintaining accuracy and accountability.

1703
04:31:49.170 --> 04:32:07.359
Boardroom: We also codify, the referral that came out of the Public Safety's recommendation, and Section 2A is critical for Council and the public to understand what this means in quantifiable terms, to know how much money will be recouped back into the police department budget or general fund.

1704
04:32:07.620 --> 04:32:10.530
Boardroom: And then Section 3,

1705
04:32:11.200 --> 04:32:25.200
Boardroom: basically, requires that the… that this go into effect once the referral has been passed, has been implemented. So, this includes an opt-in notification system for the Transparency Hub,

1706
04:32:26.170 --> 04:32:31.959
Boardroom: And… The narratives being uploaded into the military equipment ordinance.

1707
04:32:32.380 --> 04:32:33.040
Boardroom: Thanks.

1708

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:32:36.650 --> 04:32:37.650
Boardroom: Okay.

1709
04:32:38.150 --> 04:32:43.069
Boardroom: Very good. Thank you for sharing that.

1710
04:32:43.270 --> 04:32:50.160
Boardroom: What I wanna do is, actually, just…

1711
04:32:50.880 --> 04:33:06.720
Boardroom: Maybe we should just take public comment, and we can come back and discuss. So let's take public comment on this item, please. This is public comment for item number 17, resolution rescinding Berkeley Police Department's pepper spray reporting requirement. Tongue twister. Go ahead.

1712
04:33:09.259 --> 04:33:13.360
Boardroom: I, good evening, it's been a long day.

1713
04:33:15.660 --> 04:33:23.000
Boardroom: George, can you speak in the mic, please? Yes, ma'am. So, I have… oh, only one minute, so I have a minute from Grace here.

1714
04:33:25.320 --> 04:33:26.689
Boardroom: That's okay.

1715
04:33:27.250 --> 04:33:28.819
Boardroom: We can start over. Okay.

1716
04:33:29.040 --> 04:33:39.300
Boardroom: My name is George Lipman, I'm speaking on behalf of the Peace and Justice Commission and, Chair Pastor Duane Phillips. Can you hold this up?

1717
04:33:39.450 --> 04:33:44.480
Boardroom: Over here, to the… To the council. Maybe on this side.

1718
04:33:44.730 --> 04:33:49.539
Boardroom: So, so yesterday, the Peace and Justice Commission approved a report entitled.

1719
04:33:49.869 --> 04:33:55.859

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Social justice implications of proposed use of controlled weapons and other policing tools.

1720
04:33:56.270 --> 04:33:59.239
Boardroom: The Commission included in its recommendations

1721
04:33:59.520 --> 04:34:06.070
Boardroom: that Council retain the 1997 requirement for public reporting of each use of pepper spray.

1722
04:34:06.330 --> 04:34:18.190
Boardroom: The Commission endorsed the PAB letter calling for the continuation of their requirement, which demonstrates that while the proposed resolution is predicated on the existence of redundant reporting.

1723
04:34:18.810 --> 04:34:32.320
Boardroom: The other reports cited in the resolution lack narrative information and or are inaccessible. We appreciate the changes that have come through today and the direction of increasing transparency.

1724
04:34:33.800 --> 04:34:35.020
Boardroom: But,

1725
04:34:35.349 --> 04:34:43.289
Boardroom: Peace and Justice adds that if the Berkeley Police Department intends to continue or even to expand pepper spray use.

1726
04:34:43.580 --> 04:34:48.020
Boardroom: It is to their benefit that the community understand the context of its usage.

1727
04:34:48.130 --> 04:35:03.269
Boardroom: At least two significant narrative sections in the current use report, which is going around an example of it, are not reflected in some of the new resolution versions that have been proposed. One is the nature of the incident.

1728
04:35:03.410 --> 04:35:06.130
Boardroom: And two, the summary and justification.

1729
04:35:06.210 --> 04:35:11.189

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I've distributed to the council, An excerpted version of a completed use report.

1730
04:35:11.240 --> 04:35:32.630
Boardroom: so that you can judge for yourselves how valuable these narrative elements could be, especially for the PAB and the ODPA's understanding. In fact, the narrative is the most important part of the use report, and its omission is what causes commissioners and community members the most concern. It's the heart of the use report, and its loss would make the report useless to the oversight process. Thank you. Thank you.

1731
04:35:34.529 --> 04:35:36.590
Boardroom: Yeah, great job, George, thank you.

1732
04:35:50.200 --> 04:35:56.469
Boardroom: This resolution is being put forward in the guise of streamlining

1733
04:35:56.689 --> 04:36:11.869
Boardroom: of making technical adjustments to this, but what it's really about is the normalization of pepper spraying. That's what it's all about, is normalization. And you put that in the context

1734
04:36:11.990 --> 04:36:13.740
Boardroom: of,

1735
04:36:13.970 --> 04:36:23.300
Boardroom: Other things being proposed about this, of tear gas, of flock, flock cameras that are going to, result in more.

1736
04:36:24.009 --> 04:36:35.550
Boardroom: kidnappings of ICE, of dogs, of aircraft.

1737
04:36:35.759 --> 04:36:46.349
Boardroom: And this is… this is not about streamlining. This is about normalization of… attacks… On workers, on immigrants.

1738
04:36:46.840 --> 04:36:49.750
Boardroom: And us. And it needs to be stopped.

1739
04:36:50.960 --> 04:36:53.099
Boardroom: Nice job, thank you. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1740
04:36:59.119 --> 04:37:06.769
Boardroom: Good evening, Madam Mayor and City Council. My name is Jason Martins. First, I just want to say I support the Napara's amendments to the item.

1741
04:37:06.910 --> 04:37:14.830
Boardroom: Second, I just want to say I find it somewhat problematic to refer to this as, a burden on the city or on the police.

1742
04:37:14.890 --> 04:37:27.160
Boardroom: I feel like we really should be centering the people who are subjected to pepper spray, a dangerous chemical weapon, and that should be the central point of our concern, and not some

1743
04:37:28.730 --> 04:37:34.500
Boardroom: not very important, amount of money that is related to the reporting, Rakir. Thank you.

1744
04:37:35.790 --> 04:37:37.000
Boardroom: Thank you.

1745
04:37:42.099 --> 04:37:43.400
Boardroom: My minute goes to Andrea.

1746
04:37:47.689 --> 04:37:50.460
Boardroom: Councilmembers, so I got 2 minutes, is that right?

1747
04:37:51.369 --> 04:37:56.980
Boardroom: Cousin members, I'm just, I'm just noticing that we have the Chief here ready to answer questions, but where's the Police Accountability Board?

1748
04:37:58.080 --> 04:38:10.620
Boardroom: Constantly, our city is reminded that police accountability does not exist in this town. It is given no level of priority or respect. Yeah, he's relegated back there as an afterthought. You might think of bringing him up to the table.

1749
04:38:11.290 --> 04:38:19.050
Boardroom: It's important to remember that pepper spray was introduced as an alternative to lethal force. That was the conversation in 1997.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1750
04:38:19.369 --> 04:38:42.040
Boardroom: The ACLU was reporting that there were scores of deaths associated with its use, and it was also recognized that pepper spray is a weapon that's very dynamic in situations. Sometimes this pepper spray, supposedly there's somebody who's attacking an officer. Sometimes the pepper spray works, sometimes it doesn't. Sometimes people have underlying mental health conditions, respiratory problems, that could be actually

1751
04:38:42.040 --> 04:38:46.419
Boardroom: Donna Spring was very concerned that it would be life-threatening.

1752
04:38:46.439 --> 04:38:59.980
Boardroom: This is a potentially lethal weapon that you're talking about. So that is why the community is concerned that it's casual use. Yes, there are places in this country that use it very, very casually.

1753
04:39:00.300 --> 04:39:05.820
Boardroom: That normalizes, as the man just said. They want to just make it kind of casual every day.

1754
04:39:06.710 --> 04:39:20.050
Boardroom: The protocols in 97 were that if an officer used it, they had to report on was it effective? What was happening, what motivated its use, did they provide medical attention, and what was the outcome?

1755
04:39:20.860 --> 04:39:30.219
Boardroom: That information is crucial. Do we want this weapon? We were this close to banning it in 97. That's how… that's how high the level of concern was.

1756
04:39:30.390 --> 04:39:41.929
Boardroom: We have to understand that police pepper spray is not the same as what you buy in the store. Police pepper spray is as highly concentrated. It is very dangerous stuff.

1757
04:39:42.480 --> 04:39:46.900
Boardroom: Because our current system of police accountability is not functional at this time.

1758
04:39:47.070 --> 04:39:56.170

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: We don't have a quorum, we don't have a majority, and even when we do, complaints, that extra minute would be wrong. Thank you. Yeah.

1759
04:39:57.500 --> 04:40:15.739
Boardroom: Because we don't have effective oversight in this, to give the police more weapons, and to make them less accountable for their use is dangerous. It's an assault on the community. And I don't understand what's motivating it. As a cost-saving measure for the police?

1760
04:40:16.180 --> 04:40:18.709
Boardroom: Are we of so little value?

1761
04:40:18.900 --> 04:40:24.199
Boardroom: Is our health and well-being so uninteresting to you?

1762
04:40:24.700 --> 04:40:31.390
Boardroom: That we're compared to, that our lives, our very lives, are put up and compared to a cost-saving measure?

1763
04:40:31.550 --> 04:40:47.830
Boardroom: I thought the whole point of the police was to keep us safe. We need those narratives. We need to be able to evaluate if there is an increase in pepper sprays use, we need to be able to evaluate its impact on the community, and its impact on the people who are subject to it.

1764
04:40:48.170 --> 04:40:52.600
Boardroom: So, yes, please, Luna pause, I think it's the minimum we could do.

1765
04:40:52.950 --> 04:40:55.990
Boardroom: So, thank you very much. Thank you.

1766
04:41:03.940 --> 04:41:09.699
Boardroom: Good evening. Over the last… over the next few weeks, we're gonna just see a lot of…

1767
04:41:10.450 --> 04:41:15.279
Boardroom: Police accountability measures, and as someone who has…

1768
04:41:15.740 --> 04:41:26.769
Boardroom: Lived in the city, dealt with the police in… I guess, racial… Racially biased ways.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1769
04:41:27.180 --> 04:41:29.720
Boardroom: It is really important to make sure that

1770
04:41:30.030 --> 04:41:48.459
Boardroom: we understand that something like the Transparency Hub, which is created by BPD and not by, let's say, the Police Accountability Board or other members of the public, is something that we can't use as a baseline, and that we have to make sure that we can create enhanced protections in order to

1771
04:41:48.890 --> 04:41:50.010
Boardroom: Support.

1772
04:41:50.130 --> 04:41:52.569
Boardroom: People not being enabled to use

1773
04:41:52.680 --> 04:42:00.549
Boardroom: any methods of force, regardless if they're lethal or not lethal. So, yes, let's… let's support our constituents. Thank you so much.

1774
04:42:01.340 --> 04:42:03.000
Boardroom: Thank you.

1775
04:42:09.200 --> 04:42:13.359
Boardroom: Good evening, Monu Law again. And, pepper spray…

1776
04:42:13.910 --> 04:42:16.620
Boardroom: As you probably know, is a chemical.

1777
04:42:17.070 --> 04:42:32.920
Boardroom: It's a weapon, and it's banned for use in war by Article 1.5 of the Chemical Weapons Convention. It causes burning of the lungs, less lethal, but in some cases it has been lethal. Streamlining is a slippery slope.

1778
04:42:33.540 --> 04:42:36.499
Boardroom: I agree that we don't want to duplicate.

1779
04:42:36.920 --> 04:42:48.610

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: We don't want to lose accountability. The transparency Hub is not fully transparent. No, it is not. And how is our department using pepper spray? We want to have as much information as possible.

1780
04:42:48.730 --> 04:43:01.729
Boardroom: Not limited, not narrowing it. I do believe that we could do much better if we're concerned about the safety, true public safety, of Berkeleyans. We are at risk right now of being under attack by

1781
04:43:02.480 --> 04:43:10.270
Boardroom: ICE and others, the Proud Boys, I've seen them in the park, I've talked to them when they come to town, and they mean harm.

1782
04:43:10.400 --> 04:43:13.820
Boardroom: Thanks, Monique. And we need to protect each other. Thank you. Thank you.

1783
04:43:17.960 --> 04:43:24.630
Boardroom: I know that this item is being talked about in terms of efficiency, But the…

1784
04:43:25.220 --> 04:43:41.320
Boardroom: I know that there's an item coming up at the next City Council meeting that could lead to a lot more of these reports, and would probably make it, if you consider this a burden, more burdensome. But I would ask the City Council to remember that

1785
04:43:42.290 --> 04:43:46.119
Boardroom: OC is a chemical weapon,

1786
04:43:46.470 --> 04:44:01.430
Boardroom: It's very dangerous, and while you might think that the benefits of increased use of this weapon by police, will outweigh the risks it poses to the community, you have heard all these community members come up here today and say that that…

1787
04:44:01.570 --> 04:44:03.970
Boardroom: And that's not what they feel.

1788
04:44:05.000 --> 04:44:23.039
Boardroom: that's not where our values lie. And I know that you might have different values, but the overwhelming consensus here is that members of the Brooklyn community care more about the transparency and

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

safety they get from these reports than about the marginal increase in public safety you believe will come from this event. Thank you.

1789
04:44:23.790 --> 04:44:25.110
Boardroom: Thanks for your comment.

1790
04:44:26.860 --> 04:44:27.660
Boardroom: Excuse me.

1791
04:44:28.100 --> 04:44:43.870
Boardroom: Hi, my name is Paul, I live very close to here. This is absolute foolishness. I've gone to every single public safety meeting about this, everyone has spoken unanimously against this measure, and this is just the first of a whole series y'all are pushing through. And the author of this legislation

1792
04:44:43.940 --> 04:45:00.160
Boardroom: I wanna, this is a question I hope you bring up, sort of vaguely and very disingenuously refer to that this is a measure, along with the smoke and the tear gas, that these measures are needed because, yes, ICE is a threat, and maybe, I guess, the police could use this against them, as though that's how policing works?

1793
04:45:00.290 --> 04:45:07.670
Boardroom: You guys know nothing of accountability, and you're moving so far away from it, and it's happening so fast, and it's crazy. So, cut it out. Thank you.

1794
04:45:08.170 --> 04:45:09.430
Boardroom: Thank you.

1795
04:45:15.170 --> 04:45:25.340
Boardroom: Hi, again, just wanna generally… is one minute? One minute? One minute? One minute? Okay. Just wanna generally say that, you know, there's a lot of good police.

1796
04:45:25.720 --> 04:45:28.870
Boardroom: In police departments throughout the country.

1797
04:45:29.050 --> 04:45:32.510
Boardroom: And what we all… when we do hear things, it's…

1798
04:45:33.320 --> 04:45:38.810

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: You know, the bad things, it's not the good police that are doing the bad things, it's the bad ones, right?

1799
04:45:39.010 --> 04:45:47.240
Boardroom: And so, you know, there's probably a lot of good police on the force, and so maybe some of this is…

1800
04:45:47.580 --> 04:45:49.520
Boardroom: You know, what's not being said.

1801
04:45:49.860 --> 04:45:54.620
Boardroom: is, A concern about the ones who… Want.

1802
04:45:54.770 --> 04:45:56.349
Boardroom: Use it the proper way.

1803
04:45:56.700 --> 04:46:04.280
Boardroom: So, I don't… maybe… maybe you all think we're out… some of you may think we're out of the woods on some of this police stuff, but…

1804
04:46:06.070 --> 04:46:07.800
Boardroom: We still have a long way to go.

1805
04:46:07.930 --> 04:46:11.309
Boardroom: So, just, you know, you may want to be concerned.

1806
04:46:11.440 --> 04:46:17.700
Boardroom: About that kind of thing, and what can you do to forestall some bad use?

1807
04:46:19.420 --> 04:46:23.560
Boardroom: Thank you. Is there any public comment online for this item?

1808
04:46:23.950 --> 04:46:31.520
Boardroom: Okay, so this is public comment on item 17 regarding pepper spray reporting. If you'd like to speak on this item and you're on

1809
04:46:31.810 --> 04:46:34.149
Boardroom: The Zoom, please raise your hand now.

1810
04:46:36.230 --> 04:46:42.469

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And it looks like we have 12… 13 speakers with raised hands.

1811
04:46:44.250 --> 04:46:45.920
Boardroom: First is Vanessa.

1812
04:46:46.830 --> 04:46:49.180
Boardroom: Vanessa Cordova, you should be able to speak.

1813
04:46:50.310 --> 04:47:06.600
vanessa cordova: Thank you. Council members, the resolution before you absurdly suggests that by increasing police use of force with a chemical agent, while decreasing police accountability by limiting publicly available documentation, the police department will run more efficiently.

1814
04:47:06.750 --> 04:47:22.799
vanessa cordova: How much time or money will this intervention save the city? I can't say, because the resolution failed to include any meaningful regression analysis or commodification of time to ensure Berkeley taxpayers could understand its true fiscal and social impact.

1815
04:47:22.800 --> 04:47:25.080
vanessa cordova: Folks, this is Policy 101.

1816
04:47:25.080 --> 04:47:46.869
vanessa cordova: The proposal suggests a sample size of only 3 to 4 events per annum. That's the first red flag highlighting the weakness and pointlessness of this resolution. It also tells me this council is still struggling to shift away from legislating in a vacuum of incident-based management and towards a more resilient, transparent accountability for police conduct and effectiveness.

1817
04:47:46.980 --> 04:47:53.749
vanessa cordova: Outside the Oval Office, I am hard-pressed to find any civilian who believes the use of chemical agents by law enforcement.

1818
04:47:53.750 --> 04:47:57.529
Boardroom: Vanessa, thanks for your comment. Next is, speaker…

1819
04:47:57.840 --> 04:48:00.969
Boardroom: with the name listed as Virtual Meetings.

1820
04:48:04.470 --> 04:48:22.040

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Virtual Meetings: Hello, my name is Wendy Alfsson with… speaking on behalf of the Berkeley Friends Meeting. I'd like to speak in favor of passage of a combination of Councilmember Luna Parr's resolution and the Mayor's resolution

1821
04:48:22.040 --> 04:48:26.419
Virtual Meetings: Supported, signed on by four of you as co-sponsors.

1822
04:48:26.420 --> 04:48:33.199
Virtual Meetings: And in particular, the addition of the narrative report access, having

1823
04:48:34.250 --> 04:48:37.920
Virtual Meetings: The 14 days for the transparency.

1824
04:48:38.170 --> 04:48:53.910
Virtual Meetings: hub to be the publicly accessible deadline, not just when it's inputted in, but when the public can see it. And most importantly, that any rescission of the 1997,

1825
04:48:53.910 --> 04:49:07.929
Virtual Meetings: reporting requirement does not take place until Council acts on the amendment of the Police Control Ordinance, which I think is the last part of your… thank you.

1826
04:49:07.930 --> 04:49:08.560
Boardroom: U.

1827
04:49:09.120 --> 04:49:11.549
Boardroom: Next is Alana Auerbach.

1828
04:49:14.310 --> 04:49:16.929
Elana Auerbach: Have any of y'all been pepper sprayed before?

1829
04:49:17.200 --> 04:49:18.280
Elana Auerbach: Anybody?

1830
04:49:18.900 --> 04:49:27.650
Elana Auerbach: police level? Yeah, so, Chief, you can probably attest that it is harmful and intense, and it's a weapon.

1831
04:49:28.330 --> 04:49:29.580

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Elana Auerbach: And so.

1832
04:49:29.790 --> 04:49:40.370
Elana Auerbach: We have all spent… there's been a handful of, incidents where it's been used in the past several years, 4, 5, 3 times.

1833
04:49:40.560 --> 04:49:52.090
Elana Auerbach: We have spent more time on this as a community than for the past 3 years that the police would have had to spend on their, quote, duplicative reports.

1834
04:49:52.310 --> 04:49:54.800
Elana Auerbach: So, who are we centering here?

1835
04:49:55.080 --> 04:50:03.799
Elana Auerbach: You all, and I'm talking to the council here, are meant to be centering the community. The community does not want

1836
04:50:04.020 --> 04:50:12.159
Elana Auerbach: less reporting on this. We don't want it. If the cops have to spend an extra 4 or 5 hours a year

1837
04:50:12.340 --> 04:50:15.059
Elana Auerbach: Reporting, it's okay.

1838
04:50:15.270 --> 04:50:16.820
Elana Auerbach: Please don't do this.

1839
04:50:17.440 --> 04:50:18.430
Boardroom: Thank you.

1840
04:50:19.680 --> 04:50:22.650
Boardroom: Okay, next is Della Luna.

1841
04:50:26.940 --> 04:50:43.159
Della Luna (she/her) Huichun: Yes, I want to say thanks to the members of the board here that made suggestions or amendments, but we don't need those amendments because we don't need this ordinance. It doesn't need to be passed. It's completely pointless, and like the former caller said.

1842
04:50:43.460 --> 04:50:49.050

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Della Luna (she/her) Huichun: The amount of time we've already spent on this is, like, has already surpassed what you're allegedly saving.

1843
04:50:49.050 --> 04:51:03.660
Della Luna (she/her) Huichun: But I want to talk about the Transparency Hub, and one, the URL, the website for the Transparency Hub, is a parody. It's like a joke. It needs to be more streamlined. A URL can be purchased for $20, and you can direct your website to that.

1844
04:51:03.660 --> 04:51:05.959
Della Luna (she/her) Huichun: Something simple and easy to find.

1845
04:51:05.960 --> 04:51:23.840
Della Luna (she/her) Huichun: Furthermore, if you go to the City of Berkeley website, there is no link to the Transparency Board. You can go to the police department's website. Again, no link to the Transparency Hub. If you're being so transparent, why is it so hard to find the Transparency Hub? There's even a link that says data about,

1846
04:51:23.970 --> 04:51:29.750
Della Luna (she/her) Huichun: pullovers and calls for service, you click on that, is that the transparency Hub? No, it's not.

1847
04:51:29.910 --> 04:51:30.860
Boardroom: Thanks, Stella.

1848
04:51:32.410 --> 04:51:35.130
Boardroom: Next is Nathan Meisel.

1849
04:51:38.910 --> 04:51:43.149
Nathan Mizell: Hello, Madam Mayor and Council, this is Nathan Mizell.

1850
04:51:44.610 --> 04:51:53.340
Nathan Mizell: There is a full-scale attack in this city on police oversight, and frankly, on democracy itself. But…

1851
04:51:53.470 --> 04:52:01.920
Nathan Mizell: As it regards this item, I support the supplemental submitted by Councilmember Lunapara, and portions of the Mayor's Supplemental as well.

1852
04:52:02.320 --> 04:52:08.640

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Nathan Mizell: I hope that this Council can strike some reasonable compromise that keeps the narrative aspect of this.

1853
04:52:09.060 --> 04:52:25.899
Nathan Mizell: Really, the question we're asking is not, will the police have less time to do whatever other important work they do, but whether, on a handful of occasions a year, officers are willing to write two paragraphs about the use of a chemical weapon upon potentially citizens in this city. So…

1854
04:52:26.350 --> 04:52:41.099
Nathan Mizell: If that's not important to us anymore in the City of Berkeley, fine. Get rid of it. If those things still matter in how we treat people, require officers to write two paragraphs and help us maintain some semblance of oversight. Thank you.

1855
04:52:41.510 --> 04:52:42.729
Boardroom: Thank you, Nathan.

1856
04:52:43.290 --> 04:52:45.690
Boardroom: Next is Riella.

1857
04:52:49.600 --> 04:53:12.729
Raela R: Hello, I'm Rayla, I live on the south side, and I wanted to say that, police officers, engineers, doctors, nurses, teachers are some of the most important, jobs that impact people's lives, and that no one would agree to lessen the requirements for being a teacher or being a doctor, so I

1858
04:53:12.730 --> 04:53:23.109
Raela R: I don't understand why, anyone would consider doing that for a police force, which is historically and currently, generally, has been used

1859
04:53:23.560 --> 04:53:28.899
Raela R: And has physical and systematic authority over civilians.

1860
04:53:29.100 --> 04:53:36.519
Raela R: Yeah, and… Also, I support Councilmember Lenopar's, supplemental.

1861
04:53:36.720 --> 04:53:37.710
Raela R: Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1862
04:53:37.710 --> 04:53:38.689
Boardroom: Thank you.

1863
04:53:40.100 --> 04:53:42.659
Boardroom: Next is Christopher Cole.

1864
04:53:47.290 --> 04:53:54.789
Christopher Kroll: Thank you. Yeah, at a time that the Police Accountability Board is… is in some free fall, you all just,

1865
04:53:55.190 --> 04:54:05.629
Christopher Kroll: let go the director recently, and I don't know all the ins and outs of it. But we also know that two of the senior members of, resigned recently, so… and it's…

1866
04:54:05.780 --> 04:54:25.380
Christopher Kroll: at a time that the Police Accountability Board is in free fall, and the Berkeley voters, as we know, in setting up that board, indicated a strong interest in seeing accountability of the police department. This is not the time to be… to be reducing, the needed oversight, especially over such

1867
04:54:25.380 --> 04:54:45.339
Christopher Kroll: horrific weapons as these chemical sprays, canine units, helicopters. So, I… sorry, supplementals that are turned in at the last minute, it's very difficult for the members of the public to really take that in. Many people thankfully did. I did not. I hope that what Councilmember Lunapara

1868
04:54:45.470 --> 04:54:49.889
Christopher Kroll: proposed is better than what Councilmember Kesarwani put forward originally.

1869
04:54:49.890 --> 04:54:50.339
Boardroom: Thank you.

1870
04:54:50.490 --> 04:54:51.140
Christopher Kroll: Thank you.

1871
04:54:51.140 --> 04:54:51.900
Boardroom: your comment.

1872

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

04:54:52.640 --> 04:54:55.509
Boardroom: Next is Barb Atwell.

1873
04:55:00.340 --> 04:55:23.519
Barb Atwell, she/her, Ohlone land (Berkeley): Hi, my name is Barb Atwell, I'm a resident of Berkeley District 1, and I represent the Berkeley Friends Meeting, also known as the Quakers. We urge the Council to adopt the Police Accountability Board's recommendation to continue pepper spray reporting, including the amendments that were shown today. Resccending the report requirement does not make this more modern.

1874
04:55:23.580 --> 04:55:34.200
Barb Atwell, she/her, Ohlone land (Berkeley): Transparency and police accountability matter, and we do not want to make the police… sorry, do not make the police use of pepper spray a secret. Thank you.

1875
04:55:35.270 --> 04:55:36.140
Boardroom: Thank you.

1876
04:55:36.780 --> 04:55:41.709
Boardroom: Okay… Next is Kelly Hammergren.

1877
04:55:46.970 --> 04:55:48.780
kelly hammargren: Hello, can you hear me okay?

1878
04:55:49.000 --> 04:55:49.700
Boardroom: Yes.

1879
04:55:50.820 --> 04:55:58.889
kelly hammargren: Okay, I agree with many of the comments that are made here tonight. I wish we weren't doing this at all.

1880
04:55:59.210 --> 04:56:07.460
kelly hammargren: I think Luna Pars is the best, and I'm looking at the city website, and if you don't know what you're looking for.

1881
04:56:07.560 --> 04:56:10.460
kelly hammargren: Or even if you do know what you're looking for.

1882
04:56:10.770 --> 04:56:20.130
kelly hammargren: You can't find the Transparency Hub by even going to the search magnifying glass on the city website.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1883
04:56:20.790 --> 04:56:27.960
kelly hammargren: So… You know, we're really not getting the kind of information that we

1884
04:56:28.670 --> 04:56:35.659
kelly hammargren: that you say we're gonna get, and the… when I do find the transparency hub, it doesn't give…

1885
04:56:36.010 --> 04:56:39.140
kelly hammargren: The kind of narrative that you would expect.

1886
04:56:40.090 --> 04:56:50.920
kelly hammargren: So, you know, I don't think we really have a good solution here, and I don't understand why we're making these changes when there's so little pepper spray supposedly used.

1887
04:56:50.920 --> 04:56:52.180
Boardroom: Thanks, Kelly.

1888
04:56:53.760 --> 04:56:56.570
Boardroom: Next is… Michaela?

1889
04:56:59.360 --> 04:57:00.280
makayla: Hi!

1890
04:57:00.280 --> 04:57:23.030
makayla: I understand the intentions behind the supplement just now introduced, but I also agree with the previous commenter that it's not necessary because the resolution as a whole, as also supported, said by the Police Accountability Board, is not necessary, and like previous commenters said, it is only going to normalize

1891
04:57:23.030 --> 04:57:38.300
makayla: violence against civilians and a lack of accountability and lack of oversight, and what you're saying, that this is going to increase efficiency and modernization completely negates the weight of the…

1892
04:57:38.310 --> 04:57:40.030
makayla: The burden that…

1893
04:57:40.360 --> 04:57:53.139

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

makayla: should be felt by the City of Berkeley, and by its police department, and the weight of its responsibility, and what it owes to the people of Berkeley, as it should be held accountable to them.

1894
04:57:53.140 --> 04:58:04.810
makayla: As it currently is being held accountable through these requirements, and you have the chance here today to show that you understand.

1895
04:58:04.810 --> 04:58:07.119
Boardroom: Michaela, thanks for your… for your comment.

1896
04:58:07.400 --> 04:58:09.870
Boardroom: Next is Marilyn Cleveland.

1897
04:58:15.120 --> 04:58:19.250
Marilyn Cleveland (she/her) Ohlone Land: Thank you, I appreciate the careful consideration of this item.

1898
04:58:19.540 --> 04:58:28.170
Marilyn Cleveland (she/her) Ohlone Land: I support having robust reporting of all uses of pepper spray, and I appreciate the work that's been done on this.

1899
04:58:28.410 --> 04:58:36.590
Marilyn Cleveland (she/her) Ohlone Land: It appears that the Mayor's proposed amended resolution with the amendments proposed by Councilmember Luna Parra, best

1900
04:58:36.830 --> 04:58:49.729
Marilyn Cleveland (she/her) Ohlone Land: meets that need, with the deadline for pepper spray reporting to be publicly accessible in the Transparency Hub, and to include a narrative report.

1901
04:58:50.070 --> 04:59:04.449
Marilyn Cleveland (she/her) Ohlone Land: Recision of the old report should not take effect until the Council acts on the amendment to the Controlled Equipment Ordinance in order to, include pepper spray within that ordinance reporting requirement.

1902
04:59:04.560 --> 04:59:12.660
Marilyn Cleveland (she/her) Ohlone Land: And this would prevent any gap between the end of the current reporting and the start of any replacement reporting requirement.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1903
04:59:13.170 --> 04:59:14.119
Marilyn Cleveland (she/her) Ohlone Land: Thank you.

1904
04:59:15.540 --> 04:59:16.580
Boardroom: Thank you.

1905
04:59:17.530 --> 04:59:20.100
Boardroom: Okay, next is Sam.

1906
04:59:26.990 --> 04:59:28.189
Sam: Can you all hear me?

1907
04:59:29.100 --> 04:59:29.800
Boardroom: Yes.

1908
04:59:29.800 --> 04:59:44.629
Sam: Hi. I, do not support rescinding this. The existing reporting requirements are already the bare minimum, and the transparency hub is insufficient, difficult to navigate, and vague, as several people have already said.

1909
04:59:44.980 --> 04:59:58.979
Sam: The reporting requirement is not redundant because it provides additional information, where state law is insufficient. This is additionally coming at a time when the City Council has recently fired the head of Berkeley's Civilian Police Oversight Office.

1910
04:59:59.010 --> 05:00:06.619
Sam: And following the resignation of several police accountability board members, citing an uncooperative and untransparent police force.

1911
05:00:06.870 --> 05:00:09.190
Sam: I hope you guys reconsider this. Thank you.

1912
05:00:09.440 --> 05:00:10.270
Boardroom: Thank you.

1913
05:00:10.890 --> 05:00:13.349
Boardroom: Next is Julie Dickey.

1914

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:00:17.900 --> 05:00:19.940
juli dickey: Yeah, hi, can you hear me?

1915
05:00:20.480 --> 05:00:21.130
Boardroom: Yes.

1916
05:00:22.520 --> 05:00:28.100
juli dickey: I can't hear you. So I am not in… favor of

1917
05:00:29.150 --> 05:00:33.810
juli dickey: pepper spray at all. It's just another weapon.

1918
05:00:34.050 --> 05:00:41.650
juli dickey: And I think we don't need to be normalizing weapons. We've got enough weapons going on across the world.

1919
05:00:42.970 --> 05:00:49.450
juli dickey: I think that if you're gonna have this thing in place, you've got to keep the narrative.

1920
05:00:50.320 --> 05:00:56.059
juli dickey: and make the transparency Hub transparent. Thank you.

1921
05:00:57.820 --> 05:00:58.680
Boardroom: Thank you.

1922
05:00:58.830 --> 05:01:01.620
Boardroom: Okay, next is Maria Soule.

1923
05:01:03.850 --> 05:01:10.859
maria sol: Yeah, I just… You know, I spent all day today… Mostly crying, because…

1924
05:01:11.630 --> 05:01:26.199
maria sol: we have militarized in the name of safety, and, you know, I want to live, so one way of making sure I can is to kill everybody else. It's like, we've got to stop. We have got to stop, and look!

1925
05:01:26.230 --> 05:01:44.129
maria sol: at what we're choosing. Let's choose de-escalation. Let's choose transparency and accountability and responsibility. Let's choose peace. Let's choose peace. It's here, we can have it, if we quit

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1926
05:01:44.130 --> 05:01:52.619
maria sol: picking up weapons and making it the thing to do because it purports to keep me safe. It doesn't.

1927
05:01:52.840 --> 05:02:07.439
maria sol: It doesn't. If it hurts someone else, and this needs to stop, please let there be peace. Please, let's reimagine what the world can be, and stop doing what the world is doing presently.

1928
05:02:07.440 --> 05:02:13.149
Boardroom: Thanks, Maria. Last hand raised is Adam.

1929
05:02:18.040 --> 05:02:19.390
Adam: Hello, can you hear me?

1930
05:02:19.800 --> 05:02:20.450
Boardroom: Yes.

1931
05:02:20.980 --> 05:02:37.700
Adam: I just want you guys to think about the timing of this resolution. It's upsetting that this would be brought forward at all, but especially it's upsetting right now, given what's going on in the country. I just urge you to listen to all of your constituents who are begging you to vote no.

1932
05:02:38.360 --> 05:02:41.849
Adam: We're your community, and we're asking for this, and I just…

1933
05:02:42.220 --> 05:02:45.239
Adam: I just urge you guys to listen to us. Thank you.

1934
05:02:47.000 --> 05:02:48.699
Boardroom: Thank you. Thank you.

1935
05:02:48.870 --> 05:02:49.850
Boardroom: That's it.

1936
05:02:50.470 --> 05:02:52.490
Boardroom: Okay,

1937

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:02:52.730 --> 05:03:01.669
Boardroom: there are a number of different, supplementals here. One thing I do want to add is that on our supplemental, I neglected to mention that,

1938
05:03:01.840 --> 05:03:12.800
Boardroom: we added on there that we wanted to, include if first aid was administered, so I forgot to mention that, and so thank you, Councilmember, for… for bringing that up.

1939
05:03:12.800 --> 05:03:22.360
Boardroom: Can I ask a follow-up question to that point, Madam Mayor, and maybe, if you're able to repost those latest amendments.

1940
05:03:22.360 --> 05:03:27.450
Boardroom: Because my understanding was we didn't have the ability to,

1941
05:03:27.510 --> 05:03:31.530
Boardroom: provide that information on the Transparency Hub, is that correct?

1942
05:03:32.280 --> 05:03:52.750
Boardroom: Is that what you're requesting, Madam Mayor? So, I'm gonna let the chief respond, but we had a conversation about it. Oh, okay, please go ahead. Yeah, for sure. And maybe just to set the stage a little bit, you know, I'm very proud of the Transparency Hub. I don't know of another jurisdiction that has a hub of that kind that shares that kind of information in real time to that level of detail.

1943
05:03:52.830 --> 05:04:08.530
Boardroom: However, comma, we're not gonna rest on that, and we know there's a lot of things we can continue to build into the Transparency Hub, and the whole goal is to be able to share as much information as we can about the work that we do, while also balancing privacy rights and safety of the community as well.

1944
05:04:08.530 --> 05:04:26.440
Boardroom: So, to answer the question specifically about the, capabilities of transparency Hub, the whole purpose is for it to be automated, so that the human piece is taken out of it. As calls come in and they're into our CAD system, and records are created, and use of force reports are documented, that there is, a direct link

1945
05:04:26.480 --> 05:04:40.579

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: behind the scenes to then upload that into the Transparency Hub. Right now, the way the Blue Team or the Use of Force reporting system works, there's not a box that talks about first aid. And, some of the other suggestions around

1946
05:04:40.720 --> 05:04:56.019
Boardroom: information in. In the future, we want to look about a lot of things, putting more detail in a lot of the calls. But specifically for the first aid piece, we will have to check with the vendor and ask them to rework the system to allow us to have that space to do the first aid piece.

1947
05:04:56.020 --> 05:05:06.029
Boardroom: Certainly, it's something we could explore, but right now, under our current existing system, someone would have to go in and manually enter that first aid piece, into the hub.

1948
05:05:07.150 --> 05:05:25.400
Boardroom: Okay, so, Madam Mayor, could you just go back to the wording that you were proposing for that, then? Sure, so… I think it's in the resolution. Yeah, I mean, keep in mind, this is a referral, so the city manager would look into it, and they have to come back to us and let us know, you know, how this would all work. So…

1949
05:05:25.590 --> 05:05:27.269
Boardroom: Oh, sorry, let me…

1950
05:05:27.690 --> 05:05:35.640
Boardroom: Let me scroll and read. I think you had, like, a bulleted list, right, of what you are proposing? Yes, so it's here.

1951
05:05:36.050 --> 05:05:49.820
Boardroom: So, yeah, I'm sorry, it's bleeding off of… if you just go back… I just want to see the sentence. Okay, that's perfect, just right here, just like that. Just give me a moment, I just want to just take a look at what that says. Sure, sure.

1952
05:05:50.330 --> 05:05:58.580
Boardroom: And so, while you're doing that, I'm gonna actually, ask a question about… Oh.

1953
05:05:59.090 --> 05:06:17.009
Boardroom: Okay, so… Actually, can I just, like, finish my thought on this, though? Oh, go ahead. Thank you, Madam Mayor. So, yeah, I think the issue is, if this is asking… this resolution is worded so that we have to

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

include the administration of first aid, I'm just worried if we don't have the capability to do that.

1954
05:06:17.010 --> 05:06:25.380
Boardroom: So, for D, if we could just say the administration of first aid, I feel like if that clause could just have some…

1955
05:06:26.210 --> 05:06:29.150
Boardroom: some caveat there, you know, to the extent

1956
05:06:29.800 --> 05:06:35.660
Boardroom: practicable or something. It seems like everything else is fine, everything else can…

1957
05:06:35.770 --> 05:06:55.539
Boardroom: can go in now, right? Yeah, and I would share that it would be our… my desire to have that included, and certainly it seems like it'd be something that the vendor could do, and that information would appear, or could very easily appear, in the, military equipment ordinance Report, the piece. I will also point out that our, by policy, officers who,

1958
05:06:55.540 --> 05:07:00.430
Boardroom: deploy OC are required by policy to get first aid for the individual.

1959
05:07:01.200 --> 05:07:07.120
Boardroom: So it's a… it's a piece of the policy that requires it. So it's… the box should… will always be checked, yes.

1960
05:07:07.760 --> 05:07:18.130
Boardroom: And that's… I mean, I still think that's important. Understood. So, so, I'd like to actually ask our city attorney if she can weigh in on the,

1961
05:07:19.080 --> 05:07:32.829
Boardroom: on the wording piece here, one of the conversations that we're having is if we can include something in here, since it's a referral, that may not be possible right this moment, because they need to check in with the,

1962
05:07:33.170 --> 05:07:35.529
Boardroom: With the company, to make sure it's possible.

1963

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:07:37.490 --> 05:07:44.210
Boardroom: I'm gonna turn it over to Sam Harvey, who is on, Zoom, and he can address. Thank you.

1964
05:07:45.300 --> 05:07:50.709
Sam Harvey: Sure, I think you could put some language just… Caveating, you know.

1965
05:07:50.930 --> 05:07:56.250
Sam Harvey: Maybe as its own numbered bullet, you know,

1966
05:07:57.800 --> 05:08:00.639
Sam Harvey: Work with the vendor to determine whether,

1967
05:08:01.840 --> 05:08:07.840
Sam Harvey: Administrative, administration first aid can be included as a checkbox or category.

1968
05:08:09.430 --> 05:08:10.299
Boardroom: That's fine.

1969
05:08:10.530 --> 05:08:11.860
Boardroom: That's fine with me.

1970
05:08:14.050 --> 05:08:15.370
Boardroom: Okay.

1971
05:08:15.660 --> 05:08:21.290
Boardroom: Okay, so Madam Mayor, are you proposing to just add that into D, then, and work with the vendor…

1972
05:08:21.970 --> 05:08:27.110
Boardroom: To ensure that the administration of first aid can be included, or something like that.

1973
05:08:31.750 --> 05:08:37.829
Boardroom: Yes. Then I think I'm fine with that, and the 14 days seems reasonable.

1974
05:08:38.090 --> 05:08:50.300

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Chief, did you have anything further? No, I was just gonna suggest you could, expect that we, you know, put in there clear direction to us to include it in the military equipment report, and…

1975
05:08:50.430 --> 05:08:54.250
Boardroom: As well as a transparency hub, if the capabilities allow.

1976
05:08:55.210 --> 05:09:01.730
Boardroom: So if… sorry, say that one more time. You… I'm sorry, Councilmembers, can you please… I'm sorry, go ahead.

1977
05:09:02.520 --> 05:09:10.420
Boardroom: Can you say that one more time? Yeah, to include the administration of first aid in the military equipment ordinance.

1978
05:09:10.590 --> 05:09:14.449
Boardroom: and the Transparency Hub, if the capabilities allow.

1979
05:09:16.610 --> 05:09:23.529
Boardroom: So, Madam Mayor, there's an… I think you have a section above about the controlled equipment. Below. Oh, it's below.

1980
05:09:23.870 --> 05:09:33.190
Boardroom: requirements of the controlled equipment ordinance, include… you could just say including… Comma including… Administration of first aid.

1981
05:09:38.080 --> 05:09:40.070
Boardroom: And then I think we've covered it.

1982
05:09:42.930 --> 05:09:46.369
Boardroom: Work with the vendor to determine if the administration of first aid is

1983
05:09:47.290 --> 05:09:51.520
Boardroom: Chief, you had a nice phrase, Feasible? No.

1984
05:09:51.760 --> 05:09:53.700
Boardroom: Capabilities?

1985
05:09:54.480 --> 05:09:56.750
Boardroom: Feasible or capable? Are they… yeah.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1986
05:09:57.480 --> 05:10:00.570
Boardroom: maybe just say it's feasible. Okay. Okay.

1987
05:10:01.730 --> 05:10:02.810
Boardroom: Thank you very much.

1988
05:10:03.420 --> 05:10:10.719
Boardroom: Okay, okay, so I was going to ask a question.

1989
05:10:11.040 --> 05:10:12.060
Sam Harvey: Madam Mayor?

1990
05:10:12.250 --> 05:10:12.930
Boardroom: Yes.

1991
05:10:12.930 --> 05:10:24.330
Sam Harvey: If I may, I do recommend that the language in the resolution itself, clarify Section 3, that those changes to the Transparency app are a referral

1992
05:10:25.990 --> 05:10:33.459
Sam Harvey: As written right now, it simply says that those changes shall be made, and if the intent is just to refer to the city manager to make those changes.

1993
05:10:33.580 --> 05:10:39.400
Sam Harvey: I recommend that that be amended to say, you know.

1994
05:10:41.190 --> 05:10:46.979
Sam Harvey: refer to the city manager to ensure that the Transparency Hub can be, you know.

1995
05:10:47.140 --> 05:10:50.019
Sam Harvey: The following can be included in the Transparency Hub.

1996
05:10:50.020 --> 05:10:54.050
Boardroom: Thank you, I'm sorry, can you tell me where that is?

1997
05:10:54.050 --> 05:10:59.130
Sam Harvey: This would be under the third now, therefore, clause,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1998
05:11:02.350 --> 05:11:09.059
Boardroom: Peppers shall be… It's, it's not her.

1999
05:11:09.060 --> 05:11:10.539
Sam Harvey: Yeah, I mean, I think…

2000
05:11:10.540 --> 05:11:12.210
Boardroom: I mean, Sam. Sorry.

2001
05:11:12.380 --> 05:11:16.649
Sam Harvey: Maybe at the beginning of subsection… of subsection 3?

2002
05:11:18.220 --> 05:11:32.370
Boardroom: Madam Mayor, can I just ask a clarifying question? I think maybe the threshold question is, do you intend this change to just be reflected in the resolution, which is how it's currently structured, or do you prefer it to come back?

2003
05:11:33.290 --> 05:11:40.469
Boardroom: As a referral. If… if it's your intent to just have it be adopted tonight.

2004
05:11:40.620 --> 05:11:44.439
Boardroom: With the changes that you're proposing, that's how it's already structured.

2005
05:11:46.220 --> 05:11:59.890
Boardroom: I see the city manager wants to say something. No, I concur with the city attorney. Like, my reading of it is that it's not a referral, but that it's adopting a resolution effectuating these changes.

2006
05:12:00.380 --> 05:12:04.840
Boardroom: So, the question that the city attorney posed is, is…

2007
05:12:05.430 --> 05:12:10.080
Boardroom: I always read this to be not a referral, but the adoption of a resolution to do these things.

2008
05:12:13.580 --> 05:12:15.230
Boardroom: Yeah, I…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2009
05:12:15.390 --> 05:12:20.699
Boardroom: I think that the way it's written is how we intended it to, so I guess I'm a little confused what…

2010
05:12:21.120 --> 05:12:30.749
Boardroom: So… I think there may have been some confusion, because you used the word referral, so, it doesn't sound like you're intending it as a referral.

2011
05:12:35.170 --> 05:12:38.489
Boardroom: Yes. Okay. Number 3 is directive.

2012
05:12:38.610 --> 05:12:40.280
Boardroom: Except for D.

2013
05:12:40.980 --> 05:12:45.740
Boardroom: when you're saying, if feasible. So, D might not…

2014
05:12:45.910 --> 05:12:58.369
Boardroom: if D is a referral, it might not fit with the rest of number 3 in the resolve clause. So is the… so it would be cleaner to remove it, is that what we're saying? It could be part of the motion.

2015
05:12:58.620 --> 05:13:03.049
Boardroom: A referral could be part of the motion, it doesn't have to be in the resolution.

2016
05:13:04.110 --> 05:13:04.940
Boardroom: Right?

2017
05:13:05.320 --> 05:13:23.389
Boardroom: This is so technical. So, okay, so we can… we can… we could remove D, and then just say, and also pass this resolution, and also refer to the city manager, to work with the vendor to determine if the administration of First City is feasible to include in the transparency Hub. Yes.

2018
05:13:24.190 --> 05:13:25.910
Boardroom: Thank you. Alright.

2019
05:13:26.250 --> 05:13:33.710
Boardroom: Okay, so going back, the question that I had was on…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2020
05:13:34.880 --> 05:13:51.630
Boardroom: Councilmember Luna Parra's supplemental. I'm just curious for this automating the opt-in notification for the Transparency Hub, Chief or Arlo, could you speak to what that would entail, if that's possible? Or is this another thing we'd need to work with the vendor on? Yeah, so…

2021
05:13:51.690 --> 05:13:57.709
Boardroom: the Transparency Head was built on, like, a web platform from a different vendor, and so,

2022
05:13:58.640 --> 05:14:15.459
Boardroom: we're limited by the features that they offer. That's not one that I'm aware of, especially because it would be this dashboard, element within the wider webpage, so it would be, I think unlikely that

2023
05:14:15.590 --> 05:14:18.539
Boardroom: That feature is available, we could certainly reach out.

2024
05:14:18.760 --> 05:14:24.239
Boardroom: But, you know, we're not software engineers, we're not web developers, we're kind of just…

2025
05:14:24.400 --> 05:14:28.369
Boardroom: Limited by the, the vendors that we're working with.

2026
05:14:31.750 --> 05:14:39.599
Boardroom: Okay, thank you very much. And I'm sorry, go ahead, Councilmember Blackaby. Yeah, I just wanted to step back one second as we're kind of hashing all this out.

2027
05:14:40.160 --> 05:14:45.889
Boardroom: as we're making any of these changes to the Hub and to the annual report, can you just remind us, like.

2028
05:14:46.080 --> 05:14:52.270
Boardroom: All of this data, the process that actually happens at the moment or in the wake of an incident.

2029
05:14:52.560 --> 05:15:02.190
Boardroom: nothing changes with respect to the information that the officer collects, the officer reports, that goes up through the chain of

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

command. Like, we're not… I just want to be clear, just, again, I'm thinking through all this.

2030
05:15:02.300 --> 05:15:19.109
Boardroom: So, as we collect the documentation from the officer and talk about the incident, nothing changes. We're still collecting exactly the same data now that we were before, that we were before. Like, it's like, we have whether or not first aid is rendered, the narrative, and that goes up through the whole chain of command, comes to you, and ultimately.

2031
05:15:19.740 --> 05:15:21.699
Boardroom: Comes to the city manager, is that right?

2032
05:15:22.150 --> 05:15:41.210
Boardroom: Yeah, so just to be clear, nothing in this resolution changes authorized uses of the pepper spray. They still have to… every use has to comply with Policy 303. Every, use that occurs, it has to be reported and recorded according to Policy 300, which requires that

2033
05:15:41.210 --> 05:15:55.029
Boardroom: documentation, all those, all that information that is on the OC report is collected, there's bodywork camera footage, that then goes through the full supervisory chain and is reviewed to make sure it's within policy all the way through the process.

2034
05:15:55.300 --> 05:16:03.860
Boardroom: And in the past, when these reports… before there was a transparency Hub, when these reports came and you notified Council, you know, there's…

2035
05:16:04.450 --> 05:16:18.349
Boardroom: some of that could become public, it may become public, but it didn't automatically become public in the same way that it does as it will, when it's published on the Transparency Hub, right? Like, there was always kind of an intervening step when that came back to Council, and…

2036
05:16:18.350 --> 05:16:32.729
Boardroom: Yeah, it was shared with the PRC at the time, shared with Council, and there was that time delay, right? And if you happen to be at the PRC meeting when it was discussed, then you heard about it, or at the council meeting if it was discussed.

2037
05:16:32.730 --> 05:16:41.540

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: But now, everyone… it's accessible to everyone via the Hub. Okay. Yeah, so, I mean, I like… the spirit is… what we're trying to make sure is much of that

2038
05:16:41.540 --> 05:16:53.449
Boardroom: what's documented in the same report that the officers filled out before, and that they are now being filled out now, and it is going up through the chain of command. The intent and the spirit is, let's try and get as much of that into the hub as we can, given whatever technical limitations we have with the hub.

2039
05:16:53.450 --> 05:17:08.380
Boardroom: In some ways, it would be more real-time than it ever was, because in the past, it would be filtered through the PRC, or the PAB, or… you know, and in this case, and it will still continue to be reported in the military equipment, the annual report.

2040
05:17:08.660 --> 05:17:12.029
Boardroom: Right. Okay. So I just want to be clear that, like, we're, you know, the…

2041
05:17:12.380 --> 05:17:18.779
Boardroom: We are trying to maintain, and in some ways, actually make more timely this information than we've had

2042
05:17:18.890 --> 05:17:22.520
Boardroom: Previously, because we didn't have a transparency hub previously. Okay, thank you.

2043
05:17:23.380 --> 05:17:25.450
Boardroom: Okay, thank you. Vice Mayor Lunaparo.

2044
05:17:26.930 --> 05:17:39.040
Boardroom: Thank you. I have a couple of questions. First, I have, this is to the mayor. I'm still confused as to why the name of the officer is being removed from the resolution.

2045
05:17:39.320 --> 05:17:43.289
Boardroom: If the current report does have the name of the officer.

2046
05:17:44.570 --> 05:17:48.539
Boardroom: My understanding is that the current report does not contain the name of the officer.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2047
05:17:48.820 --> 05:18:13.070
Boardroom: So the OC paper report from 1997 had a line for the officer filling out that completed the report, but the Transparency Hub intentionally does not have officer names for all the uses of force. That's not… information is not published, and was part of the meet and confer process under Policy 300 when it was established, that as, force data was released annually and released, to the public, that

2048
05:18:13.070 --> 05:18:14.420
Boardroom: You would not be able to track back.

2049
05:18:14.420 --> 05:18:24.190
Boardroom: exactly who that officer was, that there was a complaint process in place for individual complaints about uses of force, but that information would not be publicly available in that manner.

2050
05:18:26.290 --> 05:18:32.530
Boardroom: Thank you. Did that answer your question? Kind of. But it is currently publicly available.

2051
05:18:33.510 --> 05:18:34.610
Boardroom: As of right now.

2052
05:18:35.810 --> 05:18:44.790
Boardroom: That's correct. So that, 1997 report that came before the Policy 300 discussion, there probably should have been an edit made to the OC report.

2053
05:18:44.940 --> 05:18:57.779
Boardroom: that Policy 300 update. That didn't occur, because it's in, opposition to something that was met, you know, with the bargaining unit, as part of the implementation of the updated Policy 300.

2054
05:19:00.120 --> 05:19:00.970
Boardroom: Okay.

2055
05:19:01.180 --> 05:19:07.650
Boardroom: Thank you. Okay, my next question for the, police department…

2056
05:19:07.970 --> 05:19:26.750
Boardroom: is around the Transparency Hub mentions of OC spray. The 2024 Military Equipment Report says that there was one use of OC in 2024, but the Transparency Hub says that there are four, there were four. One of

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

the incidents was listed as chemical agents, and three were listed as OC spray. Can you explain this discrepancy?

2057
05:19:30.980 --> 05:19:36.470
Boardroom: I'll have to look into that, it's not something that, prepared to discuss?

2058
05:19:39.140 --> 05:19:53.540
Boardroom: Yeah, no, I just… it would be helpful if you shared, that and we took a look at the Hub. We'd be happy to take a look at that and report back to Council. Yeah, so, I mean, there's certain occasions. I know there was one occasion that your office raised, where there wasn't… where there was an OC report, but it wasn't on the Hub.

2059
05:19:53.660 --> 05:20:06.020
Boardroom: That was a particular case where the OC was deployed against an animal. So it's not a use of force, so it's not deploy… it's not in the use of force, but if you go to the call for service on the Transparency Hub, you'll see the call for service for animal bite.

2060
05:20:06.020 --> 05:20:15.529
Boardroom: call, but it didn't appear on the use of force report, because it was… it was not a… it was not that kind of use of force, right? And so certainly.

2061
05:20:15.630 --> 05:20:27.680
Boardroom: you know, there's a lot of instances like that where an officer receives a threat in that manner and may use pepper spray in that, and so that, you know, may be the exact instance that led to that reporting. We'd have to look at that.

2062
05:20:30.260 --> 05:20:37.380
Boardroom: Okay, thank you. I think this is showing exactly why we need a narrative, in these. And,

2063
05:20:37.700 --> 05:20:39.180
Boardroom: why…

2064
05:20:39.950 --> 05:20:47.210
Boardroom: some of… why these would be… why it's important for these to be duplicative sometimes. Yeah, the military equipment report one.

2065
05:20:47.360 --> 05:20:49.879
Boardroom: We just found more recently.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2066
05:20:52.350 --> 05:21:00.730
Boardroom: The 1997 directive requires that the pepper spray report be posted as an off-agenda memo, but this stopped in 2021. Can you explain why?

2067
05:21:02.300 --> 05:21:22.269
Boardroom: Yeah, thank you for raising that. That's on me. So, the first one I did when I became chief, came as an off-agenda memo. It was basically a memo form with the OC report following it. The next time one came through, I just forwarded the OC report to both PAB and to Council. I didn't put it on the header of off-agenda memo.

2068
05:21:23.780 --> 05:21:25.240
Boardroom: Okay, thanks.

2069
05:21:26.110 --> 05:21:34.890
Boardroom: I have a, question for, the interim ODPA director.

2070
05:21:35.440 --> 05:21:37.209
Boardroom: Do you mind? Thank you.

2071
05:21:41.130 --> 05:21:46.549
Boardroom: Might want to sit on… oh, okay, that's fine. Thank you.

2072
05:21:48.540 --> 05:21:52.889
Boardroom: Do you mind, briefly going over the recommendation from the PAB?

2073
05:21:53.050 --> 05:21:54.120
Boardroom: Yes.

2074
05:21:54.200 --> 05:22:10.239
Boardroom: So, the recommendation was transmitted to Council in their February 23rd correspondence, which is included, in the material. In terms of the recommendation itself is to reintroduce into the military equipment report, the reporting of the use of pepper spray.

2075
05:22:10.280 --> 05:22:25.240
Boardroom: The reason for that is because in the recent BMC2100, edits that aligned it with state policy, it removed handheld pepper spray specifically, which was included in the police, equipment report in the previous version of it.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2076
05:22:25.900 --> 05:22:36.459
Boardroom: the board does state that it understands that, there's some things that we could streamline. The spirit of that recommendation comes into making sure that there's still the information

2077
05:22:36.580 --> 05:22:52.479
Boardroom: that certain details are still communicated, but it doesn't necessarily have to be across 3 different platforms. So streamlining it into a single location, is what the board supports, as long as we keep continuing that same level of detail as it's being, proposed today.

2078
05:22:55.070 --> 05:23:02.340
Boardroom: Thank you. Do you mind also explaining, what has been useful about the notification process, and what may be lost

2079
05:23:02.780 --> 05:23:15.340
Boardroom: if we remove it, just talking a little more about the oversight process. Yeah, in terms of my experience with the notification process, and I've been with the city since 2022, so I've had a good amount of receiving those notifications.

2080
05:23:15.340 --> 05:23:26.339
Boardroom: For us, it's just, it gives us good context for the board in case there's a practice, like, let's say, in four reports, we see that pepper spray appears to have been misused.

2081
05:23:26.340 --> 05:23:39.000
Boardroom: Like, prematurely or something like that. Not the greatest of example, I acknowledge that. But it helps us in terms of our policy and practices review, as mandated by the Charter, because it gives us that context to it.

2082
05:23:39.290 --> 05:23:52.369
Boardroom: I'm a fan of the Transparency Hub, but sometimes the numbers themselves don't always explain everything. So having that context is useful to give us that contextual, I guess the circumstances as to something was… why it was used.

2083
05:23:53.580 --> 05:23:58.230
Boardroom: Great, that's really helpful, thank you. I had one more question for the police department.

2084
05:23:58.340 --> 05:24:06.899

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Would, would Nixle be a, a possible tool to send out, kind of an alert to the public?

2085
05:24:07.180 --> 05:24:23.459
Boardroom: No, I wouldn't support that. The purpose of Nixle is very clear. It's for emergency responses, street closures, dangerous situations. We're very intentional about not overusing Nixle so people don't stop looking at it. It's for something that requires an immediate, attention on it.

2086
05:24:24.320 --> 05:24:25.849
Boardroom: Okay, thank you.

2087
05:24:26.310 --> 05:24:33.850
Boardroom: And then, I think I'm still confused on the mayor's, on which part of the mayor's

2088
05:24:34.740 --> 05:24:41.500
Boardroom: item is a referral, and which one isn't a referral? Do you mind just clarifying that again? Because I'm…

2089
05:24:42.340 --> 05:25:01.669
Boardroom: I think the idea is to pass it as is, and then have a part of the motion be a referral. I think that's what we were saying. No? I'm so confused now. No, I think that is what you said. I mean, I thought… what I thought I heard was that this letter D2… was it 3D…

2090
05:25:01.820 --> 05:25:14.659
Boardroom: the administration of first aid, because it's not clear that we can actually do that with this system, that that be referred to the city manager to analyze with the software company to see, is that something we can do? That's a referral to come back. The rest of this is a directive to do.

2091
05:25:15.700 --> 05:25:24.970
Boardroom: So, Madam Mayor, I would just recommend in your resolution to delete D. I did that already. Oh, okay, okay, I couldn't see that you had done that. And then…

2092
05:25:24.990 --> 05:25:38.020
Boardroom: we don't… I don't think we need to type it in. Of course, we can, but we can just simply state that that concept of including the first aid detail be referred to the city manager.

2093

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:25:38.670 --> 05:25:44.330
Boardroom: you know, to explore the feasibility of inclusion on the Transparency Hub. Does that…

2094
05:25:44.880 --> 05:25:47.600
Boardroom: Yeah, that's helpful. Do we need to…

2095
05:25:47.730 --> 05:25:57.279
Boardroom: Is this something that needs to have a second reading, or would it be in effect immediately, once we rescind the, resolution? Resolutions take effect immediately.

2096
05:25:57.490 --> 05:26:00.900
Boardroom: Okay, so in this case, we would just be replacing the…

2097
05:26:01.150 --> 05:26:05.939
Boardroom: There'd be no time where neither apply. Okay, those are my questions. Thank you.

2098
05:26:07.910 --> 05:26:09.730
Boardroom: Okay, Councilmember Bartlett.

2099
05:26:10.910 --> 05:26:12.629
Boardroom: Thank you, Madam Mayor, and those are…

2100
05:26:12.750 --> 05:26:19.720
Boardroom: The questions have all been really wonderfully answered by all the parties here. I was curious, and this just goes back to…

2101
05:26:19.820 --> 05:26:25.999
Boardroom: the… sort of the IT component, right? Because I'm still trying to wrap my head around

2102
05:26:26.080 --> 05:26:38.500
Boardroom: the various sort of points of conflict, right? And there's… there's legal, maybe some liability, there's policy, and… and there's obviously use friction, right? It's a…

2103
05:26:38.500 --> 05:26:49.209
Boardroom: it's burdensome sometimes, right? So I'm just kind of wondering, just for the chief here, do you feel that the current provider of either, one, your police reporting.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2104
05:26:49.480 --> 05:26:55.140
Boardroom: Interface, and then the transparency of interface are… Are, are, are the latest.

2105
05:26:55.250 --> 05:26:58.050
Boardroom: The latest, the latest, out there.

2106
05:26:59.830 --> 05:27:06.509
Boardroom: Yeah, I would say that our, use of force reporting system is one of the industry standards for that, product.

2107
05:27:06.820 --> 05:27:18.590
Boardroom: And, you know, it's likely that they can fix this for us, or create this checkbox for us. I don't think that company hasn't been lacking, and I don't know of a lot of other agencies using other products that far surpass it.

2108
05:27:18.590 --> 05:27:32.969
Boardroom: The system that we use, ArcGIS, for, the transparency Hub, again, is an industry standard, you know, emerging… one of the cutting-edge technologies in this area, and it can do a lot, and we ask a lot of that hub.

2109
05:27:32.970 --> 05:27:56.000
Boardroom: We're able to bring in all kinds of different data from the background and display it in a way that can be both downloaded as large files of complete data, but also filtered, you know, and really allow the user to do their own analysis with it. So I would say that both of those technologies are producing what we need. Whether they can get into the weeds around all the things we want.

2110
05:27:56.000 --> 05:28:10.239
Boardroom: Without a human intervention, or a change in structure, I don't know, but we're certainly open to exploring those. Okay, and the use of confer was interesting, too, as opposed to the boundaries, right?

2111
05:28:10.470 --> 05:28:17.019
Boardroom: Is, does any of this that we are discussing tonight, implicate use and… use, sorry, meet and confer?

2112
05:28:18.720 --> 05:28:36.440
Boardroom: if we were to make some change around, a more public producing, an officer's name, I would expect that the union would expect

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

to meet and confer as a change of conditions, and would, would, suggest that that could cause them, some, safety issues.

2113
05:28:36.890 --> 05:28:39.959
Boardroom: But isn't that sort of… That's it, thank you.

2114
05:28:40.220 --> 05:28:42.800
Boardroom: Thank you. Councilmember Trago.

2115
05:28:44.460 --> 05:28:48.540
Boardroom: Thank you. I want to dig in more about

2116
05:28:48.770 --> 05:28:59.410
Boardroom: If we were to adjust the narrative, so right now,

2117
05:28:59.880 --> 05:29:05.180
Boardroom: The Council receives an annual report, right, and that does include the narrative?

2118
05:29:06.270 --> 05:29:10.899
Boardroom: And if… We lost that,

2119
05:29:12.310 --> 05:29:17.620
Boardroom: Can you speak to what, if any, opportunities there may be?

2120
05:29:18.050 --> 05:29:21.830
Boardroom: for individual members of the Council.

2121
05:29:21.990 --> 05:29:29.909
Boardroom: to request… a narrative specific to if they…

2122
05:29:30.160 --> 05:29:33.990
Boardroom: go on the Transparency Hub and get the…

2123
05:29:37.000 --> 05:29:39.700
Boardroom: Like, basically that line record.

2124
05:29:40.410 --> 05:29:42.539
Boardroom: Are there opportunities?

2125

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:29:42.860 --> 05:29:48.840
Boardroom: If we lose the annual report, to request.

2126
05:29:49.670 --> 05:29:56.810
Boardroom: detail-level information… Consistent with what a narrative reporting would provide.

2127
05:29:58.600 --> 05:30:10.060
Boardroom: Yeah, just a couple points to that. One, I really appreciated the PAB's perspective on this, that, and they've shared with us a couple times, that the… they find great oversight value in the OC reporting that they got on the annual report.

2128
05:30:10.060 --> 05:30:20.620
Boardroom: And that they felt like that was sufficient for them as a launching point to determine whether or not they wanted to do a policy review. I will say the military equipment narrative report would not go away

2129
05:30:20.620 --> 05:30:27.979
Boardroom: Unless the transparency Hub rose up to be qualified enough to give you the same level of detail that we wanted to provide.

2130
05:30:28.250 --> 05:30:36.610
Boardroom: So that the information is going to exist still in reporting, that it was on the OC, paper report.

2131
05:30:36.700 --> 05:30:49.310
Boardroom: is either going to be on the military equipment ordinance Report, or the Hub, or both, until we can raise them up to a level that the sufficient information for the Council's information is available.

2132
05:30:49.360 --> 05:31:06.810
Boardroom: I think all of you have received notifications, from the city manager, from me. I'm very big on communication around when instances happen. I share as much as I can without, violating, you know, some of the privacy rights of those involved, and sharing, and knowing that it makes it become a more public document when I do that.

2133
05:31:06.810 --> 05:31:10.549
Boardroom: So I hesitant… I'm hesitant to say, just call me and I'll give you all…

2134
05:31:10.700 --> 05:31:14.400

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: the information, if there's confidential information that I shouldn't be releasing.

2135
05:31:17.960 --> 05:31:20.160
Boardroom: Did you have other questions, or…

2136
05:31:20.810 --> 05:31:23.739
Boardroom: No, I think that's enough for now. Thank you.

2137
05:31:26.430 --> 05:31:28.300
Boardroom: Okay, Councilmember O'Keefe.

2138
05:31:28.960 --> 05:31:36.789
Boardroom: Great, I'm glad I'm next, because I actually have a follow-up on that. I'm curious about this. I have to share the same, interest that Councilmember Trey Group does.

2139
05:31:36.940 --> 05:31:39.249
Boardroom: In terms of,

2140
05:31:39.600 --> 05:31:48.969
Boardroom: council, and maybe others access to this kind of information by request. I heard you say you're reluctant to give away confidential information, and that makes sense, but…

2141
05:31:49.370 --> 05:31:55.859
Boardroom: Per… if… It is possible, though, that you could give it to us.

2142
05:31:56.110 --> 05:32:20.959
Boardroom: Let's say there's no confidential information, then the answer is yes, you could give it to us. Yeah, for example, I report a general report to Council that OC was used, or you see it on the Transparency Hub, and you contacted us and said, we want additional information. Certainly, everything that would appear on the military equipment ordinance in the annual report, we would absolutely be able to freely share. If we started to get into other details, or infected an investigation or something like that.

2143
05:32:20.960 --> 05:32:22.709
Boardroom: That's where we wouldn't be able to provide that details.

2144
05:32:22.710 --> 05:32:32.140

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Certainly, there's some information you could give us. We could share everything that would be releasable in the annual report, we could share in the immediate.

2145
05:32:32.140 --> 05:32:45.620
Boardroom: on, you know, I'm trying to not overburden staff by having to pull those things, but of course, if there was a situation that arose, we would be able to share that. Okay, that's really helpful, thank you. And that was actually not my original question, so my actual question was.

2146
05:32:46.010 --> 05:32:46.690
Boardroom: I'm…

2147
05:32:47.740 --> 05:32:58.289
Boardroom: I think this was sort of addressed with Councilmember Lunapara, but I think not exactly my question. In the Transparency Hub, there are two different labels.

2148
05:32:58.620 --> 05:33:01.520
Boardroom: One is Level 3 OC.

2149
05:33:01.710 --> 05:33:15.329
Boardroom: And one is Level 3 Chemical Agents, which I believe is also OC, because that's matched up with things we've gotten that were described as pepper spray. So can you explain why, like, why are there two things, and can there not be two things?

2150
05:33:16.010 --> 05:33:30.700
Boardroom: Yes, there could not be two things. That's, part of a drop-down, menu that we have control of, so we can update that to be more clear. Okay, yeah, because that's just, that's like… I think that's… and I just want to say, just in terms of if we're trying to, like, count votes, I'm…

2151
05:33:30.920 --> 05:33:32.309
Boardroom: supporting the…

2152
05:33:32.460 --> 05:33:49.199
Boardroom: Mayor's Supplemental that my name is on, I'm still supporting that, but I, Councilmember Louper's supplemental had a line about that, consistency of labeling, and I really would like for that to be part of whatever… I want that to happen, so, I think that's a really important change, and thank you for catching that.

2153

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:33:49.560 --> 05:33:59.850
Boardroom: Sorry, I didn't mean to interrupt you. Yeah, I was gonna say, I was just looking through the supplemental to kind of pull things out that I think make sense here.

2154
05:33:59.880 --> 05:34:13.709
Boardroom: I'm also interested in adding into our verbal referral that we're planning on making to include… to see if we can include the narrative data as well as the opt-in.

2155
05:34:14.030 --> 05:34:21.380
Boardroom: Well, can I just comment on that really quickly? Yes. So, the current way that our use of force,

2156
05:34:21.380 --> 05:34:31.180
Boardroom: entry happens. There's a lot of detail in there that would be confidential. It talks about what hospital they might go to, it talks about, individuals' names and things like that.

2157
05:34:31.180 --> 05:34:42.310
Boardroom: So, in order for it to… because we talked about this as a solution. In order for it to auto-populate the narrative into the Transparency Hub and have that narrative, we would have to stop doing that level of

2158
05:34:42.690 --> 05:34:46.249
Boardroom: explanation in our blue team, our use of force reporting.

2159
05:34:46.960 --> 05:34:57.000
Boardroom: which we want, because it goes through the supervisory chain, and they're reading all those details. It's possible we could create another box, but then they're gonna be duplicate, you know what I mean? So…

2160
05:34:57.160 --> 05:35:14.579
Boardroom: I'm hesitant to say that the… we're just gonna roll, because if they can create a box for administration and first aid, I'm concerned about… I mean, they can… I'm sure they can create a box for the narrative, but that's why we… I have some hesitancy around that. Right, I remember you saying that, and I'm just trying to understand how we can kind of throw the needle here, so… but were you gonna say something, Vice Mayor?

2161
05:35:14.720 --> 05:35:20.540

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Yeah, I think I'm confused by that point. So is the issue that… that…

2162
05:35:20.770 --> 05:35:27.030
Boardroom: The narrative would be slightly different in the chain of command versus the one that goes public.

2163
05:35:28.150 --> 05:35:47.299
Boardroom: Yeah, the narrative could contain information about what they were arrested for, investigative pieces of the, you know, confidential pieces of information within that, as they're gathering as much information as they want. So there's… it's a… it's intended to be a thorough review of the use of force, and the facts instructions around it, whereas

2164
05:35:47.300 --> 05:35:51.260
Boardroom: In the narrative, it might say, wanted for a robbery.

2165
05:35:51.310 --> 05:36:04.159
Boardroom: Match the clothing description or whatever. Whereas in the report, it might have a lot more detail around those pieces of information, and so it's by nature a summarized version of the facts that can be publicly released.

2166
05:36:04.160 --> 05:36:13.430
Boardroom: In the narrative. That's what we would want to produce publicly. Enough information so you know the who, what, the where, the when, and the why, right? Without divulging somebody's name.

2167
05:36:13.430 --> 05:36:16.259
Boardroom: You know, and confidential information.

2168
05:36:16.410 --> 05:36:35.319
Boardroom: Right, and I think that, like, I think we're interested in making sure we understand, like, was it an animal, or, you know, what was the situation that kind of led up to it? Like, to me, that doesn't need to be extremely detailed, and I understand what you're saying about confidentiality for the person who's arrested or sprayed.

2169
05:36:35.540 --> 05:36:56.690
Boardroom: So… is that what you're also hoping to get? Just to understand? Yeah, I guess I just don't really understand the problem with, like, writing a public version based on the version that has all this confidential information to whittle it down so that it doesn't have

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

that. So the public version is what we produce on the military equipment ordinance?

2170
05:36:56.860 --> 05:37:06.199
Boardroom: The blue team report is intentionally an internal process that's accessible to the PAB if they're dealing with a use of force complaint. They see the blue team.

2171
05:37:06.200 --> 05:37:25.790
Boardroom: It's part of our review process to know whether it's force or not. It has different information that has to do with internal processes of reviewing the force. It contains information often that has confidential information. Of course. My question is, if what would be on the military equipment ordinance can instead be put on the Transparency Hub, is that… that's what we're…

2172
05:37:25.830 --> 05:37:32.859
Boardroom: discussing. That's the ultimate goal, but right now, the mechanism by which we feed the transparency Hub is our use of force reporting.

2173
05:37:32.930 --> 05:37:33.989
Boardroom: And so…

2174
05:37:34.070 --> 05:37:53.209
Boardroom: Right, and so the goal would be we figure out a way to get a summarized version. Maybe there's an AI component, and so down the road, right, that can reveal it, review it and remove that kind of information, and then it can get published on there. Like I said, I'm hesitant to undo what is a robust review of force.

2175
05:37:53.630 --> 05:38:06.809
Boardroom: to satisfy a narrative, I'd rather have a good narrative in the military equipment report while we figure out what we can do on the Transparency Hub or not, but that one's… that one may require a lot more human intervention that I'm…

2176
05:38:08.110 --> 05:38:09.250
Boardroom: I…

2177
05:38:09.550 --> 05:38:20.780
Boardroom: Did that answer your… I guess. I guess I just… I don't… It might be an understand the problem answer with that. With… with doing that human work.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2178
05:38:21.060 --> 05:38:22.270
Boardroom: So…

2179
05:38:22.540 --> 05:38:39.130
Boardroom: I, I do want us to take, like, a mini break so we can just go… so that I can just check in with our city attorney, but did you want to ask a question? Yes, a quick question. Thank you, Madam Mayor. Just a quick question. As we try to wrap my mind, my mind around,

2180
05:38:39.520 --> 05:38:47.039
Boardroom: we're discussing granularly. Did you see this example report from October of last year, given by George Lipman?

2181
05:38:47.440 --> 05:38:49.050
Boardroom: I'm gonna go to you.

2182
05:38:49.580 --> 05:38:51.499
Boardroom: It's probably got my name at the bottom.

2183
05:39:14.020 --> 05:39:18.189
Boardroom: So, my question really is, is that… is that a typical…

2184
05:39:18.340 --> 05:39:22.199
Boardroom: Is that a typical report, typical disclosure?

2185
05:39:22.870 --> 05:39:26.389
Boardroom: Is that what you would expect as we talk about these? I'm just wondering.

2186
05:39:26.680 --> 05:39:29.019
Boardroom: You're talking about the part that you circled?

2187
05:39:30.040 --> 05:39:41.430
Boardroom: No, not that… not that part. But… Just, just a… Just the narrative, in total.

2188
05:39:44.190 --> 05:39:59.989
Boardroom: Yeah, this is the… this is a… it doesn't contain any confidential information, it doesn't have the suspect's name, it doesn't divulge, investigative, pieces for an ongoing criminal investigation. It tells you, what happened and where and why, and what de-escalation was attempted first.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2189
05:40:03.370 --> 05:40:18.100
Boardroom: Did you have a question, Councilmember? I don't have a question, but I will be supporting the mayor's motion. Okay, thank you. Just give us… just give us, like, 5 minutes to hash out a couple things. I just want to make sure we're clear about the wording here, and… and then we'll come back.

2190
05:40:18.210 --> 05:40:21.059
Boardroom: So, take a bio break, everyone. Take a stretch.

2191
05:40:57.620 --> 05:41:06.509
Boardroom: Okay, sorry about that, everyone, I apologize. Thanks for your patience. Alright, so, I'm gonna put this back on the screen, we're gonna talk about this again.

2192
05:41:06.890 --> 05:41:18.860
Boardroom: So… The clarification was that the piece That is the referral.

2193
05:41:19.740 --> 05:41:24.010
Boardroom: is this. The… the city manager to…

2194
05:41:24.640 --> 05:41:39.039
Boardroom: present an amendment to BMC Chapter 2.100 to this City Council. This is the controlled equipment ordinance piece, so that has to be a referral. That's why this is all extra confusing. So, and then the rest of this, this is…

2195
05:41:39.120 --> 05:41:46.599
Boardroom: An adjustment of your resolution, so it's still a resolution, but we changed the language at the bottom.

2196
05:41:47.350 --> 05:41:48.360
Boardroom: to just…

2197
05:41:48.690 --> 05:42:00.349
Boardroom: this… I just changed this just now, so I think this is clear. Refer to the city manager to prevent… present an amendment to the BMC chapter, blah blah blah. This is what I was just talking about, the controlled equipment ordinance piece, and then…

2198
05:42:00.350 --> 05:42:09.429

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: work with the vendor to determine if reporting the administration of first aid is possible to include in the Transparency Hub. But the other two pieces that we were just talking about

2199
05:42:11.710 --> 05:42:28.450
Boardroom: was… was on the… yeah, was also to see if it's possible to automate the opt-in notifications so that we can have folks like our… our Office of Director of Police Accountability, and to be alerted.

2200
05:42:28.560 --> 05:42:38.349
Boardroom: And also, if, the narrative piece, if we can figure out how to include that as well. And we were talking about the details of that.

2201
05:42:38.490 --> 05:42:40.419
Boardroom: I understand that… that that's…

2202
05:42:40.950 --> 05:42:48.950
Boardroom: that we have to kind of figure out, like, again, what's… I mean, that's why it's written in here as, like, if it's to try to figure out how to do that work with the vendor.

2203
05:42:51.440 --> 05:42:59.940
Boardroom: Okay, and then… and then the piece also that I think needs to be added is the… the piece around consistency and labeling.

2204
05:43:00.280 --> 05:43:03.850
Boardroom: So, I think that that also is important to include.

2205
05:43:04.120 --> 05:43:11.629
Boardroom: So… I will… take this… from Council… from Vice Mayor Lena Paraz as well.

2206
05:43:12.900 --> 05:43:29.540
Boardroom: Yeah, there was a section, I think, in, Councilmember Cassarwani's item that talked about, explaining the use of force levels better on the Transparency Hub. Yeah. Maybe if it just directed us to, ensure labeling, you know,

2207
05:43:30.020 --> 05:43:41.469
Boardroom: force levels are clearly labeled. I think it… and I think it already says that already, that would… that's how I would read that expectation, that… that double… double reporting, or double titling, labeling,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2208
05:43:41.640 --> 05:43:46.800
Boardroom: would be covered by that. I think it's here, it's like, this is the referral. Okay, so… Yeah.

2209
05:43:47.790 --> 05:43:54.770
Boardroom: This one, enhance the definitions for the various use of force levels, and clearly identify pepper spray use as level 3.

2210
05:43:55.440 --> 05:44:04.790
Boardroom: include clear navigational guidelines so users can more easily access the open data portal and seek information on chemical agents used. I guess I wanted to make sure that that's…

2211
05:44:05.060 --> 05:44:08.899
Boardroom: Actually included in the resolution itself, like the wording.

2212
05:44:09.470 --> 05:44:15.720
Boardroom: So I will add that piece.

2213
05:44:17.280 --> 05:44:24.709
Boardroom: Shall I make it the new… the new 4? You can make it the new D. The new D? Because that's your list of what's in the hub.

2214
05:44:24.840 --> 05:44:26.419
Boardroom: We need to move to extend.

2215
05:44:27.360 --> 05:44:34.030
Boardroom: Move to extend the meeting to… 11… 10. 20? Second.

2216
05:44:37.010 --> 05:44:38.100
Boardroom: Alright.

2217
05:44:38.320 --> 05:44:40.560
Boardroom: Is there any opposition to…

2218
05:44:41.760 --> 05:44:55.650
Boardroom: Extending the meeting to… 11.15? Did you say? 11. 11.20? 20. Is that what you said? Yeah, I did. Okay, 1120. I just wanted to make sure. Okay, no opposition, looks like. Alright, we will extend. Thank you all.

2219

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:44:55.800 --> 05:45:03.980
Boardroom: Alright, so… Okay, I think we've… adjusted this… Yes, I pray.

2220
05:45:05.250 --> 05:45:06.630
Boardroom: Perfect dinner to arrive.

2221
05:45:06.850 --> 05:45:12.680
Boardroom: Let me just adjust this. If reporting the administration of first aid… A narrative.

2222
05:45:13.240 --> 05:45:14.100
Boardroom: Report.

2223
05:45:14.540 --> 05:45:21.250
Boardroom: And, opt-in notifications.

2224
05:45:21.640 --> 05:45:23.440
Boardroom: And then I'll say R.

2225
05:45:23.830 --> 05:45:26.940
Boardroom: Okay. Notifications.

2226
05:45:27.420 --> 05:45:30.370
Boardroom: Okay, alright, I think we've got it.

2227
05:45:30.840 --> 05:45:31.700
Boardroom: All right.

2228
05:45:32.230 --> 05:45:38.620
Boardroom: Now… I'm gonna actually just move my own item. So… Second.

2229
05:45:39.080 --> 05:45:45.530
Boardroom: Well, she didn't… Yeah, I… I'm… I'm going to move.

2230
05:45:46.190 --> 05:45:53.669
Boardroom: for, Move My Supplemental with, Councilmembers Blackaby, Tragub, and O'Keefe.

2231
05:45:53.980 --> 05:46:05.969
Boardroom: on Councilmember Kessarwani's resolution, including this referral to the City Manager, which is right here.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2232
05:46:06.590 --> 05:46:19.089
Boardroom: to subject pepper spray to the controlled equipment ordinance, and also work with the vendor to determine if reporting the administration of first aid and narrative report and opt-in notifications are possible to include in the Transparency Hub.

2233
05:46:20.810 --> 05:46:22.049
Boardroom: Is there a second?

2234
05:46:22.180 --> 05:46:23.420
Boardroom: Second.

2235
05:46:24.740 --> 05:46:35.379
Boardroom: There are a number of hands raised. Are you… okay. Did you have… yeah, Vice Mayor. Yeah, I was wondering if we could add a date certain to,

2236
05:46:35.380 --> 05:46:44.749
Boardroom: the controlled equipment ordinance Referral, just so that we know exactly when that's gonna… No, but I'll take it as a short-term amendment, which means we'll work on it over the next 90 days.

2237
05:46:44.750 --> 05:46:46.610
Boardroom: Okay, okay, thank you.

2238
05:46:47.040 --> 05:46:53.659
Boardroom: Sorry, just to clarify, that's before the next… Yeah, because it just… The next controlled equipment ordinance.

2239
05:46:55.040 --> 05:47:09.189
Boardroom: Okay. Yeah, certainly, we can push past that to include that information in the Controlled Equipment Ordinance Report. Okay, thank you. We can commit to that even if the ordinance hasn't caught up in time. We're happy to include that in the report. Okay, thanks.

2240
05:47:09.420 --> 05:47:10.850
Boardroom: Thank you.

2241
05:47:11.280 --> 05:47:19.930
Boardroom: Okay, thank you all, I appreciate it. I know this is sausage making, but I feel like we're in a good place, so thank you very much. Alright, oh yes, Councilmember O'Keefe.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2242
05:47:20.320 --> 05:47:26.500
Boardroom: Thanks, yeah, still supporting the motion, no, no problem. I just want to raise, you know, I…

2243
05:47:26.970 --> 05:47:33.580
Boardroom: I like… I'm glad that we have a plan for getting the narrative report, on the Hub.

2244
05:47:34.020 --> 05:47:39.099
Boardroom: I do… I am still bothered by this inconsistency that would…

2245
05:47:39.380 --> 05:47:53.690
Boardroom: that would result in, because there are other kinds of use of force that are equal or more intense than pepper spray that wouldn't be getting the narrative. And so, I'm not… don't worry, I'm not adding anything. I think it would be beyond the scope of this

2246
05:47:54.210 --> 05:48:00.919
Boardroom: what we're doing tonight to do any more than this, but I just want to name an intention. I would like to work with maybe,

2247
05:48:01.090 --> 05:48:07.559
Boardroom: once we have a new permanent ODPA director, to work with them to look at maybe even bringing in more narrative

2248
05:48:07.640 --> 05:48:27.360
Boardroom: more narratives, not for everything, but for some of the really rare and very intense uses of force. In the spirit of transparency, of course, and also consistency, because I'm bothered by the inconsistency here, that's… I was bothered by it. That's why I'm glad that Councilmember Kesarwani brought this item. So, as an ultimate goal, I would like us to have…

2249
05:48:27.530 --> 05:48:44.090
Boardroom: you know, lots of transparency and have it be consistent and make sense. And so that's sort of a goal. I just wanted to state that goal, and I'll be, you know, picking that up when the time is right. Thank you, appreciate that, and yeah, absolutely, hear that. So, okay, can we take a roll, please, Clerk?

2250
05:48:48.120 --> 05:48:59.400
Boardroom: On the motion, as stated by the mayor, for the… resolution. Councilmember Kastarwani? Yes. Taplin? Yes.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2251
05:48:59.510 --> 05:49:07.450
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes.

2252
05:49:07.590 --> 05:49:15.110
Boardroom: Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay, thank you all. Really appreciate…

2253
05:49:15.230 --> 05:49:21.629
Boardroom: We appreciate you, and your patience, and everyone for their public comments, and for everyone who presented to us.

2254
05:49:21.820 --> 05:49:22.760
Boardroom: Thank you.

2255
05:49:23.010 --> 05:49:24.090
Boardroom: Alright.

2256
05:49:24.320 --> 05:49:34.220
Boardroom: Now, we are moving on to the public comment for items not listed on the agenda. Is there any other additional public comment on items not listed on the agenda?

2257
05:49:43.720 --> 05:49:46.159
Boardroom: Isn't this 2 minutes at the end of a meeting?

2258
05:49:48.690 --> 05:49:58.880
Boardroom: Okay, okay. Generally, I believe in police tools, because the police need tools to do their job.

2259
05:49:58.990 --> 05:50:01.720
Boardroom: So you've heard enough in terms of flock.

2260
05:50:01.930 --> 05:50:12.709
Boardroom: You've heard all the concerns about privacy. Yesterday there was an article from the Business Insider that addressed accuracy as to flock.

2261
05:50:12.790 --> 05:50:21.999
Boardroom: And, started out with a description of, a man in Ohio who, there was a misread in Flock, and so he was…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2262
05:50:22.270 --> 05:50:35.069
Boardroom: mauled by the police dog, and arrested, and then they realized that it was a different license plate. Quoting from the article, Business Insider reviewed, police records, lawsuits, and local news coverage across the country

2263
05:50:35.070 --> 05:50:54.979
Boardroom: and found that the Toledo episode isn't isolated. In a dozen instances, misreads by flocks, automated license plate readers, or a lack of verification by officers resulted in people who hadn't committed crimes being stopped at gunpoint, sent to jail, or mauled by a police dog, among other…

2264
05:50:55.390 --> 05:50:57.629
Boardroom: Thanks, Carol. Okay, there's a lot more.

2265
05:51:00.220 --> 05:51:02.000
Boardroom: I can't hear you by walking in.

2266
05:51:10.850 --> 05:51:20.790
Boardroom: So, Councilmembers, as I heard your discussion, I'm really kind of concerned, because what I heard the police chief talking about is the need to kind of protect the identity of officers, and…

2267
05:51:21.000 --> 05:51:27.010
Boardroom: I'm really kind of concerned about that, because if we're not willing to associate a police officer with a use of force.

2268
05:51:27.130 --> 05:51:31.039
Boardroom: then they might as well be ice with masks on their faces.

2269
05:51:31.390 --> 05:51:37.409
Boardroom: That we need to statistically be able to identify which officers are more prone to use violence than others.

2270
05:51:37.550 --> 05:51:39.590
Boardroom: And now, that's called early warning.

2271
05:51:39.750 --> 05:51:43.400
Boardroom: That's how you get to them before they do something really bad.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2272
05:51:43.550 --> 05:51:44.640
Boardroom: Isn't that right?

2273
05:51:44.790 --> 05:51:49.859
Boardroom: Isn't that… doesn't that make sense? So, I think what's being sold here is a bill of goods.

2274
05:51:50.070 --> 05:52:06.609
Boardroom: We should have public… according to the California Public Records Act, we're supposed to have access to police reports that have specific descriptions, and we cannot be, what can I say, persuaded or just have this kind of institutional drift to suggest

2275
05:52:06.610 --> 05:52:13.539
Boardroom: That somebody who has been the victim of a pepper spraying should have their identity concealed for their privacy?

2276
05:52:14.130 --> 05:52:29.140
Boardroom: That's like disappearing people. So, I really just want to ask you to advocate for maximum transparency. I also want to say that I went through… I just really want you to understand what it's like to file a complaint with the PAB.

2277
05:52:29.950 --> 05:52:32.460
Boardroom: The PAB… the chief officer says.

2278
05:52:32.580 --> 05:52:42.700
Boardroom: They don't return phone calls. But there's not one shred of paper. They had some kind of meeting or something without the person who's filed the complaint.

2279
05:52:43.070 --> 05:52:47.049
Boardroom: And I was giving no indication of what their findings were.

2280
05:52:47.590 --> 05:52:51.189
Boardroom: And on the basis of those findings, apparently the chief made another finding.

2281
05:52:51.620 --> 05:52:57.570
Boardroom: on an allegation that I never alleged, I never made. I never said that they're body-worn…

2282

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:52:57.680 --> 05:53:00.950
Boardroom: Camera policy was a problem? That wasn't the problem!

2283
05:53:01.150 --> 05:53:04.549
Boardroom: The problem is that they physically manhandled me and prevented me

2284
05:53:04.900 --> 05:53:11.039
Boardroom: from, from, observing and from according. And if I could have that other minute.

2285
05:53:12.350 --> 05:53:14.940
Boardroom: With that other minute, I'd like to tell you about this.

2286
05:53:15.110 --> 05:53:19.020
Boardroom: that… We don't have a system for holding

2287
05:53:19.170 --> 05:53:22.460
Boardroom: The leadership of the police department accountable.

2288
05:53:23.710 --> 05:53:25.019
Boardroom: How do we do that?

2289
05:53:25.500 --> 05:53:41.290
Boardroom: You know, we say, well, oh my gosh, it must be a personnel. The officer who put their hands on me must have done something wrong. Or maybe we should look at the policy, maybe that's the problem. But what about the cop who generated the operational plan for that homeless encampment sweep?

2290
05:53:41.700 --> 05:53:46.059
Boardroom: That included, prevent people from observing.

2291
05:53:46.690 --> 05:53:52.129
Boardroom: What if those cops were just doing what they had been told, and what if those cops were given an illegal order?

2292
05:53:52.950 --> 05:53:58.619
Boardroom: We don't have a mechanism for rooting that out, and exposing that, and dealing with it.

2293
05:53:59.370 --> 05:54:11.470

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And so, as you pursue this militarization policy with more drones and more surveillance, what we're trying to tell you is that, you know, you're going 100 miles an hour, and you don't have any brakes.

2294
05:54:12.170 --> 05:54:13.280
Boardroom: Thank you. Thank you.

2295
05:54:16.910 --> 05:54:17.790
Boardroom: One minute.

2296
05:54:17.940 --> 05:54:30.139
Boardroom: Okay, Houston does this narrative thing, brief thing, and then you have to get the report, and then that's where you see everything. So maybe it's a little bit of a common practice in some places, but…

2297
05:54:30.740 --> 05:54:32.969
Boardroom: I don't have the bandwidth to try to get into this, but…

2298
05:54:33.440 --> 05:54:39.180
Boardroom: You guys have to deal with it. About the order here, I think it was a little bit…

2299
05:54:41.000 --> 05:54:46.160
Boardroom: It's a bit of a trick to have the public speak and then have you guys try to figure out what they were saying.

2300
05:54:46.790 --> 05:55:02.299
Boardroom: Right. You had to get the, you know, city manager and city attorney to help you figure it out. We should have heard all of that, and then been taking notes, and then give some comments. That's the other thing. I have a personal PRA that I need to follow up with the city manager.

2301
05:55:03.050 --> 05:55:10.599
Boardroom: If you can help me, by setting up a time where we can meet, 26-418.

2302
05:55:12.300 --> 05:55:19.269
Boardroom: Really would like to get your insight on that and, help me come up with a… you know, we can come up with a solution.

2303
05:55:20.920 --> 05:55:22.000
Boardroom: Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2304
05:55:23.180 --> 05:55:26.839
Boardroom: Is there anyone online for off-agenda public comment?

2305
05:55:27.310 --> 05:55:31.899
Boardroom: Yes, we have a few hands raised. This is for non-agenda…

2306
05:55:32.280 --> 05:55:35.989
Boardroom: Public comments, phone number ending in 211.

2307
05:55:40.700 --> 05:55:42.179
Boardroom: 5 hands raised.

2308
05:55:42.320 --> 05:55:44.500
1510****211: Hi. Well, first of all.

2309
05:55:44.680 --> 05:55:49.479
1510****211: Pepper spray causes permanent damage to the lung and the eyes, especially the eyes.

2310
05:55:49.610 --> 05:55:51.599
1510****211: How can you break anybody's eyes?

2311
05:55:51.810 --> 05:55:56.790
1510****211: is to be banned. Second, maybe 16 file, that is why.

2312
05:55:57.020 --> 05:56:06.500
1510****211: Donald Trump, who was raped, he can't have, say, have sex with a 13-year-old girl. He was raping this 13-year-old girls, and that's why he went to Iran.

2313
05:56:06.620 --> 05:56:21.389
1510****211: the IPISTIN file above his head, as I emailed you many times. And that is criminal acts against American laws, against international laws, and believe me, I studied nuclear physics, nuclear engineering for decades, while in

2314
05:56:21.390 --> 05:56:27.329
1510****211: World War III soon. This man crazy, this man is crazy. He's mentally ill.

2315

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

05:56:27.330 --> 05:56:46.650
1510****211: is totally unfair to be a president, and look what is the result. Now Iran needs to be here in America, and that is really sad. Innocent people are dying for what? By the way, before you go to sleep tonight, please listen to John Lennon's song, Imagine. Imagine no religion. Imagine no country, no religion.

2316
05:56:46.650 --> 05:56:47.290
TELEPHONE_USER: too, right?

2317
05:56:47.290 --> 05:56:48.390
Boardroom: Thank you so much.

2318
05:56:48.630 --> 05:56:50.609
Boardroom: Next is Nathan Meisel.

2319
05:56:54.260 --> 05:56:57.070
Nathan Mizell: Hi, Council, just quickly here,

2320
05:56:57.470 --> 05:57:08.170
Nathan Mizell: I suspect that tomorrow, I hope you're paying attention to the PAB's meeting, and the letter I… they intend to send you in regards to the department's unilateral decision.

2321
05:57:08.300 --> 05:57:12.900
Nathan Mizell: to rewrite Policy 300, the use of force policy in this city.

2322
05:57:13.240 --> 05:57:22.939
Nathan Mizell: It is a sad reality that we now have a department that believes they can outright ignore council's own mandated policy in this city.

2323
05:57:23.320 --> 05:57:26.660
Nathan Mizell: But that is the result of the lax

2324
05:57:26.860 --> 05:57:32.800
Nathan Mizell: If not non-existent oversights that has taken place over the last year to 18 months in our city.

2325
05:57:33.300 --> 05:57:42.759
Nathan Mizell: That letter details how, despite the PAB informing them that the use of force policy was adopted by Council in June of 2020,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2326
05:57:43.250 --> 05:57:53.840
Nathan Mizell: they still unilaterally changed the policy, and to my knowledge, have not reposted it publicly yet. So, I'm gonna be writing to you about this. The PAB is going to send you a letter.

2327
05:57:54.350 --> 05:57:59.149
Nathan Mizell: This is the latest example of a breakdown in democracy in our city.

2328
05:57:59.150 --> 05:58:00.379
Boardroom: Thanks, Nathan.

2329
05:58:00.770 --> 05:58:04.140
Boardroom: Next is caller ending in 2.

2330
05:58:04.390 --> 05:58:05.369
Boardroom: Wait, no.

2331
05:58:05.530 --> 05:58:09.229
Boardroom: Daniel… Daniel Brownson. Next is Daniel Brownson.

2332
05:58:10.390 --> 05:58:11.920
Boardroom: Already had the other collar.

2333
05:58:12.610 --> 05:58:13.480
Daniel Brownson: Hi.

2334
05:58:14.750 --> 05:58:16.030
Daniel Brownson: Can you hear me?

2335
05:58:16.030 --> 05:58:16.710
Boardroom: Yes.

2336
05:58:17.710 --> 05:58:29.970
Daniel Brownson: Soap… I think it's honestly ridiculous that… the I… that… We're acting like…

2337
05:58:30.890 --> 05:58:38.589
Daniel Brownson: Writing a report for using pepper spray, which is actually a severe use of force.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2338
05:58:38.790 --> 05:58:44.520
Daniel Brownson: Is some sort of huge burden on… on the police department.

2339
05:58:44.640 --> 05:58:47.959
Daniel Brownson: Especially considering it was only used 4 times, and like…

2340
05:58:48.790 --> 05:58:55.620
Daniel Brownson: Yeah, we kinda do want it to be at least a little bit of… Yo…

2341
05:58:55.840 --> 05:59:00.440
Daniel Brownson: you should have to do some work to justify it.

2342
05:59:01.110 --> 05:59:05.589
Daniel Brownson: And then secondly, we should absolutely not

2343
05:59:06.150 --> 05:59:20.919
Daniel Brownson: re-legalize the use of tear gas in Berkeley. You know, what is it mainly used for? Against protests. What's the most likely protest in Berkeley coming up when the feds finally sick ice on us?

2344
05:59:20.920 --> 05:59:22.070
Boardroom: Neil, thanks.

2345
05:59:22.480 --> 05:59:24.289
Boardroom: Next is Rayla.

2346
05:59:26.930 --> 05:59:49.990
Raela R: Hi, I also wanted to express concern about, not providing a police officer's name in the reports, the reports that are available to the public. I did hear, I believe the chief's note about, the union or something like that of the police, and I understand that could be a hurdle for that.

2347
05:59:51.400 --> 06:00:16.380
Raela R: However, I still think that there has been a lot of evidence, particularly there's one incident that I remember with a… it was a bike police officer who had many, many reports of misconduct, and he kind of was allowed to go on doing that without any repercussions, and I think, like, that is evidence that this kind of public record is

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2348
06:00:16.380 --> 06:00:20.930
Raela R: It's really important for accountability, in situations with force.

2349
06:00:20.930 --> 06:00:22.359
Raela R: So thank you.

2350
06:00:24.640 --> 06:00:27.490
Boardroom: Next is Della Luna.

2351
06:00:30.570 --> 06:00:48.680
Della Luna (she/her) Huichun: Yes, I wanted to request that the Transparency Hub website be added to the City of Berkeley website, like, a direct link to it, and the police website, too, the police department's website. There's currently a picture of the chief, but there's no link to the Transparency Hub.

2352
06:00:48.690 --> 06:00:53.510
Della Luna (she/her) Huichun: And I think that having that direct link, it should just be, one, required.

2353
06:00:53.800 --> 06:01:05.180
Della Luna (she/her) Huichun: But here, I am the constituent asking for it, so I just hope that can happen really soon with… given everyone that's in the room currently. Thank you. And there's no reason to not have it connected.

2354
06:01:05.610 --> 06:01:15.389
Della Luna (she/her) Huichun: Right. Since we're talking about transparency, and as much as the chief and the police department like to talk about the hub, we need to actually have access to the hub.

2355
06:01:15.530 --> 06:01:21.769
Della Luna (she/her) Huichun: And the URL just needs to be simple, and it needs to be linked directly to the City of Berkeley website. Thank you.

2356
06:01:23.320 --> 06:01:27.529
Boardroom: And then, the last speaker is B.A.

2357
06:01:30.780 --> 06:01:31.870
B A: Hello, can you hear me?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2358
06:01:32.230 --> 06:01:32.910
Boardroom: Yes.

2359
06:01:33.560 --> 06:01:52.109
B A: Yeah, I just want to draw attention to the fact that this is all nice with the Transparency Hub, but transparency doesn't really do anything when the cops continually violate the existing use of force guidelines. Not only has the BPD issued their own revisions, not approved by you all, to the use of force guidelines that are currently

2360
06:01:52.110 --> 06:02:01.399
B A: in use, Policy 300, but they've also, in the past, flagrantly violated the very explicit use of force rules they have.

2361
06:02:01.400 --> 06:02:14.759
B A: In 2014, they used illegal overhead baton strikes, they attacked crowds of protesters, they used tear gas against their own policy, which stated that it could only be used in controlled situations.

2362
06:02:14.970 --> 06:02:30.180
B A: And so it's nice to have this transparency hub, but it's better to not equip the people with the weapons who are… have a record of misusing them with the weapons. So pull the ordinance. There should be no rescinding of the reporting requirement, and pepper spray and tear gas

2363
06:02:30.570 --> 06:02:31.230
B A: to do that.

2364
06:02:31.230 --> 06:02:34.879
Boardroom: She talked about that item, so thank you.

2365
06:02:35.760 --> 06:02:37.530
Boardroom: Okay, that's it.

2366
06:02:38.760 --> 06:02:41.950
Boardroom: Okay, is there a motion to adjourn? Second.

2367
06:02:42.200 --> 06:02:44.760
Boardroom: Is there any opposition to adjournment?

2368
06:02:44.940 --> 06:02:47.619
Boardroom: We are adjourned. Thank you all very much.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Unofficial Text File